

2022
STANDARD FREIGHTSHIP AGREEMENT

between

SEAFARERS INTERNATIONAL UNION

Atlantic, Gulf, Lakes and Inland Waters, SIUNA, AFL-CIO

and

Contracted Companies



July 1, 2022 – June 30, 2027

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AGREEMENT

AGREEMENT made this 1st day of July, 2022 between the American Maritime Association, (hereinafter referred to as "Association"), on behalf of itself and each member Company of the Association, (hereinafter referred to as "Company" or "Companies") and the Seafarers International Union - Atlantic, Gulf, Lakes and Inland Waters, SIUNA, AFL-CIO, (hereinafter referred to as "Union").

ARTICLE I. EMPLOYMENT

SECTION 1. RECOGNITION.

The American Maritime Association (Association) on behalf of itself and each member Company of the Association recognizes the Union as the sole and exclusive bargaining representative of all Unlicensed Personnel employed on board American-flag vessels owned or operated by such Company or its subsidiaries. Such recognition shall also extend to any replacement vessel(s) acquired by any member Company.

SECTION 2. UNION FURNISHING EMPLOYEES.

The Union agrees to furnish each Company with capable, competent and physically fit persons when and where they are required, and of the ratings needed to fill vacancies necessitating the employment of Unlicensed Personnel in ample time to prevent any delay in the scheduled departure of any vessel covered by this Agreement. To assure maximum harmonious relations and in order to obtain the best qualified employees with the least risk of a delay in the scheduled departure of any vessel covered by this Agreement, such Company agrees to secure all Unlicensed Personnel through the hiring halls of the Union. If, for any reason, the Union does not furnish such Company with capable, competent and physically fit persons when and where they are required, and of the ratings needed to fill such vacancies, in ample time to prevent any delay in the scheduled departure of any vessel covered by this Agreement, such Company may then obtain members of the Unlicensed Personnel from any available source, in which case the Union shall be notified.

SECTION 3. UNION SECURITY.

The Association and each member Company thereof agree that as a condition of employment all Unlicensed Personnel shall become members of the Union or agency fee payers within thirty-one (31) days after the execution of this Agreement, or within thirty-one (31) days after hire, whichever is later, and shall either remain members in good standing of the Union or up to date agency fee payer during the life of this Agreement. Such Company is not obligated to take steps to enforce this provision unless due notice is received in writing from the Union, to the effect that a member of the Unlicensed Personnel is not in compliance herewith.

SECTION 4. REJECTION, PHYSICAL EXAMINATIONS AND SUBSTANCE ABUSE.

(a) The Union agrees that each member Company has the right to reject (by written notation on the job assignment slip or by written notification at the time of assignment) any applicant for employment who such Company considers unsatisfactory or unsuitable for the vacancy, or to discharge any member of the Unlicensed Personnel who, in the opinion of such Company is not satisfactory. If the Union considers the rejection of any applicant for employment or the discharge of any member of the Unlicensed Personnel as being without reasonable cause, such action by such Company shall be dealt with under the grievance procedure and the Union agrees that any such rejection or discharge shall not cause any vessel to be delayed on her scheduled departure.

(b) Unlicensed Personnel when applying for employment shall be required to be in possession of a valid S.I.U. Clinic Card indicating the person has a current physical examination within six (6) months of the scheduled sign on date and the person may also be required to pass a physical examination as prescribed by such Company, and shall submit from time to time thereafter to such physical examinations as may be required by such Company. In addition to a valid SIU Clinic Card, Unlicensed Personnel applying for employment shall also be required to be in possession of a U.S. Coast Guard medical certificate valid for the

duration of the proposed employment. The fees and expenses, including transportation, associated with any such required initial examination shall be at the Company's expense. Such Company shall have the right to reject an applicant for employment or to discharge any member of the Unlicensed Personnel who shall be determined by such Company's medical examiner to be unfit for employment. Additionally, each crewmember shall have a sufficient supply of required medication for the duration of his assignment on board. Obtaining maintenance medication is the crewmember's responsibility.

Any dispute with regard to the physical fitness of any such applicant or member so examined shall be resolved by such Company's physician and the appropriate Seafarers Health and Benefits Plan Clinic designated physician. If these two (2) physicians are unable to resolve the dispute, then they shall select a board certified physician of the appropriate specialty to make a final and binding decision. The fees and expenses of such third physician shall be shared equally by the parties.

(c) All Unlicensed Personnel shall comply with all rules and regulations required by the Department of Transportation, U.S. Coast Guard and/or Charter Parties relative to substance and alcohol abuse testing.

SECTION 5. EQUAL OPPORTUNITY.

Each Company agrees not to discriminate against any member of the Unlicensed Personnel for legitimate Union activities, and such Company further agrees that no person referred in accordance with this Article, shall be discriminated against because of race, creed, color, sex, age, national or geographic origin, sexual orientation, physical or mental disability, and status as a veteran.

The Union agrees that employees dispatched from the hiring halls will be qualified to perform shipboard duties. The parties agree that in the event an employee suffering from a disabling condition should request an accommodation to enable him/her to perform essential functions aboard the vessel, every reasonable effort will be made to accommodate the employee. Such accommodation will not, however, be required if it would create an undue hardship or would represent a substantial threat to the safety and wellbeing of the employer, the employee requesting the accommodation, or other Unlicensed Personnel.

In applying the protections of the American with Disabilities Act (ADA) to any individual, the parties agree that, in determining whether a crew member is physically capable, competent, and fit under Section 2 of this Article, the standards formulated in the current U.S.Coast Guard regulations, policy and guidance and the Johns Hopkins Study (or any subsequent similar study the parties agree to have performed to determine the appropriate standards for evaluating medical and physical fitness to perform essential job functions aboard contracted vessels) shall be followed.

The parties agree to work together to insure a work environment free of sexual harassment, discriminatory or other harassing conduct. Inasmuch, Unlicensed Personnel will be required to have Sexual Assault and Sexual Harassment (SASH) training as mutually agreed between the Companies and the Union.

The Shipping Rules may from time to time be amended by Seafarers Appeals Board Actions promulgated by the Seafarers Appeals Board, a joint Labor-Management Committee selected by the appropriate parties. Any such modification, once approved, shall immediately be formally brought to the attention of the Association.

SECTION 6. UNLICENSED PERSONNEL EXCLUSIONS.

The term Unlicensed Personnel as used in this Agreement shall not include super-cargoes, cadets, pursers and livestock tenders.

SECTION 7. RIGHT TO RENEGOTIATE ARTICLE I EMPLOYMENT.

Either party shall have the right, upon written notification to the other, to re-negotiate any part or all of Article I. Upon receipt of such notification, the parties to this Agreement shall meet within seven (7) days for negotiations of this issue.

SECTION 8. EMPLOYMENT PROCEDURES.

(a) The Shipping Rules as prescribed in Article IX, incorporated and attached hereto, define the registration and shipping procedures for all Unlicensed Personnel seeking employment aboard vessels whose owners or operators are signatory to this Agreement. The Shipping Rules may from time to time be amended by Seafarers Appeals Board Actions promulgated by the Seafarers Appeals Board, a joint Labor-Management Committee selected by the appropriate parties. Any such modification once approved shall immediately be formally brought to the attention of the Association.

(b) The Union and the Companies pursuant to collective bargaining provisions established and

maintain a training school facility for training and upgrading of the Companies' unlicensed seamen. Such facility shall be the exclusive method utilized by the Companies for training and upgrading of Unlicensed Personnel, except as may be mutually agreed to between the Union and the Employer.

Contracted Employers shall meet, as necessary, with the Vocational Department at the Seafarers Harry Lundeberg School of Seamanship to develop and modify training and upgrading programs to meet the needs of the Industry. An advisory board will be formed to review the criteria and curriculum of the courses offered at the school.

(c) The Seafarers Appeals Board shall include in the Shipping Rules promulgated in accord herewith, reasonable rules of procedure to govern matters coming before it.

SECTION 9. APPROPRIATE UNION FOR REPRESENTATION.

The parties hereto agree that the appropriate unit for representation purposes is the Unlicensed Personnel aboard the vessels owned, operated or controlled by all Companies who are members of the Association.

SECTION 10. INDEMNIFICATION.

The Union shall protect and indemnify the Companies party to this Agreement in any cause of action based on improper application by the Union of the employment provisions of Article I of this Agreement. The Company shall protect and indemnify the Union in any cause of action based on improper application by the Company of the employment provisions of Article I of this Agreement.

SECTION 11. FEDERAL AND STATE LAW.

The provisions hereof are subject to Federal and State Law and if any part hereof is in conflict therewith, such part shall be deemed inapplicable and to the extent thereof, shall be deemed severed from this Agreement, the remainder of which shall remain in full force and effect.

SECTION 12. ASSIGNMENT OF VACATION PAY.

Seamen may execute written authorizations to the Seafarers' Vacation Plan, assigning to the Union vacation benefit payments which may be due such seamen, in discharge of their Union monetary obligations for initiation fee and dues, and the parties further agree that new seamen employed, or seamen who have not as yet paid their full initiation fee to the Union, may execute written authorizations to the Seafarers Vacation Plan, assigning to the Union vacation benefit payments which may be due such seamen in discharge of their Union initiation fee obligation. All of the foregoing authorizations shall be in accordance with the provisions of applicable law.

ARTICLE II. GENERAL RULES

SECTION 1. PASSES.

The Company agrees to issue passes to the Union representatives for the purpose of contacting its members aboard vessels of the Company covered by this Agreement.

Representatives of the Union shall be allowed on board at any time but shall not interfere with men at work unless said men are properly relieved. (The relief gets no extra compensation.)

SECTION 2. DELEGATES.

(a.) DUTIES.

One (1) man in each department shall be elected by the Unlicensed Seamen in that department to act as Departmental Delegate. Such Delegates shall, together with the Permanent Ship's Committee members, keep track of all conditions and problems and grievances in their respective departments, and present to their superior officers, on behalf of the Unlicensed Seamen in their Departments, all facts, opinions and circumstances concerning any matter which may require adjustment or improvement.

(b.) PERMANENT SHIP'S COMMITTEE.

The Permanent Ship's Committee shall consist of three (3) members all chosen by a majority vote of the Unlicensed Personnel, and shall consist of a Ship's Chairman, a Ship's Reporter-Secretary and an Educational Director. The duties of the Permanent Ship's Committee shall be to assist the Departmental Delegates in their duties to convene and conduct the weekly Unlicensed crew meetings and to perform the following individual duties:

The Ship's Chairman shall preside at all shipboard meetings of the Unlicensed Personnel and shall be the primary spokesman aboard ship for the Unlicensed Personnel.

The Ship's Reporter-Secretary shall handle all paper work involved in documenting matters brought to the attention of the superior officers and he shall also prepare and maintain minutes of the Unlicensed crew meetings.

The Educational Director shall be responsible for maintaining and distributing all publications, films and mechanical equipment relating to education on such subjects as safety, training, upgrading, health and sanitation.

(c.) WEEKLY MEETINGS.

To make sure that all problems concerning the Unlicensed Personnel are brought to light and resolved as quickly as possible, there shall be a meeting of the Unlicensed Personnel every Sunday while the vessel is at sea.

Vessels remaining in port on Sundays may hold these meetings as soon as possible after departure. If a payoff is scheduled, in lieu of a weekly meeting a pre-payoff meeting is to be held. At such meetings the Permanent Ship's Chairman shall report to the Unlicensed Personnel all matters referred to them and shall receive any new and additional problems not previously raised. The Ship's Committee shall present all minutes, crew lists, recent dispatch cards and all other documentation to the boarding Union representative. In addition, the Ship's Committee shall collect all Union books from the Unlicensed Personnel and present them to the boarding Union representative. As compensation for the additional duties required by this section, the members of the Permanent Ship's Committee and the Departmental Delegates shall each receive one (1) hour's pay at their applicable Penalty Rate for each weekly meeting held.

SECTION 3. GRIEVANCE AND ARBITRATION.

For the adjustment of any grievances arising in connection with performance of this Agreement which cannot be satisfactorily adjusted on board the vessel, the member must submit such grievances to the Union within 30 days from the earlier of the date the seaman leaves the vessel or the ship's articles are terminated. In that case, there shall be established a Port Committee at the hiring hall where the grievance is filed. The Port Committee shall consist of an equal number of Union and Company representatives, but shall not exceed three (3) representatives from either the Union or the Company, and shall initially meet by person or by phone within fifteen (15) days from the date the grievance was filed, Saturdays, Sundays and Holidays excluded. The affected Company shall be notified of the grievance with sufficient lead time to allow for their meaningful participation in the Port Committee discussion. If the locale where the grievance is filed cannot provide the number of personnel required to establish the Port Committee, one will be established at such port or place as is mutually agreed to between the Company and the Union. In the event the Port Committee

cannot resolve the issue or dispute, the matter shall be referred to Union headquarters for further review and discussion with the Company. If the Union determines the grievance to be meritorious, the matter shall be referred to an impartial arbitrator whose decision shall be final and binding. The Union must refer the grievance to arbitration no more than ninety (90) calendar days after the Port Committee reaches a final decision.

In the first instance, the parties can mutually agree on an arbitrator. If they are unable to do so, the Parties may request a panel of twelve (12) potential arbitrators from the American Arbitration Association, followed by a second panel of twelve if the American Arbitration Association's selection procedure does not result in a selection in the first round. In all other respects, the American Arbitration Association's rules for the selection and designation of arbitrators shall be followed.

In any specific case, if the Parties and the arbitrator agree, the arbitration shall be held within five (5) days, excluding Saturdays, Sundays and Holidays, from the date of notification and selection of the arbitrator. By mutual agreement of the Parties, the time limits set forth in this Article may be extended.

In all arbitrations held pursuant to this Article, the expenses of the arbitrator shall be shared equally Parties. In all such arbitrations, the sole purpose of the arbitrator shall be to interpret the express provisions of the Agreement and apply them to the facts of the complaint, dispute or grievance. The arbitrator shall have no power to change, amend, modify, add/or to subtract from, or otherwise alter this Agreement.

Nothing herein shall prevent the Union or any Company from filing a grievance on its own over the interpretation and/or application of any provisions of this Agreement. All such grievances must be filed within thirty (30) days of the event giving rise to the grievance or when either party reasonably should have had notice of the issue.

Failure to file or process a grievance within this time limits set forth in this Article shall preclude an assertion of this grievance or its subject matter at any later date in any form.

Following a thorough and cooperative investigation by the Union and the Company in order to resolve a grievance, and the Union or the employee claims that the employee was discriminated against in ways that would violate: a. Title VII of the Civil Rights Act; b. The Age Discrimination in Employment Act; c. The Equal Pay Act; d. The Family and Medical Leave Act; e. The Americans with Disabilities Act, the sole and exclusive means for the employee or Union to address those claims will be in arbitration. In such cases, if the Union decides not to pursue the statutory component of the grievance to arbitration, the Union will expeditiously send the employee written notice (with a copy to the Company) of its decision. The Union will still maintain the right to pursue the remaining portions of the grievance, if any, to arbitration in accordance with the first four paragraphs above of this Section 3. Notwithstanding the Union's decision as to whether or not to proceed with the remaining portions the grievance, the employee will have sixty (60) days from the date of receipt of the Union's notice or such longer period as provided under the statute of limitations of the applicable statute, to initiate arbitration and advise the Company accordingly. Notice will be sent by the employee, in writing, to the Labor Relations department of the Company. In such cases, the employee will have the right to retain his own counsel at his own expense to handle the arbitration. With respect to the costs of the arbitration proceeding, the Employee will be responsible for any filing fee, up to a maximum of \$175, as well as any other fees payable by the employee under the provisions of the Employment Arbitration Rules and Mediation Procedures of the American Arbitration Association (AAA). The Company will be responsible for such other procedural costs as set forth in the AAA Employment Arbitration Rules, including the Arbitrator's fees and expenses and AAA administrative fees, unless otherwise allocated by the Arbitrator in accordance with the AAA Employment Arbitration Rules.

Any arbitration brought by an employee of claims under the above-listed statutes will be conducted in accordance with the AAA Employment Arbitration Rules and Mediation Procedures, available on the AAA website, www.adr.org. These rules provide for reasonable discovery. Moreover, if the Arbitrator finds in such proceeding that an employee was subject to discrimination, the Arbitrator will have the power to order any remedy available under the applicable statute, including damages for pain and suffering, front and back pay, reinstatement, attorneys' fees and punitive damages. In these cases, the Arbitrator will be selected pursuant to the AAA Employment Arbitrator Rules. The Arbitrator shall issue a written award within 60 days of the close of the hearing.

The employee acknowledges that arbitration shall be his/her sole recourse to pursue any alleged violation(s) of the statutes listed above and the employee will not have the right to pursue such claims and remedies in any other forum, including court. In cases where the employee brings a statutory claim under the AAA Employment Arbitration Rules, the employee shall not have the right to bring any other grievances to arbitration, including any grievance alleging any other violation(s) of the collective bargaining agreement

between the Union and the employer, except to the extent such violation is directly related to and a part of the employee's statutory claim and its resolution is a necessary part of the arbitrator's determination on the statutory claim.

The right of an employee to assert a claim under the AAA Employment Arbitration Rules as set forth above applies only to individual claims. No group or class claims may be brought to arbitration by an employee through this procedure.

Nothing contained above in reference to statutory claims shall limit the right of the Union or the Company to pursue any other grievances in accordance with this Section 3.

SECTION 4. STOPPAGE OF WORK.

There shall be no strikes, lockouts or stoppages of work while the provisions of this Agreement are in effect.

SECTION 5. SHIPS CHARTERED BY COMPANY.

This Agreement is binding with respect to American-flag ships chartered by the Company (if charterer furnishes Unlicensed Personnel).

SECTION 6. AUTHORITY OF MASTER AND OBEDIENCE OF CREW.

Nothing in this Agreement is intended to or shall be construed to limit in any way the authority of the Master or other officers, or lessen the obedience of any members of the crew to any lawful order.

SECTION 7. COMMENCEMENT OF EMPLOYMENT.

In American domestic ports, a seaman's pay shall start as of the day in which he reports for work aboard the vessel, unless the seaman he is replacing is being paid for the same day. In the event that both seamen are required to work on that day, both shall be paid for the day but contributions for fringes shall be paid for only the departing man.

With respect to seamen joining a vessel in a foreign port, the seamen's pay and benefit contributions shall start as of the day of the departure flight to join the vessel.

SECTION 8. TERMINATION OF EMPLOYMENT.

Any man leaving a vessel shall, upon request, be given a slip showing the reason for his termination of employment. Seaman shall be required to remain aboard the vessel until such time they are properly relieved, unless given a written authorization to depart by the Captain.

SECTION 9. STATEMENT OF EARNINGS.

(a) Unlicensed Personnel shall be given a complete record of all earnings and deductions for the voyage not later than at the time of payoff.

(b) On December 31st of each year of this Agreement, all Unlicensed Personnel, whether at sea or in port, shall be entitled to receive all monies due them in the form of a check or other instrument which, under IRS rules, shall be deemed as constructive receipt of said money, unless regular compensation is paid on a bi-weekly basis. W-2 forms shall be timely provided and shall reflect all appropriate money earned with the Company during the applicable calendar year.

(c) Unlicensed Personnel may request payment by check, allotment or, if available, direct deposit for any amount due by providing a minimum of seventy-two (72) hours notice to the Captain. If the vessel is scheduled for a payoff on a Monday, such notice must be provided to the Captain no later than noon of the preceding Friday.

(d) The Company shall notify the Union's Manpower Office each time the vessel will be in a U.S. port after a pay-off at sea or when it will be paying off in a U.S. port. For these ports the company will provide a draw of up to five hundred dollars (\$500.00).

SECTION 10. CUSTOMARY DUTIES.

(a) Members of all departments shall perform the necessary duties for the continuance of the operations of the vessel as set forth in this Agreement.

It is understood that each crew member shall perform the recognized and customary duties of his particular rating. Necessary work shall include the preparation of cargo gear and cargo holds for the purpose of loading cargo and the securing of cargo gear and cargo holds after cargo is loaded or discharged. Necessary

work shall also include the maintenance of vessel equipment and machinery under the direction of the officer in charge.

(b) When it is necessary to shift a man to fill a vacancy, the man so shifted shall perform the duties of the rating to which he is assigned.

SECTION 11. VESSELS AGROUND.

In the event the vessel runs aground, this Agreement shall be lived up to by the Company regardless of whether the Company or the Insurance Company is paying the wages and overtime until such time as Articles are terminated.

SECTION 12. MEDICAL ATTENTION.

(a) Full medical attention as required by law shall be given to all Unlicensed Personnel. Except where it is assumed by the U.S. Consul and/or the Department of Health and Human Services, such medical attention shall be furnished by the Company at the expense of the Company.

(b) The Company agrees, when stocking the medicine chest, to include a broad spectrum antibiotic, which shall be furnished free of charge to seamen in need of same. The rules of the Department of Health and Human Services shall be observed with respect to dosage and administration.

SECTION 13. UNEARNED WAGES.

Unearned wages, as referred to in this Agreement, shall be defined as base wages.

SECTION 14. MAINTENANCE AND CURE.

When a member of the Unlicensed Personnel is entitled to Maintenance and Cure under Maritime Law, he shall be paid maintenance at the rate of sixteen dollars (\$16.00) per day for each day or part thereof of entitlement. The payment due hereunder shall be paid to the man no more frequently than every two weeks. This payment shall be made regardless of whether he has or has not retained an attorney, filed a claim for damages, or taken any other steps to that end and irrespective of any insurance arrangements in effect between the Company and any insurer.

SECTION 15. REPATRIATION, UPKEEP AND TRANSPORTATION.

(a) Where a crew member must leave a vessel because of illness or injury in any location outside the Continental United States, he shall be repatriated at Company expense as set forth herein, at the earliest date possible, and advances equaled to allotments, if any, shall continue during such repatriation, provided he has sufficient monies due him from the Company to cover such advances.

It is the purpose of the above paragraph to provide for the automatic payment of advances—in a sum equal to the agreed allotment—and to do this automatically, which advances are then to be charged against any claim for earned or unearned wages. The advances are to be paid in exactly the same time and manner and to the same person or persons that the allotment would have been paid had not illness or injury taken place. The term “repatriation” refers to the entire period for which unearned wages are due, and advances are made during the entire period, except in those cases where the law sanctions a refusal to pay unearned wages (which can be established under law to be gross negligence, willful misconduct, etc.).

(b) In the event a crew member must leave a vessel because of illness or injury incurred in the service of such vessel while in a location within the Continental United States, Hawaii, Puerto Rico, Alaska and/or the U.S. Virgin Islands, and such illness or injury is known prior to his leaving, he shall be entitled to economy class air transportation to his original port of engagement in accordance with Article II, Section 60.

If the Company office or designated agents’ office is closed, transportation, if due, shall be paid by the Ship’s Master upon submitting medical proof from an accredited medical authority, specifying the nature of the illness or injury.

(c) While awaiting repatriation under section (a) and (b) herein, the seaman shall be entitled to repatriation upkeep in the sum of eight dollars (\$8.00) per day until afforded transportation as outlined in said subsections. Such upkeep shall be paid up to and inclusive of the day he is afforded the means of transportation by which he is to be repatriated. The Company or its Agents may make arrangements for meals and lodgings while the seaman is awaiting repatriation transportation, but in no event shall these arrangements be at a cost of less than eight dollars (\$8.00) per day.

In cases where regular meals are not included in the transportation herein provided for, the repatriated seaman shall be paid meal allowance at the rates specified in Article II, Section 44 during the

transportation period.

(d) If a crew member's medical records indicate a pre-existing medical condition and there were reasonable grounds for the crewmember to believe the condition might disable him during a voyage and that condition was concealed at time of a pre-sign-on physical examination or on joining the vessel and is the reason for the individual leaving the vessel, the costs of repatriation, upkeep, treatment and transportation shall be borne by the crewmember.

(e) Where a seaman leaves the vessel due to illness or injury and such illness or injury has been known prior to his leaving, he shall receive a full statement of his account showing wages due him. Where time does not permit the statement being given to the man before he leaves the vessel or before the vessel's departure, the Master shall promptly advise the Company's Agent and the home office of the status of the man's account at the time he left the vessel.

Thereafter, when the seaman presents himself to the Agent at the port where he left the vessel, the maximum allowable payments shall be made to him by that Agent.

When the seaman presents his claim of wages to the Agent or office of the Company at the port of engagement or to the home office of the Company, he shall receive payment as promptly as possible.

Failure to pay the seaman wages within seventy-two (72) hours exclusive of Saturdays, Sundays and Holidays after presentation of his claim shall entitle the seaman to eight dollars (\$8.00) per day until the full wages due the man at the time he left the vessel are paid.

(f) The Company shall provide a record to the Union of all repatriated seamen, indicating the seaman's period of employment and the nature of the illness or injury requiring repatriation. This notice shall be provided to the Medical Director as soon as practical following the repatriation.

SECTION 16. LOSS OF CLOTHING.

(a) In the event a ship of the Company is lost, the Unlicensed Personnel shall be compensated for the loss of clothing in the amount of seven hundred and fifty dollars (\$750.00) and shall be repatriated to the port of engagement with subsistence, room allowance and wages as per Section 59 of this Article.

(b) In the event that personal effects of Unlicensed Personnel are damaged due to marine casualty, or an accident to the vessel or its equipment, they shall be compensated for the loss in the amount of such loss but not to exceed one thousand dollars (\$1,000.00).

SECTION 17. WORK PERFORMED BY OTHER THAN MEMBERS OF THE UNLICENSED PERSONNEL AND SUBCONTRACTING, TRANSFERRING OR ASSIGNING UNLICENSED PERSONNEL WORK.

Any work performed by cadets, workaways, passengers, prisoners of war, staff officers, or any member of the crew other than the Unlicensed Personnel that is routine work of the Unlicensed Personnel shall be paid for at the overtime rate provided that said Unlicensed Personnel are offered and have not refused such work. Such payment is to be divided among the Unlicensed Personnel ordinarily required to perform such work.

The Unlicensed Personnel shall continue to perform such work as they have heretofore customarily and traditionally performed, regardless of technological or other changes implemented or sought to be implemented aboard vessels operated by any of the Companies which are signatory to this Agreement.

The Company agrees that no sea-going work or services of the kind, nature or type historically or traditionally performed, or presently performed, or hereafter assigned to the Unlicensed Personnel covered by this Agreement will be subcontracted, transferred or assigned in whole or in part to any other person or entity. It is the purpose and intent of this clause to preserve the work of the Unlicensed Personnel covered by this Agreement and, accordingly, said clause shall not be applicable to work or services which historically and traditionally have been performed by other persons or entities.

SECTION 18. CARRYING OF CADETS, ETC. IN LIEU OF CREW.

No cadets, workaways or passengers shall be carried in lieu of the crew.

SECTION 19. EMERGENCY DUTIES AND DRILLS.

(a) Any work necessary for the safety or security of the vessel, passengers, crew or cargo, or for the saving of other vessels in jeopardy and the lives thereon, shall be performed at any time, and such work shall not be considered overtime. Incidents of this kind should be recorded in the official Log.

In an emergency such as the above paragraph deals with, it is not necessary to call out all hands

unless the Master of the vessel feels that it is necessary.

Routine work for the safe navigation of the vessel refers to such operations as steering, standing a lookout, standing any regular watch on deck or in the engine room.

(b) Whenever practicable, lifeboat and other emergency drills shall be held on weekdays, Monday through Friday, between the hours of 8 a.m. and 4:30 p.m. Preparation for drills, such as stretching fire hose and hoisting and swinging out boats, shall not be done prior to signal for such drills, and after drill is over, all hands shall secure boats and gear. In no event shall overtime be paid for work performed during such drills, except as herein provided.

(c) The Overtime Rates shall be paid for lifeboat and other drills held on Saturdays, Sundays and Holidays, except in instances where departure time and date do not permit required drills being held before the first Saturday, Sunday or Holiday after departure.

(d) In port when such drills are held on Saturdays, Sundays or Holidays, the Overtime Rate shall be paid, except where such drills are held on days of departure, or required by regulatory agencies such as the US Coast Guard or IMO.

All Unlicensed Personnel shall be given instruction on how to start the lifeboat engines.

SECTION 20. SAFE WORKING CONDITIONS.

Unlicensed Personnel shall be responsible for working in a safe manner. The employer shall furnish all required safe working gear and equipment. Unlicensed Personnel shall wear all furnished personal protective equipment (PPE), including proper safety gloves, and utilize all required safety gear and equipment and follow all safety procedures. Whenever a seaman is required to obtain his own working gear, including safety shoes, he shall be fully reimbursed by the employer. However, reimbursement for safety shoes is limited to permanent personnel and personnel employed on a trip tour basis, and will be issued no more frequently than once a year, up to a maximum of \$125.00. No man shall be required to work under unsafe conditions. Ordinary hazards of the sea shall not be considered unsafe conditions in applying this section. Unlicensed Personnel shall fully participate in the company's Safety Management System.

Unlicensed Personnel shall not be required to work over the side or aloft when the vessel is loading or unloading explosives, except in case of emergency.

All off duty Unlicensed Personnel shall be required to attend shipboard safety meetings to ensure familiarization and knowledge of shipboard safety equipment and systems in accordance with ISM. Participation in such training or safety meetings shall be without additional compensation.

Survival suits shall be placed aboard the Company's vessels pursuant to U.S. Coast Guard regulations. The seaman to whom such suit is issued, shall reimburse the Company for costs incurred in the repair or replacement of such suit as a result of its improper use, damage, or loss.

All unlicensed seaman shall renew their basic safety training (BST) certification in accordance with the regulations, but not less than every five (5) years.

SECTION 21. HOLIDAYS.

The Company agrees to recognize the following as Holidays.

- | | |
|-------------------------------------|----------------------|
| 1. New Year's Day | 7. Juneteenth |
| 2. Martin Luther King, Jr. Birthday | 8. Columbus Day |
| 3. Presidents' Day | 9. Veterans Day |
| 4. Memorial Day | 10. Thanksgiving Day |
| 5. Independence Day | 11. Christmas Day |
| 6. Labor Day | |

All Holidays will be observed on the days designated by the Federal Government and where not so designated on the days customarily observed aboard the vessel.

Saturdays, Sundays and Holidays at sea or in port shall be considered Holidays for the Unlicensed Personnel not on watch. Men on watch shall perform only the routine duties necessary for the safe navigation of the vessel on these days.

If the observance of a Holiday is not designated by the Federal Government then any Holiday that falls on a Saturday or Sunday shall be observed the following Monday.

Overtime Rates shall be paid for all work performed by the Unlicensed Personnel on any of the eleven (11) Holidays described in this Agreement at sea or in port.

Any day that is a recognized Holiday for the longshoremen in Continental U.S. ports shall also be a recognized Holiday for the crew while in that particular port.

When a vessel is in Puerto Rico the following three (3) days, which are recognized as Holidays for longshoremen in Puerto Rico ports, shall also be recognized as Holidays for the Unlicensed Personnel while the vessel is in Puerto Rico.

1. Good Friday
2. July 17th (Munoz Rivera)
3. July 25th (Constitution Day)

When a vessel is in Hawaii and King Kamehameha Day is being observed it shall be recognized as a holiday for unlicensed personnel.

SECTION 22. OVERTIME RATES AND PENALTY RATES.

(a) OVERTIME RATES

<i>Ratings</i>	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
<u><i>Deck Department</i></u>					
Boatswain	40.27	41.88	43.56	44.87	46.21
Carpenter	33.41	34.74	36.13	37.22	38.33
Carpenter Maintenance	30.65	31.88	33.16	34.15	35.18
A.B. Maintenance	30.65	31.88	33.16	34.15	35.18
Quartermaster	30.83	32.68	33.99	35.01	36.06
Able Seaman (Green)	29.90	31.69	32.96	33.95	34.97
Able Seaman (Blue)	26.02	27.58	28.68	29.54	30.43
O.S. Maintenance	20.47	20.67	21.08	21.72	22.37
Ordinary Seaman	20.47	20.67	21.08	21.72	22.37
<u><i>Engine Department</i></u>					
Q.M.E.D./Electrician	42.83	44.55	46.33	47.72	49.15
QMED/Electrician Relief	42.83	44.55	46.33	47.72	49.15
Chief Electrician	41.25	42.90	44.61	45.95	47.33
Crane Maint./Electrician	41.25	42.90	44.61	45.95	47.33
Electrician Reef Maint.	38.69	40.23	41.84	43.10	44.39
Second Electrician	38.69	40.23	41.84	43.10	44.39
Engine Maint./Electr. Relief	38.69	40.23	41.84	43.10	44.39
Engine Maintenance					
Eng. Util. Reefer Maint.	38.69	40.23	41.84	43.10	44.39
Refrigeration Engineer (when one is carried)	38.69	40.23	41.84	43.10	44.39
Refrigeration Engineer (when three is carried)					
Chief	35.45	36.87	38.34	39.49	40.68
First Assistant	33.86	35.22	36.62	37.72	38.85
Second Assistant	32.86	34.17	35.54	36.60	37.70

Ratings	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Q.M.E.D.					
Class 1	40.27	41.88	43.56	44.87	46.21
Class 2	36.31	37.76	39.27	40.45	41.66
Class 3	33.07	34.39	35.77	36.84	37.94
Class 4	29.83	31.02	32.26	33.23	34.23
Plumber Machinist	35.48	36.90	38.38	39.53	40.71
Unlicensed Jr. Engr. (Day)	33.86	35.22	36.62	37.72	38.85
Unlicensed Jr. Engr. (Watch)	30.53	31.75	33.02	34.01	35.03
Deck Engineer	35.36	37.48	38.98	40.15	41.36
Engine Utility	34.30	36.35	37.81	38.94	40.11
Evaporator/Maint.	29.27	31.02	32.26	33.23	34.23
Oiler	27.60	29.26	30.43	31.34	32.28
Oiler (diesel)	29.70	31.48	32.74	33.72	34.73
Watertender	27.60	29.26	30.43	31.34	32.28
Fireman/Watertender	27.60	29.26	30.43	31.34	32.28
Fireman	24.52	25.99	27.03	27.84	28.67
Wiper	23.77	24.00	24.48	25.22	25.98
Ship's Welder Maint.	32.86	34.17	35.54	36.60	37.70
Oiler/Maint. Utility	30.80	32.65	33.95	34.97	36.02
Gen. Utility/Deck Eng.	23.95	24.19	24.67	25.41	26.18
General Vessels Assistant	23.95	24.19	24.67	25.41	26.18
<u>Steward Department</u>					
Chief Steward	40.27	41.88	43.56	44.87	46.21
Steward/Cook	40.27	41.88	43.56	44.87	46.21
Steward/Baker	40.27	41.88	43.56	44.87	46.21
Chief Cook	33.44	34.78	36.17	37.25	38.37
Cook & Baker	30.25	31.46	32.72	33.70	34.71
Second Cook	27.05	28.67	29.82	30.71	31.64
Third Cook	27.05	28.67	29.82	30.71	31.64
Asst. Cook/Utility	27.05	28.67	29.82	30.71	31.64
Steward Assistant	20.48	20.69	21.10	21.73	22.38

Except as otherwise provided, the rates set forth above shall be paid for all work in excess of eight (8) hours Monday through Friday and anytime Saturdays, Sundays or Holidays. It is further agreed that the Company shall offer to all Deck and Engine Unlicensed Personnel possessing a Group I Rating, a minimum of eight (8) hours every Saturday, Sunday and Holiday whether at sea or in port.

(b) PENALTY RATES

		Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
(b). 1. Monday through Friday On Watch	Group I	13.73	14.28	14.85	15.30	15.76
	Group II	10.85	11.51	11.97	12.32	12.69
	Group III	7.95	8.03	8.19	8.44	8.69
(b). 2. Monday through Friday Off Watch	Group I	38.87	40.43	42.04	43.30	44.60
	Group II	31.15	33.02	34.34	35.37	36.43
	Group III	25.66	25.92	26.43	27.23	28.04
(b). 3. Saturdays, Sundays & Holidays On Watch	Group I	47.04	48.92	50.88	52.40	53.98
	Group II	33.63	35.65	37.08	38.19	39.33
	Group III	22.96	23.19	23.65	24.36	25.09

When specific rates are provided in this Agreement for work done on Saturdays, Sundays and Holidays, those rates shall not be less than the Penalty Rate in effect.

Except as otherwise provided, the rates specified above shall be paid for such work as is specified in this Agreement.

ARTICLE II
GENERAL RULES

Section 2 (c)	Weekly Meetings
Section 31 (a)	Penalty Cargoes
Section 33 (d)	Longshore Work
Section 34	Working Ballast
Section 37	Restriction to Ship
Section 39 (b) & (g)	Sailing Board Time
Section 42 (a)	Rest Periods
Section 45 (c),(e),(f)&(g)	Meal Hours Relieving for Meals (Penalty)
Section 46 (b) & (c)	Midnight Lunch

ARTICLE III
DECK DEPARTMENT

Section 7 (b)	Men Standing Watches
Section 8	Relieving Helmsman/Working on Bridge
Section 12 (c)	Carpenter's Duties
Section 15 (e)	Topping or Lowering Booms
Section 19 (a)	Securing Cargo
Section 20 (d)	Handling Hatches
Section 21	Laying Dunnage
Section 22 (b)	Cleaning Cargo Holds
Section 24 (b)	Vessels Stores
Section 25	Spray Guns & Sand Blasting
Section 28	Garbage
Section 29	Removing Soot from the Stack
Section 30 (b)	Cleaning Bilges and Oil Spills
Section 31 (a), (c) & (d)	Tank Cleaning
Section 32	Steering Engine Room & Bow Thruster Room
Section 33 (e)	Additional Work

ARTICLE IV
ENGINE DEPARTMENT

Section 4 (a)	Work on Saturdays, Sundays & Holidays at Sea
Section 28 (c)	Wipers
Section 30 (a), (c) & (d)	Tank Cleaning
Section 31	Spray Painting, Sand Blasting Equipment & Cleaning Scavenger Boxes
Section 32	Carbon-Tetrachloride
Section 40. 4.	OMU Duties
Section 41. 7.	QMED Day Worker Duties

ARTICLE V
STEWARD DEPARTMENT

Section 10	Handling Stores
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The rates specified in (b) 1 above shall also apply to penalty meal hours, weekly Ship's Committee meetings, restriction claims and delayed sailings.

PORT TIME.

There shall be no extra compensation for work performed weekdays, after 5:00 p.m. and before 8:00 a.m. in port provided that no other personnel on the vessel receives extra compensation for similar duty under similar circumstances.

Extra compensation at the applicable rate will be paid for work in port in excess of eight (8) hours a day weekdays and on Saturdays, Sundays and Holidays.

Except as otherwise provided, the rates specified in (b) 1 above shall also apply to work performed in lieu of rest periods unless a higher rate is required due to the nature of the work involved.

(c) DEPARTMENTS AND GROUPS.

Departments and Groups shall be the basis for determining the applicable Group for a specific rating, as stated below.

DECK DEPARTMENT

GROUP I - DAY WORKERS

Boatswain	A.B. Deck Maintenance
Boatswain's Mate	Storekeeper
Carpenter	A.B. Splicer/Joiner
Carpenter Maint.	

GROUP II - RATING WATCHSTANDERS

Quartermaster	Able Seaman (Green)
Cable Able Seaman	Able Seaman (Blue)

ENGINE DEPARTMENT

GROUP I

Chief Electrician Evap.	Maintenance Man
1st, 2nd, 3rd Ref.Engr.	QMED - Pumpman
2nd Electrician	Chief Pumpman
Unlic. Jr. Engr.-Day Work	Second Pumpman/Engine Maint.
Unlic. Jr. Engr.-Watch	Engine Maintenance
Plumber-Machinist	Ship's Welder/Maint.
Electrician/Ref. Maint.	Eng. Utility Reefer Maint.
Crane Maint. Electrician	QMED - Class 1, 2, 3 & 4
Chief Ref. Engr.	QMED/Electrician
Chief Storekeeper	Marine Electronics Technician

GROUP II

Deck Engineer	Watertender
Engine Utility	Fireman/Watertender
Oiler-Diesel	Fireman
Oiler - Steam	Oiler Maintenance/Utility
Engine Utility/FOWT	Deck Engineer/Utility

STEWARD DEPARTMENT

GROUP I (S) RATED MEN

Chief Steward	Steward/Cook
Steward/Baker	

GROUP I - RATED MEN

Cook and Baker	Chief Cook
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GROUP II

2 nd Cook	Assistant Cook/Utility
3 rd Cook	

GROUP III RATINGS (ALL DEPARTMENTS)

ENTRY DEPARTMENT - STEWARD

Utility Messman	Steward Assistant
Galley Utility	Messman
Bedroom Steward	General Stewards Utility
Passenger B.R.	

ENTRY DEPARTMENT – OTHERS

Ordinary Seaman	General Utility Deck/Engine
Wiper	General Vessel Assistant
Ordinary Seaman Deck Maintenance	

SECTION 23. COMMENCEMENT OF OVERTIME.

(a) When the watch below is broken out to report for work outside their regular schedule, overtime shall commence at the time stated for the call-out, provided, however, that such crew members report for duty within thirty (30) minutes of the time the overtime work commences. Otherwise, overtime shall commence at the actual time such employee reports for duty, and such overtime shall continue until the employee is released.

(b) The above provision shall not apply in the event the commencement of overtime is scheduled one (1) hour following the conclusion of their regular watch or workday. In that event, the crew members, having had a full hour for their meal, shall report promptly at the beginning of the period for which overtime has been scheduled.

SECTION 24. CONTINUOUS OVERTIME.

When working overtime on the watch below and the crew is knocked off for two (2) hours or less, the overtime shall be paid straight through. Time allowed for meals shall not be considered as overtime in this clause.

SECTION 25. COMPUTATION OF OVERTIME.

When overtime worked is less than one (1) hour, overtime for one (1) full hour shall be paid. When overtime exceeds one (1) hour, the overtime work performed shall be paid for in one-half (½) hour periods, and any fractional part of such period shall count as one-half (½) hour.

In port, whenever the watch below is called out to work, such seaman shall be paid a minimum of two (2) hours overtime at the applicable overtime rate. This provision shall not apply when such work is performed immediately before regular working hours or in conjunction with security duties, docking, undocking or shifting, shall not apply to supper relief, and shall not result in duplication of or pyramiding of overtime. In the Steward's Department, "watch below" shall be deemed to mean outside of the spread set forth in Article V, Section 4 of this Agreement.

SECTION 26. CHECKING OVERTIME.

No work specified in this Agreement as overtime work shall be performed unless authorized by the head of the particular department. After authorized overtime has been worked, the senior officer of the department on board will review and approve/disapprove such overtime on a weekly basis and return overtime sheets to the Unlicensed Personnel clearly indicating any disputed claims. Officers and men shall keep a record of all disputed overtime. No claim for overtime or other monetary claims shall be valid unless such claim is presented to the head of the department within seventy-two (72) hours after completion of work or after commencement of the incident which causes the claim. When work has been performed and an overtime claim is disputed, the head of the department shall acknowledge in writing that the work was performed.

Department heads shall collect and return overtime sheets to the Unlicensed Personnel no less than once a week, clearly indicating any disputed claims.

SECTION 27. PAYMENT OF OVERTIME.

All money due for crew overtime shall be paid at the signing off. In the event payment of overtime is delayed by the Company beyond the seventy-two (72) hours exclusive of Saturdays, Sundays or holidays after signing off Articles, additional compensation shall be paid at the rate of twenty-five dollars (\$25.00) a day for each calendar day or fraction thereof aforesaid payment of overtime wages is delayed. This shall not include disputed overtime being settled between the Union Representatives and the Company.

No claim for the above penalty shall be considered valid unless the failure to make such payment is made known to the Union within seventy-two (72) hours after the event.

SECTION 28. DIVISION OF WAGES OF ABSENT MEMBERS.

(a) When the vessel's required number of certified ratings are not in compliance with the U.S. Coast Guard's certification, the wages of missing watchstanders shall be paid to the Unlicensed Personnel who perform the duties of the missing man unless the watch conforms to the U.S. Coast Guard certification by assigning qualified day workers or crew members from other watches to fill the shortage.

(b) There shall be no reduction in pay where crew members of a higher rating are assigned to replace crew members of a lesser rating.

SECTION 29. MONEY DRAWS & ALLOTMENTS.

Crew cash advances shall be put out the day before arrival in port, however no more frequently than once every seven (7) days. Upon request, the Unlicensed Personnel shall be granted advances at least once every seven (7) days. Such advances shall be made available to the Unlicensed Personnel not later than 4:00 p.m.

If requested, draws can be paid by check, allotment or, if available, direct deposit.

Valid overtime and approved subsistence and lodging claims shall be included in computing the amount upon which the seamen may draw.

Procedures shall be established on all vessels on foreign or intercoastal Articles whereby allotments or remittances may be made at the behest of the Unlicensed Personnel not less than once every fifteen (15) days if so requested.

SECTION 30. EXPLOSIVES.

On vessels carrying explosives in excess of fifty (50) long tons as permitted by law, the Company agrees to pay each member of the Unlicensed Personnel, in addition to their regular monthly wage, ten percent (10%) per month of such wages from the time the loading of the explosive cargo is started until the explosive cargo is completely discharged.

When the Unlicensed Personnel is required to work explosives at any time, they shall be paid for such work in addition to their regular monthly wages at the rate of ten dollars (\$10.00) per hour unless a higher rate is specified in Article II, Section 31.

For the purpose of this Agreement, explosives shall consist of the following items:

Poison Gases	Blasting Caps
Black Powder	Detonating Caps
Dynamite	Loaded Bombs
Nitro-Glycerin	Loaded shells of one pound or over, but not
T.N.T.	small arms ammunition

SECTION 31. PENALTY CARGOES.

(a) When members of the Unlicensed Personnel are required to clean holds in which lead concentrates, coal, coke or penalty cargoes are carried, they shall be paid at the rates prescribed in Article II, Section 22 (b), Penalty Rates. However, when holds have been cleaned by the Unlicensed Personnel after carrying penalty cargo, no overtime for cleaning will be paid for subsequent cleaning of holds unless another penalty cargo is carried.

(b) For the purpose of this Agreement, the following are classed as penalty cargoes:

IN BULK

Bones	Caustic Soda
Green Hides	Soda Ash
Manure	Creosoted Lumber

IN BAGS OR BULK

Gasoline (in any manner)	Bone Meal
Cyanide	Chloride of Lime
Super Phosphate	Lampblack
Cement	Carbon black
Greaves Cakes	Sulphur
Salt cake	Copra (3,000 tons)

(c) When sulphur in the amount of twenty-five percent (25%) or more of the deadweight carrying capacity is carried on a vessel, each member of the Unlicensed Personnel shall be paid extra compensation of ten dollars (\$10.00) per voyage.

SECTION 32. ADDITIONAL LABOR

(a) STANDBY WORK. When men are hired by the Company for standby work in port by the day, they shall be paid an hourly rate equal to the daily rate divided by eight for the first eight (8) hours. Eight (8) hours shall constitute a day's work. All work performed in excess of eight (8) hours in any twenty-four (24) hour period, shall be paid at the Overtime Rate and one-half (1/2) for the respective ratings. Men hired to perform standby work shall perform any work which shall be assigned to them by their superior officer, and they shall not be subject to any work rules set forth in this Agreement.

When standby work in any particular department is to be performed, an effort shall be made to obtain men with ratings in such department if they are available and are competent to perform such work.

Any man hired for standby work who reports when ordered shall be paid a minimum of eight (8) hours of pay for the first day and a minimum of four (4) hours for each day's work thereafter.

This section shall not be interpreted to conflict with any understanding that the Union might have with a Company whose practice is to hire relief crews while the vessel is in port.

(b) RIDING GANGS. The Company shall have the right, at any time, to determine the appropriate size of the work force required to complete the maintenance project. Any member of the Riding Gang reduced as a result of this determination will be provided transportation back to his original port of engagement. Any one accepting a position on the Riding Gang shall perform any Unlicensed general maintenance and repair duties assigned by the vessel. Riding Gang members shall work seven (7) days per week. Daily hours of work for the Riding Gang shall be 12 hours per day, Monday through Sunday, from:

0800 - 1200

1300 - 1700

1800 - 2200

However, these hours may be modified in the event the Riding Gang is engaged in tank cleaning. Maintenance work shall not be performed outside on deck during periods of darkness unless the work area is safely illuminated.

The utilization of Riding Gang members will not trigger any additional contractual crew costs such as, but not limited to, extra Steward Department compensation. Claims for loss of overtime by the ship's crew will only be honored when the work being performed by the Riding Gang member is work traditionally and historically performed by the ship's crew, and the crew member submitting the claim was available and did not refuse any overtime for the same period.

The work rule provisions of the Standard Freightship Agreement shall not apply to Riding Gangs. However, Riding Gang personnel shall be entitled to the same living conditions and social benefits provided for in the Agreement.

Members of the Riding Gang, shall be requested from the Union as Group I, Group II or Group III ratings. The rates of pay shall be as follows:

DAILY RATE	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Group I	259.61	270.00	280.80	289.22	297.90
Group II	233.90	247.93	257.85	265.58	273.55
Group III	185.89	187.75	191.50	197.25	203.17
OVERTIME RATE	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Group I	32.45	33.74	35.09	36.15	37.23
Group II	29.24	30.99	32.23	33.20	34.19
Group III	23.24	23.47	23.94	24.66	25.40

DAILY BASE BENEFIT RATE	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Group I	172.99	179.91	187.10	192.72	198.50
Group II	155.85	165.21	171.81	176.97	182.28
Group III	123.88	125.12	127.62	131.45	135.39

When work is performed in excess of 12 hours, they will be paid one and one-half times the hourly rate. The hourly rate is calculated by dividing the daily rate by 12. Upon completion of the assignment, the Company shall provide transportation for the Riding Gang back to the original port of engagement.

SECTION 33. LONGSHORE WORK BY CREW.

(a) In those ports where there are no longshoremen available, members of the Unlicensed Personnel may be required to drive winches for handling cargo or may be required to handle cargo. For such work, the Unlicensed Personnel shall be paid at the following rates.

(a.) LONG SHORE RATES					
(a.) 1. Monday through Friday ON WATCH	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Group I	28.30	29.43	30.61	31.52	32.47
Group II	19.88	21.08	21.92	22.58	23.25
Group III	14.44	14.58	14.88	15.32	15.78
(a.) 2. Monday through Friday OFF WATCH	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Group I	43.56	45.31	47.12	48.53	49.99
Group II	31.15	33.02	34.34	35.37	36.43
Group III	21.28	21.49	21.92	22.58	23.26
(a.) 3. Saturdays, Sundays & Holidays ANYTIME	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Group I	47.82	49.73	51.72	53.27	54.87
Group II	33.63	35.65	37.08	38.19	39.33
Group III	24.34	24.58	25.08	25.83	26.60

(b.) On tankers which are carrying grain, when crew members are required to unfasten butterworth plate nuts and/or remove the butterworth plates for the purpose of loading or discharging grain cargo, or to replace butterworth plates and/or fasten nuts upon completion of grain cargo work, they shall be entitled to compensation as provided for in this section. This section shall not be so construed as to be applicable to any work where longshoremen are not available due to labor trouble.

The above shall not apply for securing or shoring up cargo or spotting booms or cranes for longshoremen.

(c.) Anytime the Unlicensed Personnel is required to erect cargo partitions in the cargo holds after loading bananas or other cargoes or to dismantle such partitions prior to the discharge of such cargoes, the crew members engaged in such work shall be paid at the longshore rates specified above. The penalty specified shall only apply where cargo is involved and shall not apply to routine maintenance of such equipment.

(d.) Unlicensed Personnel required to hook up hoses for the discharge of liquid cargoes or to dismantle and secure the hoses after the cargo discharge shall be compensated at the rates prescribed in Article II, Section 22 (b), Penalty Rates.

(e.) When Unlicensed Personnel are required to perform work above the second tier of containers

the applicable Penalty Rate shall be payable.

SECTION 34. WORKING BALLAST.

When members of the Unlicensed Personnel are required to discharge ballast other than water ballast out of the holds, or handle or discharge ballast on deck, including washing sand ballast off the decks with hoses, they shall be paid at the rate prescribed in Article II, Section 22 (b), Penalty Rates.

SECTION 35. PORT TIME, ARRIVAL AND DEPARTURE.

(a.) A vessel shall be deemed to have arrived in port thirty (30) minutes after it has anchored or moored at/or in the vicinity of a port (or other place of loading or discharging) for the purpose of loading or discharging cargo, ballast, passengers, mail, undergoing repairs, fumigation, layup, awaiting orders or berth, bunkering alongside of a dock, loading or unloading containers whether empty or not. This provision shall not apply to emergency anchorage or mooring solely for reasons of safety.

(b.) The term "anchored or moored at/or in the vicinity of a port (or other place of loading or discharging)" shall cover any situation where the facts of the situation disclose that the vessel has, as its immediate destination, the specific port or other place of loading or discharging.

(c.) A vessel shall be deemed to have departed and port time terminated thirty (30) minutes prior to the time when mooring lines are cast off or the anchor is aweigh for the purpose of putting to sea directly.

(d.) Port time shall not apply while awaiting pilot, quarantine pratique, safe weather or tide. It is agreed, however, that in the case of awaiting pilot, quarantine and pratique, any such exception shall not apply where the delay is because the vessel is awaiting a berth and in any event shall only apply where the delay is caused by the arrival of the vessel during hours that the officials passing quarantine or pratique are not on duty and only for such limited period.

(e.) Port time conditions shall apply whether or not watches are broken.

SECTION 36. SHIFTING SHIP.

(a) After the vessel arrives in port and is secured to the dock any subsequent move solely in Inland waters shall be regarded as shifting ship and overtime paid at the applicable rate while such moves are performed on Saturdays, Sundays and Holidays, and when such work is performed in excess of eight (8) hours, Monday through Friday with the following exceptions.

- (1.) When sea watches are maintained, moves between the New York area and Albany, New York area and Bridgeport and vice versa shall not be considered a shift.
- (2.) Port Alfred to Montreal or vice versa.
- (3.) Port Alfred to Quebec or vice versa.
- (4.) Montreal to Quebec or vice versa.
- (5.) All moves from American ports to British Columbia ports or vice versa.
- (6.) Monticello to Buenos Aires to Rosario or points above or vice versa.
- (7.) Boston to New York or vice versa.
- (8.) New Orleans to Baton Rouge or vice versa.
- (9.) Norfolk to Baltimore or vice versa.
- (10.) All moves between ports on the St. Lawrence Seaway and/or the Great Lakes West of Montreal, except those moves which are less than eighty (80) miles.

(b.) Moves from Baltimore through the Chesapeake and Delaware Canal to Delaware River ports or vice versa, shall be considered a move of the ship and such work performed on Saturdays, Sundays and Holidays or in excess of eight (8) hours Monday through Friday, shall be paid for at the applicable rate.

(c.) A move from Honolulu to Pearl Harbor or vice versa shall be considered a shift of the vessel.

(d.) A move from Galveston to Houston or vice versa shall be considered a shift of the vessel. No movement of a vessel shall be considered a shift of ship until the vessel is in port as provided for in Article II, Section 35.

SECTION 37. RESTRICTION TO SHIP.

When a vessel has been in a foreign port where the crew was restricted to the ship and the Company claims that this restriction was enforced by the government of the port visited or either Federal, Military or Naval Authorities, the Company shall produce, if it is reasonably available, a copy of the restriction order of the government, Federal, Military or Naval Authorities. In lieu thereof, it may produce a proper entry in the official log book and must give sufficient notice in writing of the restriction to the Ship's Chairman. The

notice shall also be posted on the crew's bulletin board. If the Company is unable to produce evidence as provided herein to satisfy the Union of the validity of such restriction, the Unlicensed Personnel shall be compensated for having been restricted to the ship by the payment of overtime for the period of the restriction at the applicable Penalty Rate.

When a restriction occurs because of quarantine, immigration or customs procedures, a proper log entry shall suffice.

SECTION 38. SECURITY WATCHES.

Unlicensed Personnel may be required to stand security watches in port. If the vessel is anchored or moored to offshore buoys and the vessel's gangway is not being used, crew members assigned to such watches may be required to routinely check the deck area for security reasons or perform other security duties as outlined in the vessel's Vessel Security Plan.

SECTION 39. SAILING BOARD TIME.

(a) All Unlicensed Personnel shall report aboard at least one (1) hour before the scheduled sailing time. In the event any Unlicensed crew member fails to comply with this provision, the Company shall call the Union and the Union shall furnish a replacement. If the original crew member reports after the Company has called a replacement, the man shipped by the Union as such replacement shall receive two (2) days pay and transportation from the crew member who was late in reporting for duty.

(b) The sailing time shall be posted at the gangway on arrival when the vessel's stay in port is twelve (12) hours or less. When the stay exceeds twelve (12) hours, the sailing time shall be posted eight (8) hours prior to the scheduled sailing, if before midnight.

(c) The sailing board shall be posted no later than 5:00 p.m. on Friday when a vessel is scheduled to sail on a weekend between 5:00 p.m. Friday and 8:00 a.m. Monday. When a vessel arrives on a weekend between 5:00 p.m. Friday and 8:00 a.m. Monday, and is scheduled to sail prior to 8:00 a.m. Monday, the sailing board shall be posted not later than two (2) hours after arrival. If Friday is a Holiday, the sailing board shall be posted prior to the Holiday. Similarly, if Monday is a Holiday, then the following Tuesday shall be substituted in lieu of Monday. In the event the Company does not do this, the Penalty Rate in effect will be paid from the time the watch below is required to return until the time the vessel sails or 8:00 a.m. Monday, whichever is earlier. If the scheduled sailing is between midnight and 8:00 a.m., the sailing time shall be posted not later than 5:00 p.m.

(d) If the vessel's departure is delayed more than two hours and the new sailing time is not posted prior to the originally posted sailing time, the watch off duty shall receive compensation at the penalty rate from the time required to report to the time that the vessel sails. The penalty time prescribed above shall not apply if the sailing is delayed on account of weather such as rain, fog, cargo delays or any other condition beyond the vessel's control.

(e) This Section includes the watch on duty Saturday, Sunday and holidays.

(f) It shall be the crew member's responsibility to call a number provided by the vessel to insure that the original sailing time has not been changed. It is the vessel's responsibility to notify the individual if the sailing time has changed after the member has called in provided the crew member has provided a return call number.

(g) If the vessel in fact sails within two (2) hours from the posted sailing time, pursuant to which the Unlicensed crew member reported back on the vessel, there will be no penalty payment required.

(h) When a Company orders a replacement for which there is no vacancy on the vessel, the Company shall reimburse the seaman the equivalent of two (2) days pay plus transportation.

SECTION 40. SECURING VESSEL FOR SEA.

All vessels of the Company must be safely secured before leaving the harbor limits for any voyage.

Vessels sailing in the daytime must be safely secured before leaving the harbor limits. In the event the vessel is not safely secured before reaching the harbor limits, the vessel shall proceed to a safe anchorage and be secured before proceeding to sea. Vessels sailing after dark shall be safely secured before leaving the dock or may proceed to a safe anchorage to secure vessel before proceeding to sea. When lights can be maintained on the after deck, gear and hatches may be secured on this deck enroute to anchorage.

SECTION 41. LAUNCH SERVICE.

When a ship is anchored or tied up to a buoy for eight (8) hours or over, for the purpose outlined in

Article II, Section 35, each member of the Unlicensed Personnel while on his watch below shall be allowed one (1) round trip to shore at the Company's expense every twenty-four (24) hours.

The Master shall use his own judgment and, if in his opinion, the conditions are not safe, he shall not provide launch service. However, he shall, as usual, make his entries in the log as to the weather conditions and advise the Ship's Chairman accordingly. He shall get other data, if possible, such as weather reports to further back his decision.

When launch service is arranged for by the Company, the schedule shall be such that each and every member shall be given opportunity for a round trip as called for herein on his watch below.

In ports where regular boat service is not available, members of the Unlicensed Personnel may make their own arrangements for transportation and the Company agrees to reimburse either the crew member or the owner of the boat up to twenty-five dollars (\$25.00) per round trip per man carried once every twenty-four (24) hours.

A regular boat service shall be defined by the routine practice of shuttling crew for other vessels in the port with an inspected launch, certificated for passengers, insured and with a certificated crew engaged with a published launch schedule including times and prices to/from the anchorage/port. In ports where no such routine practice with published schedule exists, crew may make their own arrangements in accordance with this clause.

SECTION 42. REST PERIODS.

(a.) Monday through Friday, when the ship is under port working rules and sea watches have not been set and members of the Unlicensed Deck and Engine Personnel off duty are required to work overtime between midnight and 8:00 a.m., they shall be entitled to one (1) hour of rest for each hour actually worked. Such rest period shall be given at any time during the same working day. The rest period shall be in addition to cash overtime paid for the work performed between midnight and 8:00 a.m. If such rest period is not given, the men shall be entitled to additional compensation at the applicable Penalty Rate in lieu thereof. This shall not apply when sea watches are set the same day and before the rest period is completed.

This subsection shall not apply to men turning to on compensation at 6:00 a.m. or after.

(b.) Monday through Friday, on days of arrival, if members of the Unlicensed Deck or Engine Personnel off duty are required to perform work between midnight and 8:00 a.m., they shall be entitled to one (1) hour of rest for each hour worked. If such period of rest is not completed at 5:00 p.m. of the same day, compensation at the Penalty Rates shall be allowed for the uncompleted portion of such rest period.

(c.) This section shall apply in the case of day workers, both at sea and in port.

(d.) Where a seaman is entitled to a rest period under the provisions of Section 41, such rest period shall be granted during the time that he would normally be required to work in order to complete his working day.

(e.) The Boatswain may take a rest period when due, except in cases where the watch below is turned to on overtime.

SECTION 43. FRESH PROVISIONS.

(a.) An adequate supply of fruit juices shall be provided for the Unlicensed Personnel. Fresh fruit and vegetables will be furnished at every port touched where available, and if supply is possible, a sufficient amount to last until the next port or to last until the food would ordinarily, with good care, spoil. Shore bread shall be furnished at all U.S. ports when available.

Frozen foods shall be considered the equivalent of and serve the same purpose as fresh foods.

(b.) (1) Vessels making a foreign voyage shall store canned whole fresh milk or aseptically packaged milk at the rate of one (1) pint per man per day for the duration of the voyage.

(2.) While a vessel is in Continental U.S. ports, fresh milk is to be served three (3) times a day. Prior to a vessel departing from any domestic ports, going to another domestic port and/or a foreign port, forty (40) gallons of fresh milk must be placed on board.

(3.) After departure from the last Continental U.S. port and the supply of fresh milk or aseptically packaged milk has been consumed, canned whole fresh milk is to be served at breakfast only while at sea.

(4.) While in a foreign port, canned whole fresh milk, or aseptically packaged milk is to be served three (3) times a day as per agreement.

(5.) No purchase of milk shall be made in foreign ports while canned whole fresh milk, or aseptically packaged milk is available.

(c) If milk is provided for persons other than crew members, then additional milk must be supplied for such use.

The Union and the Company shall cooperate in establishing and instituting a Shipboard Safety and Health Program as a means toward reducing the occurrence of shipboard injuries and limiting potential liability.

SECTION 44. ROOM AND MEAL ALLOWANCE.

When board is not furnished to Unlicensed Personnel, they shall receive a meal allowance of six dollars (\$6.00) for breakfast, twelve dollars (\$12.00) for dinner and twenty dollars (\$20.00) for supper. Quarters allowance shall be forty dollars (\$40.00) per night on lodging claims in port. Lodging claims at sea shall be ten dollars (\$10.00) per night.

Room allowance, as provided in this Section, shall be allowed when:

(1.) Heat is not furnished in cold weather. When the outside temperature is 65 degrees (65) or lower for eight (8) consecutive hours, this provision shall apply.

(2.) Hot water is not available in crew's washroom for a period of twelve (12) or more consecutive hours.

(3.) On air conditioned vessels, when the room temperature is seventy-eight degrees (78) or above, and the air conditioning unit does not work in excess of eight (8) hours, this provision shall apply. If fans are installed, the penalty shall not be invoked. If fans do not now exist, suitable arrangement shall be made with the Union and Company for their installation.

(4.) Crew's quarters have been painted, and paint is not absolutely dry, and other suitable quarters are not furnished aboard.

(5.) At all times when vessel is on dry dock overnight and sanitary facilities are not supplied.

(6.) Linen is not issued upon men's request prior to 6:00 p.m. on the day the seaman joins the vessel.

(7.) Vessel is being fumigated and is not cleared before 9:00 p.m.

(8.) Men standing midnight to 8:00 a.m. watch on the same day the vessel is fumigated shall be entitled to room allowance regardless of when the vessel is cleared.

(9.) Work such as chipping, welding, riveting, hammering or other work of a similar nature is being performed in or about the crew's quarters between 8:00 p.m. and 6:00 a.m., except when the ship is in a dry-dock or shipyard period and the shipyard's operational necessities dictate the work schedule.

If such work outlined in (9) above is being performed in or around the quarters of the men who stand donkey watches, such men will be provided with other quarters or room allowance will be allowed.

Penalties claimed for lack of heat, air conditioning, hot water, etc., or because of noise as defined in (9) above, must be recorded on an eight (8) hour basis with the Ship's Master or other proper department head. Dates, time of reporting and temperatures involved should be made part of such record.

SECTION 45. MEAL HOURS, RELIEVING FOR MEALS.

The meal hours for the Unlicensed Personnel employed in the Deck and Engine Departments shall be as follows:

Breakfast	7:30 a.m. to 8:30 a.m.
Dinner	11:30 a.m. to 12:30 p.m.
Supper	5:00 p.m. to 6:00 p.m.

(a.) At sea or in port, the 4 to 8 watch shall relieve itself for supper.

(b.) Unlicensed Personnel standing watch that are relieved for meals are not entitled to a Penalty Meal Hour.

(c.) The 12 to 4 watch on sailing day is to be knocked off at 11:00 a.m. in order to eat at 11:30 a.m. and to be ready to go on watch at 12 noon.

(c.) These hours may be varied, but such variations shall not exceed one (1) hour either way, provided that one (1) unbroken hour shall be allowed at all times for dinner and supper when vessel is in port.

(d.) When the crew is called to work overtime before breakfast and work continues after 7:30 a.m., a full hour shall be allowed for breakfast, and if breakfast is not served by 8:00 a.m., overtime shall continue straight through until breakfast is served.

(e.) If one (1) unbroken hour is not given, the men involved shall receive one (1) hour's compensation at the Penalty Rate in lieu thereof.

(f.) When men off duty are working on overtime at sea or in port, they shall be allowed (1) one unbroken hour for meals. It is the intent of the parties that every effort shall be made to allow crewmembers their unbroken meal hour.

SECTION 46. MIDNIGHT LUNCH.

(a.) If the crew works as late as 9:00 p.m., coffee and night lunch shall be provided. If work continues after 9:00 p.m., fifteen (15) minutes shall be allowed for the coffee and night lunch, which time shall be included as overtime.

(b.) If the crew starts work at or before 9:00 p.m. and works continuous overtime until midnight, the men shall be provided with a lunch at midnight. If the work continues after midnight, one (1) unbroken hour shall be allowed for such lunch. However, it is the intent of the parties that every effort should be made to allow crewmembers to receive their full unbroken meal hour.

If the crew is broken out after 9:00 p.m. and works continuously for three (3) hours, a lunch shall be provided at the expiration of the three (3) hours if the work is to be continued. Otherwise, a night lunch shall be provided. However, it is the intent of the parties that every effort should be made to allow crewmembers to receive their full unbroken meal hour.

(d.) If the crew works as late as 3:00 a.m., coffee and night lunch shall be provided, and if work continues after 3:00 a.m., fifteen (15) minutes shall be allowed for coffee and night lunch, which time shall be included as overtime.

(e.) If the crew works as late as 6:00 a.m., coffee shall be provided, and if work continues after 6:00 a.m., fifteen (15) minutes shall be allowed for coffee, which time shall be included as overtime.

(f.) When a vessel is scheduled to depart at midnight, the midnight lunch hour may be shifted one (1) hour either way.

(g.) In the event the midnight lunch is not served, the men involved shall be paid the supper meal allowance in addition to the overtime provided for in paragraphs (b) and (c) above.

(h.) When the midnight lunch is to be served to five (5) men, one (1) cook shall perform the work. When from six (6) to ten (10) men are involved, one (1) cook and one (1) messman shall do the work. When more than ten (10) are involved, one (1) cook and two (2) messmen shall perform the work.

SECTION 47. COFFEE TIME.

(a.) All hands shall be allowed fifteen (15) minutes for coffee at 10:00 a.m. and 3:00 p.m., or at a convenient time near those hours.

(b.) When the crew is entitled to the thirty (30) minutes readiness period under Article II, Section 23, coffee shall be made by the watch or watchman and be ready at the time of calling, and allowed during the thirty (30) minutes of readiness period.

(c.) All hands working a continuous four (4) hour period of overtime shall be allowed a fifteen (15) minute coffee break approximately mid-way during the overtime period.

SECTION 48. CREW'S QUARTERS.

All quarters assigned for the use of the Unlicensed Personnel are to be kept free from vermin insofar as possible. This is to be accomplished through the use of extermination facilities provided by the Company, or fumigating the quarters every six (6) months with gas.

SECTION 49. CLEANLINESS OF QUARTERS.

The Unlicensed Personnel shall cooperate to the fullest in order to keep their respective living quarters clean and tidy at all times and maintain their quarters to recognized sanitary standards. At a minimum quarters shall be cleaned weekly. An hour of overtime shall be paid to each Unlicensed crew member each week for this work. In the event the crew's quarters are not cleaned in accordance with the recognized standards, and this is brought to the attention of the patrolman prior to payoff, then it is the duty of the patrolman to see that these quarters are cleaned by the crew members who live in the said quarters and to see that they are cleaned before paying off the ship.

SECTION 50. CREW EQUIPMENT.

The following items shall be supplied the Unlicensed Personnel employed on board vessels of the

Company:

- (1.) A suitable number of blankets.
- (2.) Bedding consisting of two white sheets, one spread, two white pillow slips, which shall be changed weekly.
- (3.) One face towel and one bath towel which shall be changed twice weekly.
- (4.) One cake of face soap with each towel change.
- (5.) Suitable mattresses and pillows shall be furnished. As mattresses wear out they shall be replaced.
- (6.) All dishes provided for the use of Unlicensed Personnel shall be crockery.
- (7.) Laundry detergent and one cake of Lava soap or other suitable hand cleaner weekly.
- (8.) Cots shall be supplied to the Unlicensed Personnel while in the tropics, except on fully air-conditioned vessels.
- (9.) Two twelve-inch fans shall be furnished in forecastles occupied by two or more Unlicensed Personnel, and one sixteen-inch fan in all forecastles occupied by one member of the Unlicensed Personnel. This shall not apply to air-conditioned vessels.

Any member willfully damaging or destroying linen shall be held accountable for same. When full linen is not issued, men shall receive one (1) hour overtime at their respective Overtime Rate as specified in Article II, Section 22 (b.) each week for washing their own linen. The Steward shall not issue clean linen to any individual crew member until such member has turned in his soiled linen.

SECTION 51. VENTILATION.

All quarters assigned to the Unlicensed Personnel and all messrooms provided for their use shall be adequately screened and ventilated, and a sufficient number of fans to secure ventilation shall be provided.

SECTION 52. MESSROOM.

Each vessel shall be furnished with a messroom for the accommodation of the crew, such messroom or messrooms to be in each case so constructed as to afford sitting room for all and to be so situated as to afford full protection from the weather and from heat and odors arising from the vessel's engine room, fireroom, holds and toilets.

SECTION 53. WASHROOMS.

Adequate washrooms and lavatories shall be made available for the Unlicensed Personnel of each department, to be equipped with a sufficient number of hot and cold fresh water showers.

SECTION 54. LOCKERS.

A sufficient number of lockers shall be provided so that each employee shall have one (1) locker of full length wherever space permits, with sufficient space to stow a reasonable amount of gear and personal effects.

SECTION 55. UNIFORMS AND CLOTHING.

When uniforms are required to be worn by Unlicensed Personnel aboard any vessel, they shall be provided at the company's expense. Uniforms may only be required during working hours or while in port in common spaces.

Unlicensed Personnel are required to report on board with clothing required for their rating, trade and expected weather conditions, including steel-toed shoes, during their tour.

SECTION 56. ELECTRIC REFRIGERATOR, ELECTRIC WASHING MACHINE AND ELECTRIC CLOTHES DRYER.

Electric washing machines and dryers and a refrigerator shall be furnished for use of the Unlicensed Personnel on all vessels. On vessels presently without clothes dryers, preparations will be made for installation upon arrival at the port where suitable dryers are available, provided the above mentioned conditions are met. The location of these items shall be determined by the Company. Any necessary repairs requiring replacement parts may be withheld until the vessel arrives at a port where parts are available.

SECTION 57. JURY AND PORTAL TOILETS.

When necessary, jury toilets shall be rigged in an area most suitable to comply with proper sanitary

standards.

When portal toilets are required, those ratings normally assigned to sanitary duties such as wiper, ordinary seaman, messman may be required to mop and provide the sanitary supplies for such units during routine hours without the payment of overtime. However, any work involving removal or replacement of the tanks shall be paid at the applicable overtime rate. The proper department head shall determine the need for tank changes in keeping with proper sanitary standards.

SECTION 58. TRANSPORTATION AND PAYING OFF PROCEDURE.

(1.) (a.) Vessels on foreign voyages shall be signed on for one (1) voyage for a term of time not exceeding twelve (12) calendar months. If a replacement is available, seamen on all vessels on foreign Articles that remain outside the Continental United States for a period in excess of six (6) months shall have the option of requesting transportation upon having attained six (6) months employment aboard the vessel unless the vessel is scheduled to depart to the Continental United States within ten (10) days after arrival at the next port of call. This provision shall not apply to vessels waiting to load or loading cargo in Persian Gulf ports. Under such circumstances, the seamen shall be paid off, if requested, at the next discharge port if a replacement is available. This provision applies only to seamen joining and/or dispatched from a vessel in the Continental United States, Hawaii, Puerto Rico, Alaska and/or the U.S. Virgin Islands. Companies operating vessels in shuttle service shall have the option of terminating Articles after six (6) months.

(b.) It is also agreed that, except as provided herein, economy class air transportation shall be provided to only those men who leave the vessel and who have completed their assigned contractual tour of duty. When transportation is payable, all reasonable transportation expenses at termination of employment shall be reimbursed upon submission of receipts to the Company. Wages and subsistence to port of original engagement in the United States will be paid for international air travel in excess of five (5) hours.

(c.) Transportation will not be payable if the vessel departs from the final port of discharge within ten (10) days after inbound cargo is completely discharged or within ten (10) days after the completion of the assigned tour of duty to return to the port of engagement.

(d.) Except as provided herein, transportation shall be paid to all crew members upon completion of their assigned tours of duty.

(e.) Transportation as provided herein shall not apply when the arrival at the first port is for the purpose of securing additional bunkers, stores or making emergency repairs of not more than seven (7) days duration, Articles or the tour of duty shall continue until the vessel can proceed to another Continental United States port.

2. Notwithstanding any other provision of the Agreement, any member of the Unlicensed Personnel will be allowed to pay off the vessel in any port in the Continental United States, Hawaii, Guam, or Puerto Rico upon seventy-two (72) hours notice to the Master prior to the scheduled sailing of the vessel.

At the Master's discretion he shall be allowed to discharge any member of the Unlicensed Personnel by mutual consent as circumstances permit. If the seaman exercises his right to be paid off, as provided for in this subsection, transportation provisions shall not be applicable to those discharged for cause, unless they have earned transportation. Transportation provisions shall also not be applicable if the discharge is due to:

(a.) Drunkenness or use of alcohol.

(b.) Use, possession or sale of narcotics or controlled substances.

(c.) Use or possession of dangerous weapons or substances.

(d.) Physical assault.

(e.) Malicious destruction of property.

(f.) Gross Misconduct [(Inclusive of failure to properly wear Personal Protective Equipment (PPE)]

Should the Union object to the discharge, the matter shall be handled in accordance with grievance procedure.

3. Applicable operations regulations shall be effective on G.A.A. vessels.

4. When air transportation is payable, at the commencement and/or termination of employment the Company shall reimburse the crew member to cover transportation to and from the airport. Upon submission of a bona fide receipt, crew members shall be reimbursed for reasonable travel expenses above the ten dollar minimum.

5. The original port of engagement as used herein shall mean the port in the Continental United States, Hawaii or Puerto Rico from which the crew member was dispatched by the Union.

6. On vessels where the crew is employed by or on contract to the Federal Government, MAC

transportation, when provided, shall be acceptable.

7. The Company or its designated agents shall provide the Union's Manpower Office via email (Manpower@seafarers.org) with seventy-two (72) hours notice of a scheduled pay off in port or a notice of arrival seventy-two (72) hours prior to arrival in the first U.S. domestic port, including Guam, Hawaii and Puerto Rico after a payoff at sea.

8. Seamen accepting transportation to join a vessel who fail to complete the tour of duty for which they were hired shall be subject to the disciplinary procedures specified in Rule 8A, Subsection 11 of the Shipping Rules.

9. Seaman shall be required to remain on board until such time as they are properly relieved, unless given written authorization to depart by the Captain.

10. It is also agreed that for domestic voyages, except as provided herein, economy class air transportation or cash equivalent shall be provided to only those men who leave the vessel and who have completed their assigned contractual tour of duty.

11. In ports close together such as, but not limited to, New York to Philadelphia, Seattle to Longview, Jacksonville to Charleston or New Orleans to Baton Rouge or vice versa, bus or rail transportation may be used as mutually agreed to by the Union and Company Representative at payoff.

SECTION 59. RETURN TO PORT OF ENGAGEMENT.

(a.) In the event a ship of the Company is sold, interned, lost, laid up, run aground or is stranded and the Unlicensed Personnel is required to leave the vessel by reason thereof, the crew shall be given transportation back to the port of engagement with subsistence, room and wages, at the time of payoff, as per Article II, Section 60, of this Agreement. When room and subsistence is not furnished aboard the vessel, room and meal allowance will be paid as prescribed in Article II, Section 44, until the Unlicensed Personnel is furnished repatriation by train, vessel or commercially operated airplanes, equivalent to the equipment of a regularly scheduled airline, or in the event such airplane transportation is not equivalent to a regularly scheduled airline, they shall be paid the difference in cash.

(b.) The port of engagement of the seaman is the port in the Continental United States, Hawaii or Puerto Rico from which the crew member was first dispatched by the Union.

(c.) When a seaman is entitled to transportation under this Section, he shall receive available economy class air transportation including taxi to his port of engagement. However, if the crew is terminated in a foreign port, they shall be repatriated by the available economy class air transportation. If the vessel lays up in a port outside the area where the seaman originally joined the vessel, he shall be entitled to one (1) day's pay and the meal allowance prescribed in Article II, Section 44, in addition to his transportation. When air transportation is payable, at the termination of employment, ten dollars (\$10.00) shall be paid to the crew member to cover transportation to the airport. In ports close together such as, but not limited to, New York to Philadelphia, Seattle to Longview, New Orleans to Mobile or New Orleans to Baton Rouge or vice versa, bus or rail transportation may be used as mutually agreed to by the Union and Company representatives at the payoff.

(d.) On vessels where the Unlicensed Personnel are not properly advised in writing prior to the signing of Articles that the vessel is to be sold, transferred or scrapped, the Company shall be responsible for any excess baggage charges incurred in repatriation for the seaman's personal gear and tools normally used in the performance of his duties. Personal gear shall not include musical instruments, hi-fi or T.V. sets, radios and souvenirs acquired during the voyage.

(e.) The Company shall provide to the Union on the thirtieth (30th) day of every month, or as soon as practical thereafter, verification of employment for each of the Unlicensed crew members leaving the ship, indicating their date of hire and date of termination. This subsection shall not apply to companies using the SMIS.net portal.

SECTION 60. TRAVELING.

Members of the Union, when transported by the Company during the course of their employment, shall be provided with economy class air travel. Where meals are not provided by the carrier, subsistence shall be paid as per Article II, Section 44. When traveling by air the cost for up to two (2) pieces of luggage shall be covered by the Company up to the airline's maximum allowed weight. Overweight and excess baggage charges shall be for the individual's account unless such charges are for transportation of Company requested articles. When traveling by ship is involved, men shall be provided with second class transportation.

When transportation is payable, all reasonable transportation expenses at commencement and/or termination of employment shall be reimbursed upon submission of receipts to the Company.

Prior to dispatching personnel to a vessel where transportation is involved, all arrangements regarding transportation are to be resolved by the Union and the Company or its designated Agents.

SECTION 61. VESSEL IN IDLE STATUS.

When a vessel is inactive in a United States port for any reason for a period of seven (7) days or less, the Unlicensed Personnel shall be kept on board at the regular monthly rate of pay. However, when it is expected that said vessel will be idle for a period in excess of seven (7) days, the Unlicensed Personnel may be reduced on arrival. Should the vessel resume service within seven (7) days, the vessel's Unlicensed Personnel who return to the vessel shall receive wages, room and meal allowances for the period for which they were laid off.

The above notwithstanding, the Company may, at its option, lay off the crew for periods of less than seven (7) days. However, if this option is exercised, in addition to the air transportation back to their original port, the Unlicensed Personnel shall also receive air transportation back to the vessel if they are entitled, pursuant to the Shipping Rules, to reclaim their job when the vessel is reactivated.

SECTION 62. FULL COMPLEMENT WHILE CARGO IS BEING WORKED.

A full complement of Unlicensed Personnel shall be maintained aboard vessel at all times cargo is being worked.

The Company shall be in compliance with this section when there is less than a full complement, Saturdays, Sundays and on Holidays, due to voluntary termination or discharge for cause or absence of members of the Unlicensed Personnel who should have normally been on duty. Likewise, compliance shall be in effect when there is less than a full complement aboard due to a condition arising as the result of a marine casualty.

SECTION 63. MANNING SCALE.

It is agreed and understood that the present manning scale carried on the Company's vessel shall not be changed unless such changes are mutually agreed to by both the Union and the Company. It is mutually agreed that if the Company makes any change in the manning scale of Licensed Personnel either from the initial complement on a newly built or acquired vessel or from the present complement on vessels owned and/or operated by the Company on the date of this contract, the Union has the right to negotiate concerning any effect that such change may have on the Unlicensed Personnel.

The Company will participate in the Union's Unlicensed Apprentice Program and will carry Unlicensed Apprentices when requested by the Union and berths are available.

SECTION 64. INTERNATIONAL DATE LINE.

If a vessel crosses the International Date Line from east to west, and a Saturday, Sunday or Holiday is lost, all day workers shall observe the following Monday or the day following as a Holiday. Watchstanders will be paid overtime in accordance with the principle of Saturday and Sunday overtime at sea. If the Sunday which is lost is also a Holiday, or if the following Monday is a Holiday, only one day shall be observed.

However, in crossing the International Date Line from west to east, if an extra Saturday, Sunday or Holiday is picked up, only one of such Saturdays, Sundays or Holidays shall be observed and all Unlicensed Personnel will be required to work without overtime on the so-called second Saturday, Sunday or Holiday.

SECTION 65. NEW EQUIPMENT NOT CARRIED AT PRESENT, NEW CONSTRUCTION AND RECONVERSION.

In the event the Company is to build new ships, acquire new ships or convert old ships, it is agreed that prior to the commencement of construction or conversion, the Union and the Company shall meet to negotiate manning scales, quarters, recreational facilities and all equipment and provisions to be furnished for, or used by, the Unlicensed Personnel.

In the event the Company should install new or different equipment than that presently in use and covered by this Agreement, the Company and the Union shall meet immediately to negotiate working rules to cover such vessel or equipment.

SECTION 66. CALENDAR DAY.

For the purpose of this Agreement, the calendar day shall be from midnight to midnight.

SECTION 67. WAR ZONE.

In case any vessel of the Company traverses waters adjacent to or in the proximity of a declared or undeclared war or a state of hostilities, it is hereby agreed that a petition on the part of the Union for the opening of negotiations for added remuneration, bonuses and/or insurances, shall in no way be deemed cause for the termination of this Agreement.

SECTION 68. COPIES OF AGREEMENTS TO BE FURNISHED.

Copies of this Agreement shall be furnished to the Master, Chief Engineer, Ship's Committee and all Unlicensed Personnel, when available and requested.

SECTION 69. LOGGING.

Where the Master exercises his prerogative under maritime law by logging a man for missing his regular work or watch, he shall not log the man more than one (1) day for one (1) day. This section shall not be deemed to prejudice the authority of the Master, or the requirements of obedience of the Unlicensed Personnel, described elsewhere in this contract, except as specifically herein provided.

SECTION 70. RETURN OF DECEASED SEAMAN.

If a seaman dies at any time during the voyage, the Company shall so notify the next of kin as designated on the shipping Articles. In the event a seaman dies in a port not in the Continental United States, or if he dies at sea and his body is delivered to a port not in the Continental United States, in which port facilities for preservation of the body for shipment and burial are available, and there are no legal restrictions contrary thereto, if the said next of kin requests the return of the body and agrees to assume responsibility for the body at the port of engagement, the Company shall defray the total cost of preserving and returning the body to the original port of engagement.

SECTION 71. TIME OFF - FREIGHT VESSELS.

(a.) Upon completion of a foreign, nearby foreign, intercoastal or coastwise voyage, all of the assigned Unlicensed Personnel who will remain on board and make the next voyage shall, upon request have time off (not to exceed eight (8) working hours) in the payoff port or such other ports as may be mutually agreed upon between the Master and the crew member. The voyage shall commence at the time of signing of Articles and continue until Articles are terminated. This time off need not be granted more often than once in each thirty (30) day period.

It is understood that the Company is obligated to provide replacements for those relieved if necessary to maintain proper safety standards and services, and if the vessel is in a port where the Union maintains a hiring hall and qualified personnel are available. It is further understood that the number of replacements is within the complete discretion of the Company. Such replacements are to be paid at existing standby rates and shall be governed by the work rules defined in Article II, Section 32. Companies with Shore Gangs may provide necessary replacements from the Shore Gang. This provision shall not be applicable during regulatory inspections.

(1.) If a man selects a port for time off where it is impossible to grant eight (8) hours off, he only gets what is available and no accumulation is carried forward.

(2.) If members of the Steward Department are off while the vessel is not feeding, no overtime is payable to them.

(3.) In the Deck Department, those accepting time off under this Section shall not be required to report for shifting of ship during time off or during their watch below.

(4.) Alternation of time off may be applied in the Deck Department provided the vessel's stay in port is long enough to comply with the intent of the time off Section.

(5.) Where the seaman does not receive his day off as required above, he shall receive one (1) day's pay in lieu thereof. If he receives only four (4) hours or less of his time off, he shall receive one-half (1/2) day's pay in lieu thereof. This clause shall not apply where the seaman has accepted overtime in lieu of time off nor when time off was offered by the Company and refused.

(6.) Qualified day workers may be required to relieve watchstanders for purposes of time off. They shall be paid at their respective Overtime Rates after 5:00 p.m. and before 8:00 a.m., Monday through Friday, and at their Overtime Rates on Saturdays, Sundays and Holidays.

(7.) The penalties defined in Item 5 above shall not be applicable for the current voyage if the vessel lays up in the port of payoff.

(b.) As circumstances permit, on all vessels which are shuttling, all Unlicensed Personnel who will remain on board shall be entitled to time off (not to exceed eight (8) hours) upon completion of each sixty (60) days of continuous employment in such port as is mutually agreed upon between the Master and the crew member. The voyage shall commence upon the signing of the Articles and continue until the Articles are terminated. When the seaman does not receive the day(s) off as required above, he shall receive one (1) day's pay for each day or days in lieu thereof. If he receives only four (4) hours or less of his time off, he shall receive one-half (1/2) day's pay in lieu thereof. The receipt of payment in lieu of day(s) off shall be contingent upon the seaman's completion of the Articles.

SECTION 72. TELEVISION SETS AND INTERNET CONNECTIVITY.

(a.) The Company shall provide a television set for the Unlicensed Personnel on all vessels covered by this Agreement.

(b.) Such television set shall be a nationally known brand with no less than a 36-inch color screen. The maintenance and repair of these sets including the satellite service/antennae shall be the responsibility of the Company. The Company shall not be responsible for damage caused by the improper acts of any Unlicensed crew member.

(c.) An appropriate DVD player shall be installed aboard all vessels for the exclusive use of the Unlicensed Personnel.

Maintenance, repair and providing DVDs shall be the responsibility of the Company. However, they shall not be responsible for damage caused by improper acts of the Unlicensed Personnel.

(d) The Company and the Union both recognize that email and internet access – i.e. connectivity, is important to the quality of life aboard ships. To this end both parties agree to the following:

1. Due to different trade routes, types of ships and equipment not all companies will meet the internet connectivity requirement in the same manner. In fact, some ships in the same company might meet the requirement differently.
 1. All SIU crew members will have bandwidth access to the internet.
 2. All crew will have the same personal internet access
 3. Internet access will allow crew members to, at a minimum, perform the following actions:
 - a. Send and receive email and pictures (within company's data/file size limitations)
 - b. Conduct banking transactions
 - c. Pay bills on line
 - d. Get news
 - e. Download documents (within company's data / file size limitations)
 4. Due to bandwidth constrictions streaming may be limited - be it live games, movies, or TV.
 5. All crew are required to follow all company internet policies, including all SASH prevention guidelines and policies.
 6. All crew members are required to follow the individual Company's internet connectivity guidelines to ensure that the ship has enough bandwidth to accommodate all crew members. Following the Company guidelines will improve internet experience for all crew.

SECTION 73. CREW'S WAGES.

Unlicensed Personnel will be paid on a day for day basis on all contracted vessels, regardless of the type of voyage.

SECTION 74. CREW MAIL.

The Company agrees that it will forward by first-class mail all first-class letters addressed to crew members sent to offices of the Company, provided they bear the name of the vessel on which the Unlicensed seaman is serving. If available, the Company agrees that unlicensed personnel serving aboard the vessel shall

be provided access to send and receive E-mail in accordance with the rules and regulations set forth in the company's policies and procedures.

SECTION 75. VESSEL COMMUNICATION.

The Company shall notify the Union Headquarters any time a vessel fails to communicate with the Company within any forty-eight (48) hour period.

SECTION 76. SMOKING REGULATIONS.

Smoking is prohibited except in designated smoking areas. The designation of smoking areas shall be Company policy; however, the crew lounge, and crew dining areas shall remain smoke-free.

SECTION 77. PYRAMIDING OF OVERTIME.

There shall be no duplication or pyramiding of overtime except where specifically provided for.

SECTION 78. MARITIME LABOUR CONVENTION

To the extent provided by law and regulation, the parties agree that, where applicable, this collective bargaining agreement sets the terms and conditions of employment at standards no less favorable than those laid out in the Maritime Labour Convention of 2006 (MLC). The parties understand that this agreement gives effect to and is conducive to the full achievement of the general object and purpose of the provisions of Part A of the MLC, where applicable. In particular, hours of work and rest stipulated by this agreement and established by safe work practices are hereby deemed to be substantially equivalent to the MLC, or provide for reasonable exceptions that, as far as possible, follow the provisions of Standard A 2.3 of the MLC.

The following piracy and armed robbery-related Amendments to the Code of the MLC, 2006, relating to Regulation 2.1 shall apply:

1. Standard A2.1 – Seafarers' Employment Agreements
2. Standard A2.2 – Wages
3. Standard B2.5.1 – Entitlement

ARTICLE III. DECK DEPARTMENT

SECTION 1. WAGES.

The monthly rate of pay for the Unlicensed Personnel in the Deck Department, when the respective ratings are carried, shall be as follows:

Wages - Deck Department	Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
Boatswain	6163.07	6409.60	6665.98	6865.96	7071.94
Carpenter	5015.17	5215.77	5424.40	5587.14	5754.75
Carpenter Maintenance	5015.17	5215.77	5424.40	5587.14	5754.75
A.B. Maintenance	4634.61	4820.00	5012.80	5163.18	5318.08
Quartermaster	4496.13	4765.90	4956.53	5105.23	5258.39
Able Seaman (Green)	4268.65	4524.77	4705.76	4846.94	4992.35
Able Seaman (Blue)	3970.84	4209.09	4377.45	4508.77	4644.04
O.S. Maintenance	3302.33	3335.36	3402.06	3504.13	3609.25
Ordinary Seaman	3089.53	3120.43	3182.84	3278.32	3376.67

*In order to be employed as an AB Maintenance an Able-Bodied Seaman must possess a Green ticket endorsement.

When the Carpenter or Carpenter Maintenance is required, in writing by the Company, to furnish his own tools, he shall be paid twenty dollars (\$20.00) in addition to his base wage.

SECTION 2. DIVISION OF OVERTIME.

All overtime shall be divided as equally as possible among the members of the Deck Crew. However, specialized work requiring special skills shall not be included in this provision. This rule shall not apply to those men who do not make themselves available to work overtime. In any event, the Boatswain shall be allowed to make as many hours overtime as the high man's overtime hours in the Deck Department, except where such overtime has been paid for routine sea watches. The Boatswain shall have the right to stand weekend gangway watch in turn with the rest of the Deck Department. If he fails to exercise such right he has no claim for high man's overtime.

On vessels carrying the specific rating of Quartermaster, whose routine duties include the standing of gangway watches; the Boatswain or any other Unlicensed Deck Department member shall not be required to stand gangway watches where Quartermasters are available for such assignment. If the Boatswain is required to work with and supervise the watch on deck, Saturdays, Sundays or Holidays, for which the watch on deck receives additional overtime, he shall receive the same amount of overtime per hour as paid to a member of the watch on deck or his Overtime Rate, whichever is higher.

SECTION 3. DIVISION OF WATCHES.

(a.) The sailors while at sea shall be divided into three (3) watches which shall be kept on duty successively for the performance of ordinary work incidental to the sailing and maintenance of the vessel.

(b.) Except where mutually agreed between the Union and the Company, not less than three (3) seamen shall constitute a complete sea watch at all times. When the watch complement is not in compliance with the vessel's U.S. Coast Guard certification, the wages of the missing watchstander shall be paid to the Unlicensed Personnel who perform the duties of the missing man unless the watch conforms to the U.S. Coast Guard certification by assigning qualified day workers or crew members from other watches to fill the shortage.

(c.) When the watch below is called out to work, they shall be paid overtime for such work at the rates specified in the Agreement except for such work as defined in Article II, Section 19.

SECTION 4. BOATSWAIN OR CARPENTER STANDING WATCH.

(a.) If the Boatswain or Carpenter is required to stand watch due to a shortage of men, such watches stood between the hours of 5:00 p.m. and 8:00 a.m., Monday through Friday, and from midnight to midnight on Saturdays, Sundays or Holidays, shall be paid for at their applicable rate. However, all such watches shall be in addition to their regular duties as Boatswain or Carpenter. In such cases, there shall be no division of wages except as provided for in Section 3, (b) above.

(b.) An A.B. Maintenance may be required to replace any Unlicensed member of the Deck Department when said member is sick or missing, without the payment of overtime, Monday through Friday.

(c.) On vessels where the Bosun is listed on the manning scale as a Bosun/O.S. or Bosun/A.B., he shall be assigned to the 8 to 12 watch. On Monday through Friday, he shall be paid a minimum of two (2) hours overtime at the regular Overtime Rate between the hours of 1:00 p.m. and 5:00 p.m. for supervising and/or working with the watch on deck. If the work involved requires payment of a higher rate of overtime, such rate shall be applicable.

Bosun/Watchstanders shall be assigned to work with the watch below at all times. At such time a qualified member of the watch below will be assigned to perform the routine watch duties of the Bosun.

SECTION 5. SETTING WATCHES.

Sea watches shall be set not later than noon on sailing day. When the vessel sails before noon, watches shall be set when all lines are on board and vessel is all clear of the dock.

SECTION 6. BREAKING WATCHES AND WORK IN PORT.

(a.) In all ports, watches shall be broken except in those ports where stay of vessel will not exceed twenty-four (24) hours, then watches shall run consecutively.

Any part of a sea watch from midnight until 8:00 a.m. on day of arrival, shall constitute a complete watch. This shall not apply to men required for gangway watch. When arrival occurs on a Saturday, Sunday or Holiday, overtime shall only be paid for hours actually worked on such watch.

(b.) In port, when sea watches are broken, the hours of labor shall be from 8:00 a.m. to 12 noon and 1:00 p.m. to 5:00 p.m., Monday through Friday. No additional compensation shall be paid for standing routine gangway watches, security watches and routine sea watches in port, except when stood in excess of eight (8) hours, Monday through Friday and on Saturdays, Sundays and Holidays.

(c.) On container ships, maintenance and repair on stacking frames shall be routine work for the Deck Department. On LASH vessels, maintenance of the lighters shall be routine for the Deck Department.

(d.) On RO-RO Class vessels, it shall be the routine duty of the Deck Department to rig and un-rig all ramps leading from the vessel to the dock.

SECTION 7. MEN STANDING SEA WATCHES.

(a.) Men standing sea watches shall be paid overtime at the applicable rate for Saturday, Sunday and Holiday watches for all work in excess of eight (8) hours between midnight and midnight each day. No work except for the safe navigation of the vessel is to be done after 5:00 p.m. and before 8:00 a.m., Monday through Friday, and on Saturdays, Sundays and Holidays without the payment of overtime.

(b.) Except as otherwise specifically provided, if a man standing regular watch at sea or in port on Saturdays, Sundays and Holidays is required to do work other than routine work for the safe navigation of the vessel, they shall be paid at the rates specified in Article II, Section 22 (b), Penalty Rates, with the following exceptions:

- (1.) Routine work for the safe navigation of the vessel.
- (2.) Cleaning quarters.
- (3.) Docking and undocking.

(c.) If a man standing sea watches on Saturdays, Sundays or Holidays is required to handle explosives, clean holds, do longshore work, work ballast, do carpenter work, secure cargo, lay dunnage, handle mail or baggage, handle stores, use paint spray guns or sand-blasting equipment, tend livestock, handle garbage, remove soot from the stack, clean bilges or clean up oil spills, clean tanks or such work as defined in Article III, Section 33., Additional Work, he shall be paid only the rate as specified in this Agreement for that type of work.

SECTION 8. RELIEVING HELMSMAN.

No mate shall relieve the Helmsman except in an emergency or for safety reasons. When the vessel is underway on automatic steering, the helmsman can be utilized to perform routine maintenance on the bridge, Monday through Friday, 8 a.m. to 5 p.m. Such work shall be restricted to the bridge and bridge wings. No work shall be performed on stagings or aloft. In the event the Mate relieves the helmsman in a non-emergency situation, or the helmsman is assigned to perform routine maintenance in areas other than the bridge and bridge wings, or is assigned to non-routine maintenance work, he shall be paid at the rate specified in Article II, Section 22. (b.) Penalty Rates.

Except for periods while the vessel is maneuvering, the Quartermaster or Helmsman will be permitted to smoke provided the wheelhouse is a designated smoking area. The usual safety and sanitary practices are to be observed.

SECTION 9. SEA WATCHES IN PORT.

When sea watches are in effect, all members of each respective watch shall be on duty and shall be paid the Overtime Rate Saturdays, Sundays and Holidays.

SECTION 10. GANGWAY WATCHES.

(a.) In all ports when watches are broken, a gangway watch shall be maintained at all times. A sailor shall be assigned to maintain this watch and eight (8) hours shall constitute a watch. On day of arrival, sea watches for men who are to stand gangway watches shall be broken at midnight when stay of vessel is to exceed twenty-four (24) hours. On day of departure, sea watches for men standing gangway watch shall be set at midnight prior to scheduled sailing time. The Overtime Rate shall be paid for watches stood from midnight to midnight on Saturdays, Sundays and Holidays. Sailors standing gangway watches shall be required to care for cargo lights, raise or lower gangway, ensign, tend gangway lights and ropes, handle lines, call the Deck Watches and Steward Department and turn off and on the deck lights and anchor lights. On vessels carrying the specific rating of Quartermaster, such work as is outlined above shall be performed by the Quartermaster where such rating is available for assignment.

(b.) Gangway watches shall not be maintained while ship is underway during the shifting of the vessel.

(c.) The following companies will be considered in compliance when they maintain their own shoreside gangway watches only in the ports listed below.

Waterman Steamship Corp.—New York, New Orleans, Baltimore and Mobile.

When a vessel is in port in accordance with the provisions of Article II, Section 35, but the ship's gangway is not in use because of local port conditions, a security watch shall be instituted in accordance with the provisions of Article II, Section 38.

(d.) When the vessel is in the shipyard, or similar inactive status, the Company will not be required to maintain a gangway watch and may at its sole discretion utilize the services of a security guard.

SECTION 11. DAY WORKERS.

(a.) The following ratings shall be classified as day workers: Boatswain, Carpenter, Storekeeper and Deck Maintenance.

(b.) The working hours at sea and in port for all men classified as day workers shall be from 8:00 a.m. to 12 Noon, and 1:00 p.m. to 5:00 p.m., Monday through Friday. Any work performed by day men outside of these hours shall be paid at their applicable rate, except for such work as defined in Article II, Section 19.

(c.) When, in accordance with Article II, Section 45 (c), the meal hours are changed, the hours of work shall be changed accordingly.

(d.) On vessels manned with at least a Bosun/WS, and five (5) Able Seaman, the Bosun may be designated as a dayworker and two (2) Able Seaman may be designated as AB Deck Maintenance. The Deck department manning scale shall at all times include three (3) AB Watchstanders.

SECTION 12. CARPENTER'S DUTIES.

(a.) Routine duties of the Carpenter shall include the following:

- (1.) Painting, chipping and cleaning the windlass.
- (2.) Sounding bilges, fresh water and ballast tanks daily.
- (3.) Shoring-up cargo.

(4.) Maintenance work such as repairing locks, installing porthole gaskets, fixing and fastening steel lockers, and all blocks.

(5.) Such other work as is customary for Carpenter to perform.

(b.) No overtime shall be paid to members of the Deck Department who are required to assist the Carpenter during their regular hours.

(c.) Routine soundings shall be taken on Saturdays, Sundays and Holidays at sea. Except in an emergency, only members of the Unlicensed Deck Department shall take soundings in the absence of the Carpenter and Boatswain. After 5:00 p.m. and before 8:00 a.m. weekdays and on Saturdays, Sundays or Holidays, they shall be paid at their applicable rate.

(d.) When no Carpenter is carried, the Boatswain shall perform the duties of the Carpenter.

(e.) When no Carpenter is carried, driving wedges and chipping, painting or cleaning the windlass, repairing and maintenance of all blocks shall not be considered Carpenter work.

(f.) When a Carpenter becomes ill or injured, a Deck Maintenance man may be assigned to perform carpenter work for which he shall be paid his overtime rate. If the Carpenter remains incapacitated for a period in excess of three (3) days, the Deck Maintenance man may then be promoted and shall receive the differential in pay only.

(g.) On vessels carrying the rating of Carpenter Maintenance, he shall perform the routine Carpenter's duties specified above. At the discretion of the Chief Officer, he may be assigned to perform routine deck maintenance under the direction of the Boatswain.

SECTION 13. HANDLING MOORING LINES.

All hands, when available and if required, can be used for breaking out or stowing away mooring lines. The men who perform this work shall be paid at their applicable rate between the hours of 5:00 p.m. and 8:00 a.m. weekdays, or on Saturdays, Sundays or Holidays.

SECTION 14. DOCKING AND UNDOCKING.

All hands, when available, shall be used to perform this work.

SECTION 15. TOPPING OR LOWERING BOOMS.

(a.) When all hatches are to be rigged or unrigged, all hands available are to be used in topping or lowering booms. If the booms of only one (1) hatch are to be topped or lowered, not less than two (2) full watches are to be used.

(b.) The watch on deck may stretch guys, handle topping lifts and generally make ready cargo gear for topping booms.

(c.) When booms are lowered and properly secured, the watch on deck may clear and secure guys.

(d.) The watch on deck shall perform this work without the payment of overtime during straight time hours.

(e.) When members of the Deck Department are required to spot booms or cranes for longshoremen in connection with the loading or discharging of cargo, they shall be paid at the rates prescribed in Article II, Section 22 (b.), Penalty Rates.

SECTION 16. WORKING IN HOLDS.

Working in holds into which cargo is being loaded or discharged shall not be done. However, this will not prohibit the cleaning of between-deck spaces while cargo is being worked in the lower cargo holds or cleaning of holds on RO-RO vessels not in proximity to vehicular traffic. (Men working or watching cargo shall not be included in this clause.)

SECTION 17. CALL-BACKS IN PORT.

(a.) When a vessel is in port and men are called back for shifting ship, hauling, rigging cargo gear, securing gear, cleaning holds, etc., after 5:00 p.m. and before 8:00 a.m., Monday through Friday, they shall receive a two (2) hour minimum for such call-back. In the event the work exceeds two (2) hours, the men shall receive overtime for the hours actually worked.

On Saturdays, Sundays and Holidays, the men shall receive a minimum of four (4) hours for such call-backs. They may be turned to one (1) or more times without the payment of additional overtime, except where the time exceeds four (4) hours, in which case they will be paid for the time actually worked.

During such call-back, the men may be required to secure the vessel for sea but may not be required

to do maintenance or repair work.

(b.) This section shall not apply when men are called back to sail the vessel.

(c.) The duty of men called for the specific purpose of shifting ship shall be limited to work necessary for shifting, and shall not include maintenance or repair work.

(d.) All hands available shall be used for shifting or hauling vessels.

(e.) When a shift or haul commences at exactly 5:00 p.m. and the meal hour has been changed to 4:00 p.m. from 5:00 p.m. for the entire crew, the crew members who are on the vessel and are working would not be entitled to the call-back. Those men who have completed their day's work prior to 5:00 p.m. and were called back would be entitled to the two (2) hour call-back.

SECTION 18. GOING ASHORE TO TAKE LINES.

The practice of putting sailors ashore to handle lines when docking or undocking is to be avoided as far as possible. If, however, no other means for handling lines is available, and sailors are required to catch the lines, or let them go, the sailors actually handling lines shall receive five dollars (\$5.00) each in each case. This is to be in addition to overtime, if they are working on overtime at that particular moment.

After the ship is properly moored, and members of the Deck Department are required to put out additional lines or single up lines during regular working hours, no additional money shall be paid.

SECTION 19. SECURING CARGO.

(a.) If cargo is not properly secured before going to sea and the crew members are required to secure such cargo or change lashings, they shall be paid at the rates prescribed in Article II, Section 22 (b.), Penalty Rates.

(b.) Routine tightening up of cargo lashing and relashing of cargo which has come adrift shall not constitute overtime.

SECTION 20. HANDLING HATCHES.

(a.) When the sailors are used to remove hatches, strong backs and tank tops for the purpose of loading or unloading cargo, or to cover up hatches when cargo is in the vessel, they shall receive overtime as per Article II, Section 31 of this Agreement.

(b.) No overtime shall be paid to day men or the watch on deck between the hours of 8:00 a.m. and 5:00 p.m., Monday through Friday for covering up when no cargo is in the ship or taking off hatches for any purpose other than actual cargo operations.

Ventilation of cargo holds, containers and lighters during such hours is the routine duty of the Unlicensed Deck Department.

(c.) No member of the Unlicensed Personnel shall be required to perform this work where it conflicts with the longshoremen and the longshoremen have contracts covering such work.

(d.) On vessels equipped with electro-mechanical hatch covers, sailors operating equipment for the purpose of loading or unloading cargo or covering the hatch when cargo is in the hold shall be paid at the rates prescribed in Article II, Section 22 (b), Penalty Rates.

SECTION 21. LAYING DUNNAGE FOR CARGO.

When the crew is required to actually lay dunnage in preparation for cargo, they shall be paid rates prescribed in Article II, Section 22 (b.), Penalty Rates.

This does not mean handling of dunnage in order to clean holds, but only refers to actual flooring off with dunnage for cargo. When the crew is required to install grain fittings or otherwise prepare holds for grain cargo, they shall be paid at the rate specified above.

SECTION 22. CLEANING CARGO HOLDS.

(a.) Members of the Unlicensed Deck Department may be required to clean and sweep cargo holds, in preparation for receiving cargo.

(b.) When this work is performed in holds that previously contained penalty cargo anytime, Monday through Friday on watch, all ratings will be paid at their respective Penalty Rate. On Saturdays, Sundays and Holidays and off-watch Monday through Friday, they shall be paid at their respective Overtime Rate. The rate for removing lashing gear from cargo holds shall be as shown in Article II, Section 22 (a.).

(c.) The rate for cleaning cargo holds, which have carried penalty cargo, shall be that shown in Article II, Section 31.

(d.) This section does not apply to cleaning done in preparation for or at the completion of maintenance work, i.e. scaling, chipping, etc., nor to the opening or closing of manhole covers.

SECTION 23. HANDLING MAIL OR BAGGAGE.

When sailors are required to handle mail as cargo or baggage as cargo, they shall be paid the rates specified in Article II, Section 33. This section does not apply when carrying the Pilot's bag.

SECTION 24. VESSEL'S STORES.

(a.) Unlicensed Deck Department Personnel may be required to handle stores, radio batteries and radio equipment, either on the dock or aboard the ship during their regular hours without payment of overtime. Regular hours shall be from 8:00 a.m. to 12:00 noon and from 1:00 p.m. to 5:00 p.m., Monday through Friday.

(b.) The officer in charge shall determine the number of sailors required for handling ship's stores.

(c.) The Company reserves the right at any time to use shoregangs to handle ship's stores.

SECTION 25. USING PAINT SPRAY GUNS, HYDRO-BLASTING AND SAND-BLASTING EQUIPMENT.

When members of the crew are required to paint with spray guns or perform hydro-blasting or sand-blasting, they shall be paid at the rates prescribed in Article II, Section 22 (b), Penalty Rates. Hydro-blasting for the purposes of this Agreement shall mean equipment that generates over 4000 psig at the nozzle. When hydro-blasting, only the individual working the nozzle shall be entitled to the Penalty Rate. Appropriate clothing and personal protective equipment (PPE) shall be provided when hydro blasting or water washing.

When spray guns or sand-blasters, other than small hand type, are being used for painting, two (2) men shall operate same and both men shall receive overtime at the applicable rate.

During any thirty (30) day period in which the spray painting or sand-blasting equipment is used eight (8) hours or more, the crew members involved shall receive a clothing allowance of three (3) hours overtime, at their respective Overtime Rate, as prescribed in Article II, Section 22 (a), unless the Company provides protective clothing.

When Unlicensed Personnel are required to use Ospho or an equivalent, they shall be compensated at their respective penalty rate as prescribed.

Two (2) men shall be used on sand-blasting operations and shall be paid in the same manner as when spray guns are used. When self-contained sand-blasting and spray painting booths are utilized, no penalty shall be applicable.

SECTION 26. SANITARY WORK.

Sanitary work shall be done on weekdays between 6:00 a.m. and 8:00 a.m. without the payment of overtime. Sanitary work in this section shall mean cleaning the wheelhouse, chartroom, cleaning windows and mopping out wheelhouse.

Weather conditions may necessitate additional mopping of water from the wheelhouse and cleaning of the wheelhouse windows.

SECTION 27. TENDING LIVESTOCK.

When livestock is carried, the sailors may be required to tend and feed the livestock and clean up stalls or cages. For such work they shall be paid at the rates prescribed in Article II, Section 22 (b.), Penalty Rates.

SECTION 28. GARBAGE.

Garbage shall be stowed away from crew's quarters. When members of the Deck Department are required to handle such stowed garbage by hand or shovel, they shall be paid at the rates prescribed in Article II, Section 22 (b.), Penalty Rates.

SECTION 29. REMOVING SOOT FROM SMOKE STACK.

When members of the Deck Department are required to remove accumulated soot from inside of the smoke stack, they shall be paid at the rates prescribed in Article II, Section 22 (b.), Penalty Rates.

SECTION 30. CLEANING BILGES & OIL SPILLS.

(a.) When any member of the Unlicensed Personnel in the Deck Department is required to enter any bilge which has been flooded with fuel oil, for the purpose of cleaning, they shall be paid at the rates prescribed for Tank Cleaning, Article III, Section 31. (b.).

(b.) When men are required to clean up oil spills on deck or oil spills on houses, masts or over the side, as a result of refueling or overflow from tanks, they shall be paid at the rates prescribed in Article II, Section 22., (b.), Penalty Rates.

(c.) There shall be only one (1) payment for cleaning up after each spill.

SECTION 31. TANK CLEANING.

(a) When Unlicensed Personnel are required to enter any tank in which water is regularly carried, for the purpose of cleaning or making repairs therein, they shall be paid at the rates defined in Article II, Section 22, (b.), Penalty Rates.

(b.) When Unlicensed Personnel are required to enter tanks that have contained animal, vegetable, petroleum oil or creosotes, including bunkers or molasses or after the use of butterworth system, for the purpose of cleaning or making repairs therein, they shall be paid at the rates indicated below.

Tank Cleaning Rates		Effective July 1, 2022	Effective July 1, 2023	Effective July 1, 2024	Effective July 1, 2025	Effective July 1, 2026
(b.) 1 Monday through Friday On Watch	I	22.92	23.84	24.79	25.54	26.30
	II	17.99	19.07	19.84	20.43	21.04
	III	13.05	13.18	13.44	13.85	14.26
(b.)2 Monday through Friday Off Watch	I	40.11	41.71	43.38	44.68	46.02
	II	31.15	33.02	34.34	35.37	36.43
	III	26.41	26.67	27.21	28.02	28.86
(b.)3 Saturdays, Sundays & Holidays - Anytime	I	47.75	49.66	51.65	53.20	54.80
	II	33.63	35.65	37.08	38.19	39.33
	III	25.01	25.26	25.77	26.54	27.33

In the event that the Overtime Rate, where applicable, is higher than that specified above, the higher rate shall be paid.

This shall also apply to cofferdams which have been fouled through leakage of the above mentioned cargoes or pumprooms that have been flooded with such cargoes.

(c.) When tanks described in (b.) above are being cleaned and cleaning has been completed, a bonus of three (3) hours overtime at the specific Overtime Rate in effect, applicable to the various ratings as defined in Article II, Section 22 (a), Overtime Rates, shall be paid.

This bonus will compensate for the clothing allowance and shall be paid only once during each ballast voyage. It is understood that sea boots for tank cleaning will be furnished by the Company. While engaged in tank cleaning, men shall receive no other overtime.

The men who are hauling the buckets during tank cleaning operations under this Section shall be paid at the rates defined in Article II, Section 22 (b), Penalty Rates.

(d.) For any work performed in cofferdam or void tank which has not contained water, oil, creosotes, etc., the men required to perform such work shall be paid at the rates defined in Article II, Section 22 (b), Penalty Rates.

The same shall apply to members required to handle or shift butterworth machines during the butterworth operations or wash tanks from the decks.

(e.) A minimum of three (3) men shall be required for the purpose of shifting butterworth machines. When butterworth machines are in operation, one (1) man shall be required to stand by the machines. The man who is standing by the machines shall do no other work. However, the other men may be required to perform other work between 8:00 a.m. and 5:00 p.m., Monday through Friday.

SECTION 32. STEERING ENGINE ROOM AND BOW THRUSTER ROOM.

When the sailors are required to clean the steering engine or steering engine bed, they shall be paid at the rates indicated in Article II, Section 22 (b), Penalty Rates. However, sailors may be required to clean and paint the steering engine room, the bow thruster motor rooms and grease tiller chains while on watch during straight time hours without the payment of overtime.

SECTION 33. ADDITIONAL WORK.

(a.) In all ports, members of the Deck Department may be required to chip, sougee, scale, prime and paint the vessel over the sides. As directed by the Company's Vessel Security Officer Unlicensed Deck Department personnel may be assigned and/or required to stand security watches. They may also be required to chip, sougee, scale, prime and brush paint all quarters, passageways adjacent to all quarters, dining areas, lounges, laundries, galleys, pantries and ship's offices between 8:00 a.m. and 5:00 p.m., Monday through Friday, at sea or in port, without extra compensation.

(b.) Non-permanent transient or irregular foreign shore labor shall not be employed to perform any of the work in the licensed or unlicensed quarters, store rooms, passageways, galleys and messrooms, except in those instances where the Company uses established shore labor. Companies on regular trade routes who, prior to June 7, 1954, used established shore labor in foreign ports may continue such practice.

(c.) At sea or in port, the Deck Department may be required to sand and varnish all outside rails, storm and screen doors, and perform Carpenters duties without additional Compensation.

(d.) Members of the Deck Department may be required to assist in the Engine Room by setting up rigging, chain falls, etc. when necessary for performing maintenance and repairs. No extra compensation shall be payable when performed during routine work hours.

SECTION 34. CHAIN LOCKER.

Not less than two (2) Able Seamen shall be sent into the chain locker to stow chain.

SECTION 35. PYRAMIDING OF OVERTIME.

There shall be no duplication or pyramiding of overtime except where specifically provided for.

ARTICLE IV. ENGINE DEPARTMENT

SECTION 1. WAGES.

The monthly rate of pay for the Unlicensed Personnel in the Engine Department, when the respective ratings are carried, shall be as follows:

Wages - Engine Department	July 1, 2022	July 1, 2023	July 1, 2024	July 1, 2025	July 1, 2026
Q.M.E.D./Electrician	6593.73	6857.48	7131.78	7345.73	7566.10
Chief Electrician	6593.73	6857.48	7131.78	7345.73	7566.10
Crane Maint./Electrician	6412.68	6669.19	6935.96	7144.04	7358.36
Electrician Reefer Maint..	6412.68	6669.19	6935.96	7144.04	7358.36
Second Electrician	5994.68	6234.46	6483.84	6678.36	6878.71
Engine Maintenance	5994.68	6234.46	6483.84	6678.36	6878.71
Eng. Util. Reefer Maint.	5994.68	6234.46	6483.84	6678.36	6878.71
Refrigeration Engineer (when one is carried)	5994.68	6234.46	6483.84	6678.36	6878.71
Refrigeration Engineer (when three is carried)					
Chief	6148.81	6394.76	6650.55	6850.07	7055.57
First Assistant	5463.97	5682.53	5909.83	6087.13	6269.74
Second Assistant	5097.20	5301.09	5513.13	5678.53	5848.88
Q.M.E.D.					
Class 1	6163.07	6409.60	6665.98	6865.96	7071.94
Class 2	5659.81	5886.20	6121.65	6305.29	6494.45
Class 3	5156.55	5362.82	5577.33	5744.65	5916.99
Class 4	4653.28	4839.42	5032.99	5183.98	5339.50
Plumber Machinist	5496.75	5716.62	5945.29	6123.64	6307.35
Unlicensed Jr. Engr. (Day)	5244.87	5454.67	5672.86	5843.04	6018.33
Unlicensed Jr. Engr. (Watch)	4722.53	4911.43	5107.89	5261.12	5418.96
Deck Engineer	5231.49	5545.38	5767.20	5940.22	6118.42
Engine Utility	4927.21	5222.85	5431.76	5594.71	5762.56
Evaporator/Maint.	4519.33	4790.49	4982.11	5131.58	5285.52
Oiler	4268.64	4524.76	4705.75	4846.92	4992.33
Oiler (diesel)	4593.64	4869.26	5064.03	5215.95	5372.42
Watertender	4268.64	4524.76	4705.75	4846.92	4992.33
Fireman/Watertender	4268.64	4524.76	4705.75	4846.92	4992.33
Fireman	4268.64	4524.76	4705.75	4846.92	4992.33
Wiper	3671.44	3708.16	3782.32	3895.79	4012.66
Ship's Welder Maint.	5148.36	5354.29	5568.46	5735.52	5907.58
Oiler/Maint. Utility	4927.21	5222.85	5431.76	5594.71	5762.56
Gen. Utility/Deck Eng.	3671.44	3708.16	3782.32	3895.79	4012.66
General Vessel Assistant	3671.44	3708.16	3782.32	3895.79	4012.66

Effective January 1, 1985, all QMEDs shall be reclassified subject to verification of having satisfactorily completed the following specified Seafarers Harry Lundeberg School of Seamanship specialty courses.

QMED Class 1—QMED with six or more SHLSS specialty courses.

QMED Class 2—QMED with four or five SHLSS specialty courses.

QMED Class 3—QMED with two or three SHLSS specialty courses.

QMED Class 4

SHLSS SPECIALTY COURSES

- | | |
|--|--|
| 1. Automation | 6. Pumproom Maintenance & Operation |
| 2. Marine Electrical Maintenance | 7. Diesel Engine Technology |
| 3. Marine Electronics | 8. Hydraulics |
| 4. Welding | 9. Hagglund Crane Maintenance |
| 5. Refrigeration Systems Maintenance & Operation | 10. Refrigerated Container Advancement Maintenance |

On all vessels carrying a Q.M.E.D./Electrician, he shall be paid in accordance with his Q.M.E.D. classification or at Chief Electrician rates, whichever is higher.

Effective June 16, 1990, a QMED can only be registered in his current classification for a period of one (1) calendar year from the date he received said classification, at which time he must make application for and satisfactorily complete the courses designated by the Seafarers Harry Lundeberg School of Seamanship to attain the next highest classification.

SECTION 2. EQUALIZATION OF OVERTIME.

Overtime work shall be assigned as equally as possible among crew members of the same rating. However, specialized work requiring special skill shall not be included in this provision. This rule shall not apply to those men who do not make themselves available to work overtime.

SECTION 3. HOURS OF WORK.

Working hours in port or at sea for all men classified as day workers shall be from 8:00 a.m. to 12:00 noon and 1:00 p.m. to 5:00 p.m., Monday through Friday. Any work outside these hours or on Saturdays, Sundays or Holidays is to be paid for at the applicable rate, except as provided in Article II, Section 19. When in accordance with Article II, Section 45 (c), the meal hours are changed, the hours of work shall be changed accordingly.

SECTION 4. WORK ON SATURDAYS, SUNDAYS AND HOLIDAYS AT SEA.

(a.) Except as otherwise specifically provided, if a man standing regular watch at sea on Saturdays, Sundays and Holidays, is required to do work other than routine work for the safe navigation of the vessel, they shall be paid at the rates prescribed in Article II, Section 22 (b.), Penalty Rates.

(b.) If a man standing watch on Saturdays, Sundays or Holidays is required to actually do longshore work, tank cleaning, or handle explosives during his watch, he shall be paid at the applicable rate only as specified in this Agreement for that type of work in lieu of the Overtime Rate.

SECTION 5. WORK OUT OF ENGINE SPACES.

No Unlicensed member of the Engine Department other than the Deck Engineer, Engine Utility, Storekeeper, Unlicensed Junior Engineer, Electrician, Wiper, Plumber, Engine Maintenance, Engine Utility Reefer Maintenance, Machinist, Ship's Welder-Maintenance, Crane Maintenance Electrician, Q.M.E.D., OMU and General Utility Deck/Engine shall be required to work outside the engine spaces without the payment of overtime. Engine spaces shall consist of fireroom, engine room, ice machine room and shaft alley. For the purpose of routine watch duties, the engine spaces shall consist of fireroom, engine room, ice machine room, steering engine room, and shaft alley.

SECTION 6. SETTING WATCHES.

Sea watches for men standing donkey watches shall be set at midnight prior to scheduled sailing time.

SECTION 7. BREAKING WATCHES.

When a vessel is in port as defined in Article II, Section 35, and is scheduled to remain in port twenty-four (24) hours or longer, sea watches shall be broken. When scheduled stay of vessel is less than twenty-four (24) hours, sea watches shall be maintained.

When the vessel arrives in port and is to depart prior to midnight of the following day, sea watches for those men who are to maintain donkey watches shall not be broken.

When the vessel arrives in port and is scheduled to depart after midnight on the following day, sea watches for those men who are to stand donkey watches shall be broken at midnight on day of arrival.

On day of arrival, any part of a sea watch from midnight until 8:00 a.m. shall constitute a complete watch. This shall not apply to men who are to stand donkey watch. When such arrival occurs on a Saturday, Sunday or Holiday, the Overtime Rate shall only be paid for hours actually worked on such watch.

SECTION 8. SUPPER RELIEF.

(a.) At sea or in port, the 4 to 8 watch shall relieve itself for supper. When any member or members of the Engine Department off duty are required to relieve the 4 to 8 watch during maneuvering, overtime shall be paid. However, on vessels having only one (1) unlicensed watchstander on watch, he shall be relieved by a qualified unlicensed rating from the watch below.

(b.) In port, the man detailed to oil winches shall relieve the fireroom watch for supper when cargo is being worked, except when two (2) or more men are standing fireroom and/or engine room donkey watches together.

SECTION 9. ELECTRICIANS.

(1.) The hours of the Electrician while on day work shall be from 8:00 a.m. to 12:00 noon and from 1:00 p.m. to 5:00 p.m., Monday through Friday. When the Electrician is requested to make a routine daily inspection on Saturdays, Sundays and Holidays, he shall be paid at his Overtime Rate.

(2.) The Chief Electrician shall be responsible to and take orders from the Chief Engineer, or in the absence of the Chief Engineer, he shall take orders from the Senior Engineer or the Engineer on watch; all other Electricians to be directly responsible to the Chief Electrician. In the absence of the Chief Electrician, the other Electricians take orders from the Engineer. In the case of Watch Electricians, Electricians are responsible to the Senior Watch Engineer on board.

(3.) Electricians shall do all electrical work. They shall also oil and grease the mechanical parts of the elevators, cargo winches or electrical conveyors without the payment of overtime. (This shall not apply to Si-porters or similar equipment.) When necessary to reach electrical equipment, the Electricians may also be required to perform maintenance work at the steam or diesel end of machinery.

Overtime shall be paid for all electrical or mechanical work performed on any of the following equipment: gyro compass, gyro repeaters, gyro batteries, and gyro M.G. sets, radio communication receivers, transmitter, radio communication batteries, motor generator sets, radio direction finder equipment, fathometer equipment, radar equipment and Loran system equipment.

(4.) Electrician's refusal to do electrical work, when such work renders Electricians liable to electrocution, or where hazardous conditions exist, shall not be deemed refusal of duty.

(5.) When cargo is being worked with vessel's electric cargo-handling machinery after 5:00 p.m. and before 8:00 a.m. weekdays or on Saturdays, Sundays and Holidays, the Electrician shall do all work necessary to keep electric cargo handling machinery in operation.

Overtime shall be paid straight through for such periods including time of standing by, preparation of gear to work cargo and securing of such gear thereafter. However, overtime shall cease if cargo work ceases for periods in excess of two (2) hours. If no cargo is being worked during the noon meal hour, and he is given his full meal hour, no overtime shall be paid for that hour.

(6.) Electricians shall not be required to do any painting or cleaning of electrical machinery spaces and the outside of electrical equipment, such as motors, generators, panel boxes, fans, vent filters, electrical fixtures and glassware. This does not mean that the Electricians will not be required to clean up any oil or grease spilled in connection with their regular duties.

(7.) Electricians shall be required to maintain the inside of motors, generators, panel boxes, fans and

the face of switch panels. They shall also maintain cargo and cluster lights and do all sweeping and cleaning in resistor houses and fan rooms.

(8.) When Electricians are required to install any heavy equipment, whether new or additional, they shall be paid for such work at the applicable rate. This shall not apply, however, to removals or replacement or repairs to worn out equipment, nor to installations of new or light equipment such as wiring and small electrical fixtures and equipment.

(9.) On vessels carrying Electricians, a properly equipped workshop, when available and convenient, will be assigned the Electricians for use as a storeroom for supplies and tools and for overhauling electrical equipment.

Electricians shall keep this workshop clean, but shall not be required to paint or sougee.

(10.) In port, when an Electrician on day work is called back to the ship on weekdays, after 5:00 p.m. and before 6:00 a.m. and on Saturdays, Sundays and Holidays, he shall receive a minimum of three (3) hours overtime at his applicable rate. If turned to after 6:00 a.m., he shall receive a minimum of two (2) hours overtime at his Overtime Rate. This clause shall not apply when he is recalled to stand by for the purpose of assisting in getting the vessel underway.

(11.) At sea, and in port when Electricians on day work are called out to do any work after 5:00 p.m. and before 8:00 a.m., a minimum of two (2) hours overtime shall be paid.

(12.) When the Electrician is requested in writing by the Company to furnish his own tools, he shall receive twenty dollars (\$20.00) per month in addition to his basic wage.

(13.) The Chief Electrician shall keep Megger readings of electrical equipment up to date during his regular working hours.

(14.) Electricians shall not be required to rewind coils or armatures except in cases of emergency.

(15.) The Electrician, when available, should be assigned to operate electrical controls on lifeboat winches when they are being used.

(16.) Except in emergencies, all electrical work normally assigned to Electricians as their regular duties should be performed by the Electricians, when they are aboard.

(17.) He will not be required to reline brakes on electric winches, anchor windlasses or capstan.

(18.) The Chief Electrician shall keep an inventory of all supplies and equipment on hand, and he shall make requisitions for all needed electrical supplies and tools, subject to approval of the Chief Engineer. Taking voyage inventories, however, shall be confined to straight time hours.

(19.) Where less than three (3) Electricians are carried, they shall be classified as day workers.

(20.) When three (3) Electricians are carried, they shall be put on regular sea watch at sea of four (4) hours on and eight (8) hours off. In port, these Electricians shall be classified as day workers.

(21.) Electricians shall make any needed repairs to maintain electric refrigerators, electric washing machines and electric clothes dryers.

(22.) No overtime is payable under this section when the MG sets supply electricity for the entire vessel. Regardless of the location of the MG sets, the use shall determine whether or not overtime is payable. If the MG sets are used to supply electricity for the vessel, no overtime is payable. If the MG sets are not used for the entire vessel but used for reasons specified in Article IV, Section 9 (3), overtime shall apply as specified in this Agreement.

(23.) On all vessels carrying containers (of any size), it shall be the routine duty of the Electrician between the hours of 8:00 a.m. and 5:00 p.m., Monday through Friday:

(a.) to plug and unplug the reefer boxes.

(b.) to perform all electrical repairs necessary on reefer boxes.

(24.) Crane Maintenance Electrician

It shall be the duty of the Crane Maintenance Electrician to perform the work as defined above for Electricians. In addition, he shall perform the work as defined for Deck Engineer under Article IV, Section 15, and perform all work necessary for the maintenance and operation of the shipboard cranes.

(25.) Electrician/Reefer Maintenance

It shall be the duty of the Electrician/Reefer Maintenance to perform the work as defined above for Electricians. In addition, he shall perform all work as defined in Article IV, Section 11, Refrigerating Engineers.

(26.) The Crane Maintenance Electrician and the Electrician/Reefer Maintenance shall be required to have the necessary qualifications to sail as Electrician. They shall also be certified by the United States Coast Guard as Oiler and Fireman Watertender. They may, when necessary, be placed on watch to replace a missing watchstander, without the payment of overtime except as specifically provided in this Agreement.

(27.) It shall be the responsibility of the Electrician or Crane Maintenance Electrician, when necessary, to move or spot the cranes for longshoremen.

(28.) On vessels carrying the rating of QMED/Electrician, he shall perform such duties as prescribed above in addition to such duties as are defined in Article IV, Section 41 Q.M.E.D.

SECTION 10. UNLICENSED JUNIOR ENGINEERS.

(a.) On vessels carrying only three (3) Unlicensed Junior Engineers, they shall be classed as watchstanders, and while at sea, shall be put on regular sea watches of four (4) hours on and eight (8) hours off. In port, the Unlicensed Junior Engineers may be put on day work.

(b.) DUTIES AT SEA.

They shall assist in the operation of the plant and shall be required to do maintenance and repair work as directed by the Watch Engineer between the hours of 8:00 a.m. and 5:00 p.m., Monday through Friday, without the payment of overtime. Such maintenance and repair work shall be confined to engine room, fireroom, machine shop, storeroom in or adjacent to engine room, shaft alley and ice machine room. They shall not be required to do general cleaning, painting, cleaning paint, polishing work, wirebrushing, chipping or scaling without the payment of overtime.

(c.) DUTIES IN PORT.

They shall be required to do maintenance and repair work between the hours of 8:00 a.m. and 12:00 noon, 1:00 p.m. and 5:00 p.m., Monday through Friday. Such maintenance and repair work shall be confined to engine room, fireroom, machine shop, storeroom in or adjacent to engine room, shaft alley, ice machine room and steering engine room.

(d.) If required to replace another member of the Unlicensed Personnel, they shall be governed by the working rules covering that particular rating.

(e.) On vessels carrying day Unlicensed Junior Engineers in addition to watch Unlicensed Junior Engineers, their duties shall be as follows:

At sea and in port, they shall be required to do maintenance and repair work as outlined in subsection (c.) above under the direction of the Engineer in charge. They may assist in taking on Engine Department stores including water and fuel.

(f.) On those vessels where three (3) Unlicensed Junior Engineers are carried, they shall be classed as watchstanders. On those vessels where less than three (3) Unlicensed Junior Engineers are carried, they shall be classed as day workers.

(g.) On those vessels where more than three (3) Unlicensed Junior Engineers are carried, three (3) Unlicensed Junior Engineers shall be classed as watchstanders and the additional Unlicensed Junior Engineers shall be classed as day workers.

SECTION 11. REFRIGERATING ENGINEERS.

(a.) While refrigerating plant is being operated at sea, Refrigerating Engineers shall be assigned to watches of four (4) hours on and eight (8) hours off.

(b.) When refrigerating plant is operating continuously in port, the Refrigerating Engineer may be required to stand donkey watch of eight (8) hours on and sixteen (16) hours off.

(c.) When refrigerating plant is not being operated and no refrigerated cargo is on board, they shall be assigned to day work in the engine room in accordance with working rules for Oilers on day work.

(d.) Refrigerating Engineers on day work may be required to supervise the stowing of reefer cargo in which event they shall be paid overtime while the reefer cargo is being worked between the hours of 5:00 p.m. and 8:00 a.m. weekdays. On Saturdays, Sundays and Holidays, they shall be paid at their Overtime Rate.

(e.) At sea, while on watch, no overhauling work, breaking calcium, shifting or moving CO₂ bottles shall be done between the hours of 5:00 p.m. and 8:00 a.m. weekdays or on Saturdays, Sundays and Holidays, without the payment of overtime. In case of emergency, such as excessive gas leakage or loss of brine, the Refrigerating Engineer on watch shall correct this condition as part of his regular duties without the payment of overtime.

(f.) While on watch duty, Refrigerating Engineer shall be required to leave safe working conditions, keeping the spaces around the ice machines and their auxiliaries clean of oil, water and refuse accumulated during his watch, but he shall not be required to do any painting, cleaning paint, chipping, scaling or shining bright work. They shall maintain and operate all refrigeration and air-conditioning machinery, and take temperatures at refrigeration machinery, fan rooms, boxes and reefer containers.

(g.) On day work, Refrigerating Engineers shall work under the direction of the Chief Engineer or

Licensed Engineer in charge of refrigerating plant. Their duties shall consist of overhauling and repair work necessary in connection with the upkeep and maintenance of refrigerating machinery, its auxiliaries and equipment. They shall not be required to paint, sougee, chip, scale, shine bright work or do cleaning work unless overtime is allowed for such work.

(h.) At no time shall they pull or shift ice.

(i.) When an Engine Utility Reefer Maintenance is carried, he shall perform such duties as are prescribed above and such other duties as are prescribed in Article IV, Section 16. He must possess the U.S. Coast Guard endorsement of Reefer Engineer or Q.M.E.D.

SECTION 12. PLUMBER-MACHINIST.

(a.) The Plumber- Machinist shall be classified as a day worker.

(b.) Plumber-Machinists shall be required to do repair work on fresh and salt water lines and small steam lines connected with domestic department of the vessel, bathroom fixtures, radiators, galley fuel oil lines, steam cookers and coffee urns, and shall do general machine shop work. They may be required to take on water during regular working hours without the payment of overtime.

SECTION 13. EVAPORATOR MAINTENANCE MEN.

(a.) They shall stand two (2) watches of four (4) hours each per day, while evaporators are in use at sea. When evaporators are used in port, watches shall be changed to eight (8) hours on and sixteen (16) hours off.

(b.) When evaporators are in use, they shall tend evaporators and other auxiliaries in the evaporator spaces.

(c.) When evaporators are not in use, they shall be classed as day workers.

(d.) While on day work, they may be required to perform general maintenance and repair work in the Engine Department, and they may be required to assist in taking on water, fuel oil and Engine Department stores, but they shall not be required to clean boilers, tanks or tank tops, or do any cleaning, sougeeing, scaling or painting without the payment of overtime. They may be required, however, to do minor sougeeing or spotting up in the evaporator room. They may also be required to replace Oilers, Watertenders, Firemen-Watertenders or Firemen who are sick, injured or missing.

SECTION 14. STOREKEEPER.

(a.) They shall be classified as day workers.

(b.) They shall supervise the work of the Wipers under instructions from the First Assistant Engineer, and they shall have charge of storeroom and stores and maintain inventories.

(c.) They shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime, except in the Engine Department storerooms.

SECTION 15. DECK ENGINEER.

(a.) It shall be the duty of the Deck Engineer to oil and maintain winches and do maintenance and repair work to deck machinery and deck piping, and when no Electrician is carried, he may be required to care for lights, fuses and overhaul electric fans. This will not include mast lights, navigation lights and cargo lights permanently installed. Lifeboat motors are not to be considered as deck machinery. The Deck Engineer shall not be required to work on any electric motors such as refrigerator motors, etc., without the payment of overtime.

(b.) The Deck Engineer shall not be required to do any cleaning or repair work in the engine room, fireroom or shaft alley, without the payment of overtime.

(c.) The Deck Engineer shall not be required to do any additional work while oiling deck machinery, except for running or breakdown repairs.

(d.) The Deck Engineer shall oil and maintain winches until midnight on days of arrival and departure. An Oiler or Engine Utility shall be assigned to those duties on all other days after 5:00 p.m. and before 8:00 a.m.; however, the Oiler or Engine Utility assigned to oil winches from 5:00 p.m. until midnight shall be knocked off from 4:00 p.m. to 5:00 p.m. for supper.

(e.) The Deck Engineer shall run steam on and off deck machinery and warm up same when deck machinery is needed to handle ship's lines, except when cargo is being worked and an Oiler or an Engine Utility has been assigned to oil winches.

(f.) The Deck Engineer or another competent member of the Unlicensed Personnel shall stand by

when deck machinery is being turned over to prevent freezing.

(g.) The Deck Engineer shall not be required to do any general painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

(h.) The Deck Engineer may be required to clean out toilets, scuppers or drains when they are stopped up, but he shall not do any maintenance, repair or plumbing work on domestic lines, toilets, sinks, radiators, etc., without the payment of overtime.

(i.) If the Deck Engineer is required to stand watches due to the shortage of men, such watches stood between the hours of 5:00 p.m. and 8:00 a.m. weekdays shall be paid for at the Overtime Rate. However, all watches stood shall be in addition to his regular duties as Deck Engineer. In this case, there shall be no division of wages.

SECTION 16. ENGINE UTILITY AND ENGINE MAINTENANCE.

(a.) Engine Utility - Day Worker

They shall be required to assist Engineers or Deck Engineers, etc., in all Engine Department work, including the repair of reefer containers.

They shall be required to have qualifications as an Oiler, Watertender and Fireman.

They shall not replace any member of the Unlicensed Personnel, except when such member is missing or unable to perform his regular duties due to illness or injury.

All work that is overtime for Wipers during their regular working hours, with the exception of repair work, shall be overtime for the Utilityman when performing the same type of work.

They shall do no cleaning, painting, chipping, scraping, wire brushing, shining of brass, etc., except where such work is incidental to a specific repair job.

They may be required to assist the Deck Department in docking and undocking the vessel without the payment of overtime, except when such work is performed in excess of eight hours in any calendar day, or any time on Saturdays, Sundays and Holidays.

(b.) Engine Maintenance - Day Worker

His duties shall be general maintenance repair work throughout the vessel, as directed by the Engineer in charge. He shall be required to have qualifications as Fireman, Watertender, Oiler and Electrician.

When a Fireman, Watertender or Oiler is missing because a crew member is sick, injured, or because a Fireman, Watertender or Oiler missed the ship and none of the Wipers are capable of being promoted to fill the vacancy, then the Engine Maintenance may be placed on watch. In the event the Engine Maintenance man is assigned to a watch, no overtime is payable Monday through Friday for standing watch and performing customary watch duties.

It shall also be the duty of the Engine Maintenance to grease the steering engine and/or ship's crane, and assist the Electrician during his regular working hours without the payment of overtime. They shall not be required to paint, clean paint, wire brush, chip, scale or do any polishing work without the payment of overtime, except where such work is incidental to a specific repair job.

They may be required to assist the Deck Department in docking and undocking the vessel without the payment of overtime, except when such work is performed in excess of eight hours in any calendar day, or any time on Saturdays, Sundays and Holidays.

As directed by the Engineer in charge their duties shall also include taking on fuel and water and the taking of required soundings; burning and welding in the absence of a Ship's Welder/Maintenance and if qualified; any work necessary for the operation of reefer equipment and containers, including the taking of temperatures; and, chipping, painting and sougeeing up to three (3) hours per day, during normal working hours.

SECTION 17. OILERS - DIESEL.

(a.) While on sea watch, they shall make regular rounds on main engines and auxiliaries, pump bilges, clean strainers and centrifuges, watch oil temperatures and pressures. If required, they shall drain oil for piston oil tanks every hour and shall pump up water for gravity. They shall be required to tend small donkey boiler for heating purposes, without payment of overtime. However, when boiler is being used for heating cargo oil, an overtime allowance of two (2) hours per watch shall be allowed the Oilers.

(b.) They shall do no cleaning or station work but shall be required to leave safe working conditions for their relief, provided such work shall not be done when Wipers are on duty.

(c.) In port, Oilers shall maintain a regular donkey watch. They shall oil auxiliaries, tend small

donkey boilers and look after the entire plant. Oilers on donkey watch may be required to do maintenance work in the engine room between 8:00 a.m. and 5:00 p.m. weekdays.

(d.) Oilers shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

SECTION 18. OILERS ON SEA WATCHES - STEAM.

(a.) They shall perform routine duties, oil main engine (if reciprocating), watch temperatures and oil circulation (if turbine), oil auxiliaries, steering engine and ice machine. They shall pump bilges and they shall also tend water where gauges and checks are in the engine room and no Watertenders are carried.

(b.) They shall do no cleaning or station work but shall be required to leave safe working conditions for their reliefs, keeping the spaces around main engine and auxiliaries clean of any excess oil. Their routine duties shall include cleaning oil strainers and purifier.

(c.) On vessels with small cargo refrigeration plants, Oilers shall oil plant. When the Oiler is required to take reefer cargo box temperature, he shall be paid one (1) hour's overtime for each watch. On vessels carrying watchstanding Refrigerating Engineers, Oilers shall not handle the refrigeration plant.

(d.) If required to start or blow down evaporator, he shall be paid one (1) hour overtime for each operation. However, when such equipment is placed in operation, Oilers may be required to check the equipment at regular intervals, make necessary adjustments to insure proper and even flow of condensate and salt water and oil and tend any pumps operated in connection with such equipment without the payment of overtime.

(e.) On turbine-propelled vessels which are certified as passenger vessels and are carrying passengers, the Oiler on the midnight to 4:00 a.m. watch may be required to assist in blowing tubes, where automatic soot blowers are in use.

(f.) Oilers shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

SECTION 19. OILERS ON DAY WORK - STEAM.

They shall assist the Engineers in maintenance and repair work in engine room, machine shop, shaft alley, ice machine room, and storeroom when located in or adjacent to engine room. They shall not be required to do any cleaning of boilers, painting, cleaning paint, polishing work, wirebrushing, chipping or scaling without the payment of overtime.

SECTION 20. WATERTENDERS ON SEA WATCHES.

(a.) They shall perform their routine duties, tend water and boiler auxiliaries, oil temperatures, stack draft and supervise firing. They shall handle any valves in connection with the operation of the boilers as directed by the Engineers.

(b.) They shall not be required to crack any main or auxiliary steam stop valves. However, when stops have been cracked, they may open them wide.

(c.) They shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

(d.) At sea he may be required to assist in any work necessary for the operation of reefer containers, including plugging and unplugging reefer containers.

SECTION 21. WATERTENDERS IN PORT.

(a.) They shall maintain a regular donkey watch and shall maintain steam and tend auxiliaries, including ice machines.

(b.) Watertenders shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

SECTION 22. VESSELS HAVING BOTH WATERTENDERS AND FIREMEN.

In port, as defined in Article II, Section 35, and when sea watches are broken, Watertenders shall stand all donkey watches and Firemen shall be put on day work.

SECTION 23. FIREMEN/WATERTENDER.

(a) They shall be required to tend water, clean burners, strainers and drip pans, punch carbon, keep steam, tend fuel oil pressure and temperatures and oil fuel circulation pumps which are located in the fireroom

only except as in Article IV, Section 34.

(b) They shall clean up excess oil occasioned by changing burners and strainers and shall leave the fireroom in a safe condition when relieved.

(c) They shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

(d) Except as otherwise provided herein, when on donkey watch, they shall be required to keep steam.

(e) If the ship arrives in port between 5:00 p.m. and midnight, the Fireman/Watertender shall continue on sea watches until midnight and shall maintain steam.

SECTION 24. WATER-TUBE FIREMEN ON SEA WATCHES.

(a.) They shall do routine duties of the watch such as keeping burners clean, cleaning strainers and drip pans and punch carbon. They shall not be required to leave the confines of the fireroom at any time to do any work outside of the fireroom, except as provided for in Article IV, Section 34.

(b.) They shall be required to keep their respective stations cleaned and painted between the lowest grating and the floor plates. On vessels with irregular gratings, 10 feet from the floor plates shall be considered the Fireman's station limit.

(c.) Fanning tubes and the use of XZIT and similar preparations shall be classified as general cleaning work and shall be confined to regular cleaning hours.

(d.) They shall not be required to blow tubes by hand. However, the Fireman on watch may be required to assist in opening and closing breeching doors and in turning steam on and off. Where automatic soot blowers are used, Firemen will handle valves connecting with same.

SECTION 25. WATER-TUBE FIREMEN ON DAY WORK.

(a.) In port, they shall be required to do general cleaning, polishing and painting work, in the fireroom, sponging and blowing tubes, and shall assist the Engineers in making repairs to boiler mountings, etc.

(b.) They may also be required to wash down steam drums of water tube boilers.

(c.) When required to do any cleaning of boilers and fireboxes other than the above, they shall be paid overtime.

SECTION 26. FIRE-TUBE FIREMEN ON SEA WATCHES.

(a.) They shall perform routine duties, clean burners, strainers and drip pans, punch carbon, keep steam, watch fuel oil pressure and temperature.

(b.) They shall clean up excess oil occasioned by changing burners and strainers without payment of overtime and shall leave the fireroom in a safe condition when relieved.

(c.) They shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

(d.) If the ship arrives in port between 5:00 p.m. and midnight, they shall continue on sea watches until midnight and shall maintain steam and tend auxiliaries including ice machine.

SECTION 27. FIRE-TUBE FIREMAN IN PORT.

(a.) They shall keep burners, strainers and drip pans clean at all times. They shall also clean up excess oil occasioned by changing burners and strainers without payment of overtime and shall leave the fireroom in a safe condition when relieved. They shall do no boiler work. They shall keep steam for the auxiliaries and safety of the ship and take care of the entire plant.

(b.) They shall not be required to do any painting, cleaning paint, wirebrushing, chipping, scaling or polishing work without the payment of overtime.

SECTION 28. WIPERS.

(a.) They shall be classed as day workers.

(b.) It shall be routine duties for the Wipers to do general cleaning, including oil spills on deck, painting, cleaning paint, wirebrushing, chipping, scaling, sougeeing, polishing work in the Engine Department, including resistor houses and fanrooms, cleaning and painting steering engine and steering engine bed, and taking on stores. However, when taking on fuel oil or water, and the hoses are connected and disconnected by shoreside personnel, the Wiper shall not be required to assist. When the ship's personnel

handles the connections, the Wiper shall be used to assist in connecting and disconnecting and putting hoses away but should not be required to stand by.

Pumping of galley fuel tank shall be performed on Saturdays, Sundays and Holidays during the two (2) hours' sanitary work.

(c.) They shall not be required to paint, chip, sougee or polish bright work in fireroom fidley, except in port.

When such work is performed at sea, the rates prescribed in Article II, Section 22 (b.), Penalty Rates, shall apply.

(d.) They may be required to paint Unlicensed Engine Department quarters without payment of overtime during their regular working hours.

(e.) They shall be paid overtime for cleaning in firesides and steam drums of boilers. They may be required to wash out steam drums with hose without payment of overtime.

(f.) They shall be paid overtime when required to clean tank tops or bilges by hand or when required to paint in bilges. However, cleaning bilge strainers, cleaning away sticks or rags shall be considered part of a Wiper's duties and shall be done without the payment of overtime.

(g.) They shall assist the Engineers in blowing tubes, and they shall also assist the Engineer in putting XZIT and similar preparations and boiler compounds in the boiler.

(h.) They may be required to assist in repair work, but they shall not be assigned to a repair job by themselves without the payment of overtime. This is not to include dismantling equipment in connection with cleaning, such as grease extractors, bilge strainers and evaporators, etc.

(i.) They shall be required to pump up galley fuel tank during straight time hours without the payment of overtime.

(j.) While vessels are transiting the Panama or Suez Canal, one (1) Wiper shall be assigned to trim ventilators to insure breeze for men below, regardless of whether it is outside of their regular working hours or not. When he performs this work outside of his regular working hours, overtime will be allowed.

(k.) Skimming hot wells and cleaning grease extractors shall be done by the Wipers as part of their regular duties without the payment of overtime.

(l.) They shall pull ice on freight ships and deliver it to the ice box without the payment of overtime, and they shall also remove ice cubes from ice cube machines where such machines are located in engine room spaces.

(m.) At sea, when a watchstander becomes ill or injured, a Wiper may be assigned to stand his watches for which he shall be paid overtime. If the original man remains incapacitated for a period in excess of three (3) days, the Wiper may then be promoted and shall receive the differential in pay only.

(n.) Except as otherwise provided, he shall perform general maintenance throughout the vessel, including chipping, painting and sougeeing during routine hours without penalty pay.

(o.) The Wiper may be required to assist the Deck Department in docking and undocking the vessel without the payment of overtime, except when such work is performed in excess of eight (8) hours in any calendar day and any time on Saturdays, Sundays and Holidays.

SECTION 29. DONKEY WATCH.

(a.) A donkey watch is a watch performed in port by a portion of the Engine Department personnel who are required to maintain steam and to tend auxiliaries including steam winches when the main engines are secured.

(b.) If donkey watches are to be maintained during the vessel's stay in port, such watches must be set at the time sea watches are broken.

(c.) The intention of this section is that, in port, donkey watches, including a Fireman/Watertender and an Oiler will be in effect, under which circumstances the Oiler shall be required to oil all auxiliaries, including steam winches.

(d.) Under circumstances where a Fireman/Watertender is alone on donkey watch by reason of the Oiler having been assigned to day work, or to other duties, and the Fireman/Watertender is required to tend engine auxiliaries, he shall be compensated for such work at the applicable Overtime Rate per hour. In no case, however, shall double overtime be paid.

(e.) Where either a Fireman/Watertender or an Oiler fails to stand his watch, and the work of the missing man is performed by another Unlicensed member of the Engine Department, then there is no additional compensation payable.

(f.) Oilers on donkey watch may be required, in addition to oiling auxiliaries, to do maintenance

work in the engine room between 8:00 a.m. and 5:00 p.m. without payment of overtime weekdays.

(g.) It shall be the routine duty of the Oiler, Oiler Maintenance Utility, Q.M.E.D., etc., standing a donkey watch in port, to tend auxiliaries, including steam winches. This shall also apply to turning steam or power on or off the deck except where a Deck Engineer or Crane Maintenance Electrician is on duty.

SECTION 30. TANK CLEANING.

(a.) When Unlicensed Personnel are required to enter any tank in which water is regularly carried, for the purpose of cleaning or making repairs therein, they shall be paid at the rates defined in Article II, Section 22 (b.), Penalty Rates.

(b.) When Unlicensed Personnel are required to enter tanks that have contained animal, vegetable, petroleum oil or creosotes, including bunkers or molasses for purposes of cleaning or making repairs therein, they shall be paid at the rates indicated below.

Tank Cleaning Rates		Effective 7/1/2022	Effective 7/1/2023	Effective 7/1/2024	Effective 7/1/2025	Effective 7/1/2026
(b.) 1 Monday through Friday On Watch	Group I	22.92	23.84	24.79	25.54	26.30
	Group II	17.99	19.07	19.84	20.43	21.04
	Group III	13.05	13.18	13.44	13.85	14.26
(b.)2 Monday through Friday Off Watch	Group I	40.11	41.71	43.38	44.68	46.02
	Group II	31.15	33.02	34.34	35.37	36.43
	Group III	26.41	26.67	27.21	28.02	28.86
(b.)3 Saturdays, Sundays & Holidays Anytime	Group I	47.75	49.66	51.65	53.20	54.80
	Group II	33.63	35.65	37.08	38.19	39.33
	Group III	25.01	25.26	25.77	26.54	27.33

In the event that the Overtime Rate, where applicable, is higher than that specified above, the higher rate shall be paid.

This shall also apply to cofferdams which have been fouled through leakage of the above mentioned cargoes or pumprooms that have been flooded with such cargoes.

(c.) When tanks described in (b) above are being cleaned and cleaning has been completed, a bonus of three (3) hours overtime shall be paid at the specific Overtime Rate in effect applicable to the various ratings as defined in Article II, Section 22 (a), Overtime Rates.

This bonus will compensate for the clothing allowance and shall be paid only once during each ballast voyage. It is understood that sea boots for tank cleaning will be furnished by the Company. While engaged in tank cleaning, men shall receive no other overtime.

The men who are hauling the buckets during tank cleaning operations under this section shall be paid at the rates specified in Article II, Section 22 (b), Penalty Rates.

(d.) For any work performed in cofferdam or void tank which has not contained water, oil, creosotes, etc., the men required to perform such work shall be paid at the rates specified in Article II, Section 22 (b), Penalty Rates.

The same shall apply to members required to handle or shift butterworth machines during the butterworth operations or wash tanks from the decks.

(e.) A minimum of three (3) men shall be required for the purpose of shifting butterworth machines. When butterworth machines are in operation, one (1) man shall be required to stand by the machines. The man who is standing by the machines shall do no other work. However, the other men may be required to perform other work between 8:00 a.m. and 5:00 p.m., Monday through Friday.

SECTION 31. USING PAINT SPRAY GUNS, SAND-BLASTING EQUIPMENT AND CLEANING SCAVENGER BOXES.

When members of the crew are required to paint with spray guns, perform sand-blasting or clean scavenger boxes they shall be paid at the rates prescribed in Article II, Section 22 (b.), Penalty Rates.

When spray guns or sand-blasters, other than small hand type, are being used for painting, two (2) men shall operate same and both men shall receive overtime at the applicable rate.

During any thirty (30) day period in which the spray painting or sand-blasting equipment is used eight (8) hours or more, the crew members involved shall receive a clothing allowance of three (3) hours overtime, at their respective Overtime Rate, as prescribed in Article II, Section 22 (a.), unless the Company provides protective clothing.

Two (2) men shall be used on sand-blasting operations and shall be paid in the same manner as when spray guns are used. When self-contained sand-blasting and spray painting booths are utilized, no penalty shall be applicable.

SECTION 32. CARBON TETRACHLORIDE.

The Company agrees not to use Carbon Tetrachloride for any purpose.

SECTION 33. WORK WHEN PLANT IS SHUT DOWN.

When vessel is in port and the entire plant is shut down, the Watertenders, Firemen/Watertenders or Fire-Tube Firemen may be placed on day work. Their work shall then consist of repair and maintenance work on all boiler mounts and boiler auxiliaries which are located in the fireroom, above and below the floor plates.

SECTION 34. FIREROOM-ENGINE ROOM BOUNDARIES.

On vessels having no bulkheads separating engine room and fireroom, an imaginary line is to be drawn at after or forward end of boilers, depending on location of boilers, for the purpose of defining engine room or fireroom boundaries. This imaginary line shall not exclude from the duties of the Fireman, Fireman/Watertender, Watertender and Oilers any work as outlined in their respective working rules.

SECTION 35. NEW EQUIPMENT NOT CARRIED AT PRESENT.

In the event the Company should install new or different equipment than that presently in use and covered by this Agreement, the Company and Union shall meet immediately to negotiate working rules to cover such vessel or equipment.

SECTION 36. STANDING SEA WATCHES - DAY WORKERS.

Except as otherwise specifically provided, the following ratings may be used to stand watches due to a shortage of Unlicensed watchstanders without the payment of overtime: Deck Engineer, Engine Utility, Q.M.E.D., Ship's Welder Maintenance and Wiper, or any other qualified day worker.

SECTION 37. CLEANING BILGES.

When any member of the Unlicensed Personnel of the Engine Department is required to enter any bilge which has been flooded with fuel oil, for the purpose of cleaning, they shall be paid at the rates prescribed for Tank Cleaning, Article IV, Section 30 (b.).

SECTION 38. ENTERING CASINGS ON MOTOR VESSELS.

It shall be routine duty of the Unlicensed Engine Room Personnel to key-up the engine. When any member of the Unlicensed Personnel in the Engine Department on motor vessels is required to enter the exhaust trunk casings for the purpose of cleaning or scaling, he shall be paid extra compensation at the tank cleaning rate as specified in this Agreement.

SECTION 39. SHIP'S WELDER/MAINTENANCE.

(a.) The Ship's Welder/Maintenance Man shall be classed as a day worker in the Engine Department.
(b.) He shall be required to do burning, welding, maintenance and repair work anywhere on the vessel as directed by the Chief Engineer.

(c.) He shall be required to have qualifications as Fireman, Oiler and Watertender.

(d.) He may be used to replace sick, injured or missing watchstanders without the payment of overtime, except as where specifically provided for in this Agreement.

(e.) He shall not be required to do general cleaning, painting, cleaning paint, polishing work, wirebrushing, chipping or scaling except in the course of burning, welding, maintenance and repair work.

(f.) He shall receive the contractual overtime rate for specified work such as tank cleaning, cleaning bilges, using paint spray guns, etc.

SECTION 40. OILER/MAINTENANCE UTILITY.

1. He shall be required to have the qualifications of Fireman, Oiler and Watertender.
2. He may be classified as a watchstander and shall perform the routine duties and maintenance of the Oiler and Fireman/Watertender stated in Article IV, Sections 18, 19 and 23 of this Agreement.
3. When designated as "day workers," they may be required to chip, paint or sougee in engine room spaces, not to exceed three (3) hours per day, Monday through Friday, between 8 a.m. and 5 p.m. They shall not be so assigned when maintenance work orders requiring their participation or assistance is being performed.
4. When designated as "day workers," they may be required to assist the Deck Department in docking and undocking the vessel without the payment of overtime, except when such work is performed in excess of eight (8) hours in any calendar day, or any time on Saturdays, Sundays and Holidays.
5. Maintenance overtime shall be divided as equally as possible between men of this rating.
6. At sea he may be required to assist the Electrician in any work necessary for the operation of reefer containers, including plugging and unplugging reefer containers.

SECTION 41. QUALIFIED MEMBER OF THE ENGINE DEPARTMENT (Q.M.E.D.)

1. The duties of the Qualified Member of the Engine Department (Q.M.E.D.) shall be all work necessary for the continuance of the operation of the Engine Department.
2. He shall perform maintenance and repairs throughout the vessel under the direction of the Engineer in charge.
3. If he is a day worker, he may be required to replace a missing Watchstander.
4. He may be required to take on fuel and water and to take soundings as directed by the Engineer in charge.
5. When no Ship's Welder/Maintenance is carried, he may, if qualified, be required to burn and weld.
6. He may be required to assist in any work necessary for the operation of reefer equipment and containers, including the taking of temperatures.
7. When designated as a "day worker," they may be required to chip, paint, and sougee up to three (3) hours per day, during normal working hours, Monday through Friday between the hours of 8 a.m. and 5 p.m., without the payment of overtime or other penalties. The three (3) hour restriction shall not apply to chipping, painting or sougeeing where such work is incidental to a specific repair job. They shall not be so assigned when maintenance work orders requiring their participation or assistance is being performed without being paid at the rate specified in Article II, Section 22 (b) - Penalty Rates. In any case, on vessels carrying more than one (1) Q.M.E.D., the Q.M.E.D. with the lowest rated classification may be so assigned.
8. When necessary, minor repairs may be made during a routine watch without any penalty payments.
9. On vessels carrying the rating of Q.M.E.D./Plumber-Machinist, they shall perform the duties prescribed above in addition to such duties prescribed for the rating of Plumber-Machinist as specified in Article IV, Section 12. He shall be paid in accordance with his Q.M.E.D. classification or Plumber-Machinist, whichever is higher.
10. On vessels carrying the rating of Q.M.E.D./Electrician, he shall perform the duties of Q.M.E.D. as defined above, in addition to the duties prescribed for the rating of Electrician in Article IV, Section 9. He shall be paid in accordance with his Q.M.E.D. classification or Electrician, whichever is higher.
11. The QMEDs may be required to assist the Deck Department in docking and undocking the vessel without the payment of overtime, except when such work is performed in excess of eight (8) hours in any calendar day or any time on Saturdays, Sundays or Holidays.
12. On vessels carrying the rating of QMED or Chief Electrician Relief, he shall perform the duties of QMED or Chief Electrician as defined above. In addition, when assigned to the position of QMED/Electrician or Chief Electrician, he shall also perform the duties prescribed for the rating of Electrician, Article IV, Section 9 and he shall be paid at the QMED Electrician or Chief Electrician rate, whichever is appropriate.

SECTION 42. GENERAL UTILITY DECK/ENGINE.

On vessels, newly constructed or converted and placed in operation on or after June 15, 1975, the above named rating shall perform the normal duties of a Wiper as defined in Article IV, Section 28 of this Agreement. He may further be required to perform such duties normally performed by the rating of Ordinary

Seaman. He shall be responsible to the direct supervision of the Chief Engineer or Watch-Engineer on duty except when assigned to the Deck Department, when his duties will be assigned by the Bosun.

This rating shall be classed as a day worker and when applicable shall receive the Overtime and Penalty Rates prescribed for the rating of Wiper.

When the Unlicensed Deck Department consists of seven (7) or less seamen, the GUD/E(s) shall be required to assist in docking or undocking the vessel at all times. He shall perform general maintenance throughout the vessel including chipping, painting and sougeeing during routine work hours without penalty pay.

SECTION 43. GENERAL VESSEL ASSISTANT.

The duties the General Vessel Assistant may perform, but shall not be limited to, shall be those of the rating of Ordinary Seaman, General Utility Deck Engine and Steward Assistant.

SECTION 44. WORK JURISDICTION.

It is understood that the preservation of the jurisdiction of the Union is the essence of this Agreement and that the provisions of this contract establishing jurisdiction shall be rigorously and strictly enforced through the cooperative efforts of the parties.

Specifically and without limitation, any work performed by cadets, workaways, passengers, prisoners of war, staff officers, licensed deck officers, licensed engine officers, or any member of the crew other than the Unlicensed Personnel that is the routine work of the Unlicensed Personnel shall be paid for at the Overtime Rate when such work is performed Monday through Friday and at the Overtime Rate when such work is performed on Saturdays, Sundays or Holidays. Such payment is to be divided among the Unlicensed Personnel ordinarily required to perform such work.

Unlicensed Personnel shall continue to perform such work as they have heretofore customarily and traditionally performed, regardless of technological or other changes implemented or sought to be implemented aboard vessels operated by any of the companies who are signatory to this Agreement.

The Company agrees that no sea-going work or services of the kind, nature or type historically or traditionally performed, or presently performed, or hereafter assigned to the Unlicensed Personnel covered by this Agreement will be subcontracted, transferred or assigned in whole or in part to any other person or entity. The Company agrees to maintain existing unlicensed manning in the Engine Department, and the Unlicensed Engine Department crew members shall perform all contractual duties including general maintenance and repair under the supervision of a licensed engineer. It is the purpose and intent of this clause to preserve the work of the Unlicensed Personnel covered by this Agreement and, accordingly, said clause shall not be applicable to work or services which historically and traditionally have been performed by other persons or entities.

SECTION 45. PYRAMIDING OF OVERTIME.

There shall be no duplication or pyramiding of overtime except where specifically provided for.

ARTICLE V. STEWARD DEPARTMENT

SECTION 1. WAGES.

The monthly rate of pay for the Unlicensed Personnel in the Steward Department, when the respective ratings are carried, shall be as follows:

Ratings	July 1, 2022	July 1, 2023	July 1, 2024	July 1, 2025	July 1, 2026
Chief Steward	6163.07	6409.60	6665.98	6865.96	7071.94
Steward/Cook	6163.07	6409.60	6665.98	6865.96	7071.94
Steward/Baker	6163.07	6409.60	6665.98	6865.96	7071.94
Chief Cook	4845.03	5038.84	5240.39	5397.60	5559.53
Cook & Baker	4722.03	4910.91	5107.34	5260.56	5418.38
Second Cook	4268.64	4524.76	4705.75	4846.92	4992.33
Third Cook	4210.94	4463.60	4642.14	4781.40	4924.85
Asst. Cook/Utility	4210.94	4463.60	4642.14	4781.40	4924.85
Steward Assistant	3065.40	3096.05	3157.97	3252.71	3350.29

On freighters when passengers are carried, the Third Cook will be re-rated as Second and will be paid wages in accordance with the agreement.

SECTION 2. MINIMUM OVERTIME.

At sea, when any member of the Steward Department is called out to work between the hours of 7:30 p.m. and 5:30 a.m., a minimum of two (2) hours overtime shall be paid.

SECTION 3. HOURS OF WORK.

(a.) No member of the Steward Department shall be required to work in excess of eight (8) hours in any one (1) day without the payment of overtime.

(b.) Any work required to be performed outside his regular hours, or on Saturdays, Sundays and Holidays, shall be paid for at the applicable overtime rate.

SECTION 4. WORKING HOURS.

Members of the Steward Department shall each work eight (8) hours of straight time each day between 5:30 a.m. and 6:30 p.m.

SECTION 5. STEWARD DEPARTMENT ORGANIZATION

(a) DUTIES

1. Except as otherwise specified, the Chief Steward, Steward/Baker or Steward/Cook shall assign the duties of each and every member in the Steward Department and shall work with and assist the Chief Cook in the preparation and serving of all meals and maintenance and cleanliness of the galley. These individuals shall be Serve Safe certified.

2. Additional duties of the Cook and Baker shall be to prepare, cook and serve all vegetables for dinner and supper meals, scrub the galley after the supper meal with the assistance of a Steward Assistant, prepare night lunches and cooked salads.

3. Steward Assistant shall prepare all cold drinks used and draw supplies as needed.

4. Steward Assistant Utilities duties shall be as assigned by the Chief Steward.

5. Assistant Cook/Utility shall assist in the galley when required and perform such other duties as are assigned to him by the Chief Steward.

6. 3- Man Steward Departments

The Steward Baker's normal day shall consist of eight (8) hours, commencing at 0530 hours and terminating at 1830 hours. Three (3) additional hours shall be offered daily to perform such work as may be necessary outside the normal work schedule. The three (3) additional hours are not to be considered as blanket overtime. The three (3) hours are payable for specific duties performed. Any work to be performed

in excess of the three (3) additional hours must be authorized by the ship's master.

Specifically:

(a.) The Steward Baker will be offered 3 hours of overtime each day. He/She needs to do actual work that the Master concurs needs to be done on OT during these 3 hours or the portion of these 3 hours actually worked.

(b.) The Steward Baker will be paid for OT actually worked. If a 10 hour day is worked he/she will be paid for the normal 8 hours plus 2 hours of OT.

(c.) Each instance of OT beyond the 3 hours must be specifically approved in advance by the Master.

7. 4- Man Steward Departments

The Steward Baker's normal day shall consist of eight (8) hours, commencing at 0530 hours and terminating at 1830 hours. Two (2) additional hours shall be offered daily to perform such work as may be necessary outside the normal work schedule. The two (2) additional hours are not to be considered as blanket overtime. The two (2) hours are payable for specific duties performed. Any work to be performed in excess of the two (2) additional hours must be authorized by the ship's master.

Specifically:

(a.) The Steward Baker will be offered 2 hours of overtime each day. He/She needs to do actual work that the Master concurs needs to be done on OT during these 2 hours or the portion of these 2 hours actually worked.

(b.) The Steward Baker will be paid for OT actually worked. If a 9 hour day is worked he/she will be paid for the normal 8 hours plus 1 hour of OT.

(c.) Each instance of OT beyond the 2 hours must be specifically approved in advance by the Master.

(b) VESSELS CARRYING PASSENGERS

1. When passengers are on board, the Passengers Utilities' working hours shall be the same as the Messman.

2. In all ports, the Cook and Baker shall work on a schedule between 6:00 a.m. and 6:00 p.m. as set forth by the Steward.

When meal hours are changed for Deck and Engine Departments in accordance with Article II, Section 45, the Steward Department's working hours may be changed accordingly provided, however, that they be given two (2) hours notice prior to the time necessary to prepare meals.

3. Five dollars (\$5.00) per day, for each passenger over six (6) passengers shall be paid on these vessels when from seven (7) to twelve (12) are carried. These monies shall be divided among the members of the Steward Department who perform the work or, at the Company's option, an additional Passenger Utilityman may be carried.

4. When the vessel commences a voyage without passengers, and without a Passenger Utilityman and is manned in accordance with this section and passengers are taken aboard, five dollars (\$5.00) per day per passenger shall be paid and divided among the members of the Steward Department who perform this work.

5. When five dollars (\$5.00) per day per passenger is being paid to members of the Steward Department, there shall be no division of wages as outlined in Article V, Section 7, because of the absence of this member in the Steward Department.

When the Company receives no compensation for a minor child, then the five dollars (\$5.00) per day shall not be applicable.

If the five dollars (\$5.00) per passenger per day is being paid in lieu of increasing the Steward Department personnel, and a passenger boards or leaves a vessel before the serving of any of the three (3) meals, at the beginning or termination of such passenger's voyage, the rate of five dollars (\$5.00) prescribed herein shall be reduced in the amount of one dollar and sixty-six cents (\$1.66) for each meal missed.

6. If any person who is not included in the vessel's contracted manning scale is carried by the vessel, the Company shall pay the Steward Department five dollars (\$5.00) per day for each such person. Cadets, Pilots and additional labor shipped from the SIU hiring halls are excluded.

However, when Pilots remain on board after terminating their navigational duties, the

Company shall be subject to the five dollars (\$5.00) payment for any calendar day in which their services are not required. The five dollars (\$5.00) penalty shall also be applicable when more than one (1) apprentice Pilot is carried.

SECTION 6. FULL COMPLEMENT.

(a.) The full complement of the Steward Department shall be maintained when the vessel is feeding. This shall not apply when a skeleton crew is aboard.

(b.) When a skeleton crew is aboard and the ship is feeding, the number of personnel to be retained in the Steward Department shall be as mutually agreed by the Company and the Union.

(c.) On vessels acquired as a result of Military Contracts, Steward Department manning and adjustments thereto shall be as prescribed in the contract between the Contracted Employer and the Military Sealift Command (MSC) or the Maritime Administration (MARAD).

SECTION 7. WORKING DUE TO ABSENT MEMBERS.

(a.) When a vessel is in a Continental United States port and a member of the Steward Department is missing, the men who do the missing man's work shall be paid overtime for actual time worked over their normal eight (8) hours.

(b.) If a vessel sails without the full complement in the Steward Department as required by this Agreement, then the men who do the missing men's work will receive, in addition to a division of wages of the missing men, the overtime that the missing men would normally have made on a Saturday, Sunday or Holiday.

(c.) While on a voyage and a member of the Steward Department becomes ill or is injured, and remains aboard the vessel, the men who do his work shall receive a division of wages but they shall not receive any overtime for doing this work.

SECTION 8. ROUTINE WORK.

(a.) The regular routine duties laid out below shall be carried out within the scheduled working hours as specified above, and it shall be the duty of the Steward to organize the work in his department, so that it is accomplished within the eight (8) hours per day as scheduled in this Agreement. Routine duties of the Steward Department shall be to prepare and serve the meals. They shall also clean and maintain, including spot sougeeing and polishing bright work, the quarters of the Licensed Personnel, the Radio Officers, the Pursers, Passengers and the ship's office, all dining rooms, messrooms, washrooms, galley and pantry. They shall sort and cull fruit and vegetables. Unless otherwise specified in this Agreement, no overtime applies to the above routine work unless performed in excess of eight (8) hours.

(b.) At sea, the Utility, if assigned to the daily cleaning of the radio shack, shall receive not less than three (3) hours overtime per week at the Overtime Rate.

(c.) It shall be routine duties for the Steward Utility to count and bag linen, work in storerooms, linen lockers, toilets and Steward Department enclosed passageways and do general cleaning within his eight (8) hours as directed by the Steward.

(d.) Where Steward Department Personnel are required to wax and polish decks, it shall be among their routine duties to maintain same daily. When required to remove old wax preparatory to re-waxing and re-wax same, he shall be paid overtime for such work performed.

SECTION 9. RECEIVING STORES.

The Steward shall be solely responsible for checking and receiving of voyage stores and linen, and he shall not delegate this responsibility to any other member of the Steward Department. He shall be required to go on the dock to check stores and linens without the payment of overtime during his regular working hours.

SECTION 10. HANDLING STORES.

Steward's stores shall be brought aboard by the Deck Department. Steward's stores shall be distributed to the meat box, chill box, or storerooms by either Deck Department or Steward Department personnel and shall be stowed by the Steward's Department.

SECTION 11. LATE MEALS.

When members of the Steward Department are required to serve late meals due to the failure of the

Ships Officers or Unlicensed Personnel to eat within the prescribed time, the members of the Steward Department actually required to stand by to prepare and serve the late meals, shall be paid at the applicable rate.

SECTION 12. SHIFTING MEALS.

When meal hours are extended for any reason and any of the Unlicensed Personnel or Ships Officers are unable to eat within the regular prescribed time, all members of the Steward Department required to stand by to prepare and serve the meals shall be paid at the applicable rate from the time the meal is extended. As much notice as possible shall be given the Steward Department when meals are to be shifted; in general this notice shall be at least 2 hours in advance. In the event the two (2) hours notice is not given, the meal hour shall not be shifted. Shifting of meals shall be done in accordance with the provisions of Article II, Section 45.

SECTION 13. MEALS IN PORT.

(a.) When meals are served in port to other than regular members of the crew, passengers, pilot, SIU shore gang, crane maintenance personnel and riding gang, port engineers, supercargoes and port captains, when assigned to the vessel, one dollar (\$1.00) per meal served shall be paid and divided among the members of the Steward Department actually engaged in preparing and serving meals.

(b.) When food is prepared for persons who do not require the service of messroom, two (2) hours overtime per meal shall be paid for the first group of six (6) persons and fractions thereof, and one (1) hour overtime for each four (4) additional persons or fractions thereof. This money is to be divided equally among the Steward Department personnel involved in the work.

(c.) No extra meals are to be served without the authority of the Master or officer in charge of the vessel.

SECTION 14. EXTRA PERSONS SLEEPING ABOARD.

In port, when persons other than regular crew members, passengers, pilot or a Company representative sleeps aboard, the member of the Steward Department who takes care of the room shall be paid one (1) hour overtime per day. This does not apply when a ship carries the required complement to accommodate passengers and the number of extra persons aboard do not exceed the full complement of passengers allowed. This does not apply to relief officers.

SECTION 15. SERVING MEALS OUTSIDE OF MESSROOMS.

When any member of the Steward Department is required to serve anyone outside of their respective messrooms for any reason, he shall be paid at the applicable rate for time required. However, meals may be served on the bridge to the Master and/or Pilot without the payment of overtime whenever it is necessary for them to be on the bridge for the safety of the ship. The Captain's office or stateroom shall not be classified as the bridge of the ship. This section shall not be construed to apply to passengers or ship's personnel served during regular working hours on account of illness.

SECTION 16. MIDNIGHT MEALS AND NIGHT LUNCHES.

(a.) Members of the Steward Department actually engaged in serving lunches at midnight are to be allowed three (3) hours overtime for preparing and serving same.

(b.) When not more than the equivalent of one (1) department is served at 9:00 p.m. or at 3:00 a.m. night lunch, one (1) cook shall be turned out to perform this work. When a midnight lunch is served to not more than five (5) men, one (1) cook shall perform this work. When from six (6) to ten (10) men are served, one (1) cook and one (1) messman shall perform this work. When more than ten (10) men are served, one (1) cook and two (2) messmen shall perform this work.

(c.) When meals are not provided as specified in Article II, Section 46, the number of Steward Department personnel who would normally be broken out to prepare such meals shall be paid the overtime specified in paragraph (a) above, at the Overtime Rate.

SECTION 17. CLEANING MEAT AND CHILL BOXES.

(a.) Members of the Steward Department shall be assigned by the Steward to clean meat and chill boxes and shall be paid at the applicable rate for actual time worked. Boxes shall not be cleaned without the express authorization of the Chief Steward.

(b.) Keeping the meat and chill boxes neat and orderly at all times, such as cleaning out paper wrapping, crates, etc., within regular working hours, is not to be considered overtime.

SECTION 18. MAKING ICE.

On ships where ice machines are carried, members of the Steward Department will not be required to make ice or pull ice, except when the onboard ice machine is broken. On ships where ice machines are not carried, and members of the Steward Department are required to make ice, overtime shall be paid for such work performed. This does not apply to making ice cubes in small refrigerators or ice machines, which are located in messrooms, pantries or galleys.

SECTION 19. OVERTIME FOR BUTCHERING.

When carcass beef, in eighths or larger is carried, the man required to butcher this beef shall be paid a minimum of six (6) hours overtime weekly for butchering. This shall not apply when a Butcher is carried.

SECTION 20. SHORE BREAD.

(a.) The Company shall furnish bread from ashore in all Continental U.S. ports. When bread is not furnished in Continental U.S. ports within twenty-four (24) hours after arrival, excluding Saturdays, Sundays and Holidays, the Cook & Baker or Steward/Baker shall be required to make bread and will be paid three (3) hours overtime for each batch of bread made.

(b.) When a new Cook & Baker or Steward/Baker is employed, he may be required to make a batch of bread during his regular working hours without the payment of overtime.

SECTION 21. SOUGEEING.

When members of the Steward Department are required to sougee, overtime shall be paid for the actual number of hours worked, except as provided in Article V, Section 25. Wiping off fingerprints, grease spots, etc., shall not be considered sougeeing.

SECTION 22. CHIPPING, SCALING AND PAINTING.

Members of the Steward Department shall not be required to chip, scale or paint.

SECTION 23. DUMPING GARBAGE.

No member of the Steward Department shall be required to go on the dock for the purpose of dumping garbage, without the payment of overtime.

On vessels equipped with automatic garbage disposal units located adjacent to the ship's galley, messroom or storerooms, it shall be routine for the Steward Department to operate such unit during regular working hours without the payment of overtime.

SECTION 24. OIL STOVES.

Members of the Steward Department shall not be required to pump oil for the galley range.

SECTION 25. DAY WORK.

(a.) When the ship is not feeding and members of the Steward Department are on day work, the hours shall be 8:00 a.m. to 12:00 noon and 1:00 p.m. to 5:00 p.m.

(b.) When members of the Steward Department are on day work, they may be required to work in storerooms, linen lockers, toilets, passengers' and officers' quarters, messrooms, galley, Steward Department passageways, handle stores and linen placed aboard ship, and do general cleaning without the payment of overtime.

(c.) When members of the Steward Department are on day work, they shall be allowed fifteen (15) minutes for coffee at 10 :00 a.m. and 3:00 p.m. or at a convenient time near these hours.

(d.) When members of the Steward Department are on day work, they shall receive one (1) full hour from 12:00 noon until 1:00 p.m. for lunch. This hour may be varied, but such variation shall not exceed one (1) hour either way, provided that one (1) unbroken hour shall be allowed at all times for dinner or supper when men are on day work. If one (1) unbroken hour is not given, the men involved shall be paid one (1) hour's compensation at the Penalty Rate in lieu thereof.

(e.) Extra members of the Steward Department who are carried to take care of passengers may be assigned to day work when passengers leave the vessel, and such members shall work as directed by the

Chief Steward. In addition to the work outlined in Subsection (b) of this section, such members may be required to sougee in passengers' quarters, including toilets, washrooms and alleyways, during their regular hours of work without the payment of overtime. Passenger Utilitymen who are on day work when no passengers are aboard, shall be allowed to work weekends and Holidays.

SECTION 26. GALLEY GEAR.

The Company shall furnish all tools for the galley including knives for the cooks.

SECTION 27. APRONS AND UNIFORMS.

White caps, aprons and coats worn by the Steward Department shall be furnished and laundered by the Company, and white trousers worn by the galley force shall be laundered by the Company.

SECTION 28. ENTERING ENGINE ROOM AND FIRE- ROOM.

Members of the Steward Department shall not be required to enter the engine or fireroom except as may be required by Article II, Section 19.

SECTION 29. WORK NOT SPECIFIED.

Any work performed by the Steward Department that is not specifically defined in this Agreement shall be paid for at the regular overtime rate.

SECTION 30. PYRAMIDING OF OVERTIME.

There shall be no duplication or pyramiding of overtime except where specifically provided for.

ARTICLE VI. OTHER PROVISIONS

SECTION 1.

A. Sales and Transfers

1. In order to preserve the jobs of the Company's Unlicensed Personnel covered by this Agreement, the Company agrees that should any vessel presently or hereinafter covered by this Agreement be sold or transferred in any manner to another entity (excluding the Federal Government) for operation under U.S. flag (but not including a vessel which the Company may be operating under a bareboat charter and the charter is terminated), the vessel shall be sold or transferred with the full complement of Unlicensed Personnel last employed on said vessel.

2. In order to protect and maintain the wages, pension rights, other economic benefits and conditions of such Unlicensed Personnel, and to prevent their immediate discharge by the buyer or transferee, thereby frustrating the preservation of their job rights, the Company agrees that prior to any sale or transfer, it will obtain from the purchaser or transferee a written agreement providing:

(a.) that the purchaser or transferee shall immediately upon sale or transfer employ the Unlicensed Personnel last employed on said vessel, and thereafter shall not terminate such Unlicensed Personnel without just cause; and

(b.) that for the life of the vessel, the purchaser or transferee will provide such Unlicensed Personnel with wages, pension benefits and other economic benefits and conditions (such as health and medical benefits, overtime pay, etc.) at least equal to that which would have been enjoyed had such Unlicensed Personnel continued employment on the vessel by the Company; and

(c.) that disputes involving the interpretation or application of the obligations contained in said written Agreement shall be resolved by arbitration under the procedures of the American Arbitration Association; and

(d.) that said written agreement shall be specifically enforceable by the Union on behalf of one or more of the Unlicensed Personnel for whose benefits it is made.

3. It is understood that none of the conditions herein shall require the purchaser or transferee to accept or adopt the Company's Agreement with the Union.

4. In the event the Company wishes to replace a vessel with another vessel to be covered by this Agreement, the Union will discuss the disposition of the existing vessel with the Company.

B. Successors and Assigns

This Agreement and all Supplements and Addenda shall be binding upon the parties hereto, their successors, administrators, executors and assigns. The Company agrees that its operations covered by this Agreement, either in their entirety or in severable part, shall not be sold, conveyed or otherwise transferred or assigned to another entity without first securing the written agreement of said entity to assume the Company's obligations under this Agreement. It is understood and agreed that this Successors and Assigns clause shall be applicable except for sales or transfers of a vessel in the Company's normal course of business, if any, which sales and transfers shall be covered by Subsection A above.

C. Compliance

1. The Company shall give written notice to the Union of any transaction within the scope of Subsections A or B above. Such notice shall describe the exact nature of the transaction and shall be given sixty (60) days (or the earliest shorter period when sixty (60) days is not possible) prior to the consummation of any agreement on the transaction.

2. In the event the Company fails to secure the written agreement required by Subsections A or B above, the Company shall be liable to the Union in the sum certain amount equal to the total employment costs of a full complement of Unlicensed Personnel on each involved vessel for a period of three (3) years. Such sum shall be distributed by the Union to the Unlicensed Personnel injured by the Company's breach and shall not be reduced by the interim earnings of such Unlicensed Personnel or for any other reason. The Union reserves the right to seek such other or additional relief as it deems appropriate.

3. The provisions of this Section shall be deemed of the essence of this Agreement and, in the event of any violation thereof, shall be enforceable by the Arbitrator pursuant to the arbitration procedure set forth on Article II, Section 3 of this Agreement, and such violation shall constitute an immediate waiver of any and all no-strike pledges contained in this Agreement.

SECTION 2. SUPPLEMENTARY AGREEMENTS.

It is agreed that any agreements that are presently in effect covering War Risk Insurance and Area Bonuses be continued as is with no change. In addition, any and all Addenda, Supplementary Agreements and/or Memoranda of Understanding, the contents of which have not been incorporated into this Collective Bargaining Agreement, shall be continued in effect and, if modified, as so modified shall be incorporated into and made a part of this Collective Bargaining Agreement.

SECTION 3. CONTRACT CONSTRUCTION.

It is agreed that for purposes of construction of this Agreement, wherever the masculine gender is used, it shall include the feminine gender.

SECTION 4. COST OF LIVING ADJUSTMENT.

The cost of living adjustment due on July 1, 2022 under the Agreement is hereby waived.

Based on the percentage increase between April 1, 2023 and April 1, 2024 of the Consumer Price Index — United States City Average for Urban Wage Earners and Clerical Workers or its agreed upon successor — published by the Bureau of Labor Statistics of the U.S. Department of Labor (1982-1984=100), effective July 1, 2024, a cost of living adjustment equal to the percentage increases above shall be added to the base wage and Overtime and Penalty Rates specified in Article II, Section 22, Subsections (a) and (b).

Increases shall be paid on the basis of each full percent increase with any unpaid fraction carried over to the next period or periods and used in computing the percentage increase for such later period or periods.

Further cost of living adjustments shall be granted under the same formula at yearly intervals, based on the Consumer Price Index increases, if any, between April 1, 2024 and April 1, 2026, to be effective July 1, 2026.

It is understood and agreed that neither of the foregoing adjustments shall be effective unless and to the extent that increases in the Consumer Price Index for the particular year in question exceeds ten percent (10%). If the CPI for the particular year in question exceeds ten percent (10%), the adjustment shall be the full percent differential between the CPI for that year and ten percent (10%). This differential shall be paid in addition to the specific contractual wage increase, if any.

SECTION 5. GOVERNMENT BIDS.

The Union and the Contracted Employers, upon seven (7) days written or electronic notice, shall meet to discuss the need to revise or amend the provisions of the current Agreement, including all cost items in any case in which such provisions and/or costs could adversely affect the potential employment of the Unlicensed Personnel, aboard vessels owned or chartered by the Federal Government, and sought to be operated by the Contracted Employer(s).

SECTION 6. WORK RULES.

The Parties will establish work rules, including rest periods in compliance with international standards requiring rest periods prior to going on watch.

ARTICLE VII - DURATION OF AGREEMENT

The provisions of this Agreement shall become effective July 1, 2022 and shall be binding upon the parties through June 30, 2027 and shall be considered as renewed from year to year thereafter unless no less than sixty (60) days prior to the expiration of this Agreement either party gives written notice to the other party of its desire to terminate or to negotiate with respect to the terms and conditions of this Agreement.

ARTICLE VIII - GUIDE FOR A THREE-PERSON STEWARD DEPARTMENT

The purpose of this guide, along with the Seafarers Harry Lundeberg School of Seamanship's adopted Steward Department Handbook, is to assist the Steward Department in performing its function as fairly and efficiently as possible.

SECTION 1. STEWARD/BAKER

a. DUTIES

The regular duties of the Steward/Baker shall be to supervise all work of the Steward Department, including the supervision of preparing and serving all meals; he/she is responsible for the receiving and issuance of all stores, inspection of work, preparing requisitions, taking inventory of stock, authorizing, checking and recording overtime, issuance of linen and soaps to the crew and officers on the days designated with the help of the Steward Department.

He/She shall prepare all menus and control Steward Department keys. He/She shall see that all quarters under his/her jurisdiction are cleaned properly, that meals are served on time, authorize the cleaning of all refrigerated storage boxes. He/She may also do any work he/she may deem necessary for the efficient operation of his/her department.

He/She shall coordinate the work of his/her department so that no one in the department will be taxed unfairly or beyond their capacity.

During the operation of the vessel, the Steward/Baker will supervise and assist all members of the Steward Department to see to it that the food storage areas are kept clean and orderly.

All work in excess of the eleven (11) hour daily schedule is subject to the Master's approval.

b. HOURS OF WORK.

The Steward Baker's normal day shall consist of eight (8) hours, commencing at 0530 hours and terminating at 1830 hours. Three (3) additional hours shall be offered daily to perform such work as may be necessary outside the normal work schedule. The three (3) additional hours are not to be considered as blanket overtime. The three (3) hours are payable for specific duties performed. Any work to be performed in excess of the three (3) additional hours must be authorized by the Ship's Master.

The word "overtime" means additional compensation as provided for in an applicable SIU Agreement whether termed "penalty time", "overtime", or "premium overtime" by that agreement.

c. MEAL PREPERATION.

In a three-person Steward Department, the Steward is a Steward/Baker. Hence, there are certain tasks he/she must perform with regard to meal preparation. These tasks are:

- | | |
|-----------------|--|
| 1. Breakfast: | The Steward/Baker prepares breakfast. |
| 2. Other Meals: | The Steward/Baker prepares all salads and/or salad bars. He/She prepares all desserts.
He/She may assist the Chief Cook in preparation of all vegetables. |
| 3. Night Lunch | The Steward/Baker prepares the night lunch. |

All meat shall be thawed by putting in chill box NOT by thawing on countertop.

d. MEAL SERVING.

The Steward/Baker serves breakfast by himself/herself. He/She assists in serving all other meals. The Chief Cook will assist when needed.

e. COST CONTROL.

The Steward/Baker shall place all usable leftovers in sanitary containers. The containers shall be legibly marked containers and properly stowed in cold storage. Leftovers shall be utilized as soon as possible. Leftovers should be discarded after 24 hours (as per standard industry practice) and shall not be frozen.

f. PORTION CONTROL.

The following items shall be considered routine in a three-person Steward Department.

Bisquick
Dry muffin mix
Cake mix
Boneless strip loins
Boneless chicken breasts
Peeled shrimp

The above can be used in lieu of Portion control frozen and precooked items.

g. CLEANLINESS OF THE GALLEY.

The Steward/Baker with the assistance of the Chief Cook and SA shall maintain the galley in a clean and sanitary condition by routinely cleaning all utensils and cleaning all areas of the galley used by the members of the steward department when carrying out their meal preparation tasks.

h. CLEANLINESS OF CHILL BOXES, FREEZERS, FOOD LOCKERS AND STOREROOMS.

As soon as possible after a major storing (port stores not included), the Steward/Baker shall see to it that the storage areas are arranged as neatly as possible so as to conform to the requisition books and inventory system so that spot inventories by shore side officials may be expeditiously carried out..

i. CLEANLINESS OF LIVING SPACES.

The Steward/Baker shall supervise and assist the Steward's Assistant to strip, wax, and buff the living space passageways.

The Steward/Baker shall supervise and assist the Steward's Assistant to shampoo and clean rugs and carpets in the living spaces.

Overtime shall be paid for doing this work when required by the Master.

j. INVENTORIES.

The Steward/Baker shall prepare inventories at the times and in the format required by the vessel operator. In addition, when the Steward/Baker is about to be relieved, he/she shall prepare, date and sign a complete inventory. Before leaving the vessel, he/she shall give a copy of this inventory to the vessel's Master and a copy to the Steward/Baker who is relieving him.

k. OTHER DUTIES.

Port orders will be prepared as per company policy directives and E-mailed to the company office for approval.

Following Company directives, requisitions will be e-mailed to the office approximately at least fifteen (15 days) prior to the scheduled storing date.

Ninety (90) Day Inventory Book will be closed out on the 90th day, at sea or in port. When a vessel arrives in port for Dry-dock or Lay-up prior to the 90th day, the Inventory Book will be closed on the effective date or layoff.

Under no circumstance are items in the Requisition Book to be changed or substituted.

The Steward is responsible for the sanitary cleanliness of the entire ship's house.

Sanitary person will work from 0800 to 1200 under the jurisdiction and direction of the Steward/Baker maintaining cleanliness of Crew Quarters, Passageways and other areas as directed by the steward.

SECTION 2. CHIEF COOK

a. DUTIES

The Chief Cook shall do the butchering, cook roasts, soups, gravies and sauces; prepare and serve all food, assist the Steward/Baker in serving breakfast and in the preparation of menus when required. He/She shall work under the supervision of the Steward/Baker and shall receive stores when necessary and assist in the proper storage of the same. As directed by the Steward/Baker, he/she shall assist in taking inventory of the galley stores and galley equipment; also report to the Steward/Baker any repairs and replacing of any equipment. He/She shall be responsible for the general cleanliness of the galley and its equipment. He shall keep the meat box in an orderly condition.

b. HOURS OF WORK.

The Chief Cook's normal day shall consist of eight (8) hours, commencing at 0600 hours and terminating at 1830 hours. Three (3) additional hours shall be offered daily to perform such work as may be necessary outside the normal work schedule. The three (3) additional hours are not to be considered as blanket

overtime. The three (3) hours are payable for specific duties performed. Any work to be performed in excess of the three (3) additional hours must be authorized by the ship's Master.

c. MEAL PREPERATION.

In addition to the food preparation tasks set out in the SIU Steward Department Working Rules, the Chief Cook shall:

- Prepare all sandwiches.
- Prepare all vegetables.
- Serve Meals.
- Ensure all meat is thawed by putting in chill box NOT by thawing on countertop.

d. MEAL SERVING.

With the assistance of the Steward/Baker, the Chief Cook shall serve lunch and dinner.

At the completion of meal service, the Chief Cook shall store and package leftovers (date and tag) for use within 24 hours. Left overs must never be frozen for future use.

e. CLEANLINESS OF THE GALLEY.

The Chief Cook is responsible for the cleanliness of the galley. As a matter of routine, the Chief Cook shall clean all utensils used by him/her and clean all areas of the Galley used by him/her to carry out his/her meal preparation tasks. The Chief Cook shall sweep and scrub the galley deck every day.

f. CLEANLINESS OF CHILL BOXES, FREEZERS, FOOD LOCKERS & STORE ROOMS.

The Chief Cook shall assist the Steward/Baker in keeping all food storage areas clean and orderly.

When galley ranges and ovens are not in use, they are to be turned off during non-working hours and at night.

g. OTHER DUTIES.

The Chief Cook shall do all work which is ancillary to his/her job and which the Steward/Baker may assign to him/her.

Failure to follow the above will be cause for disciplinary action under the S.A.B. Rules.

SECTION 3. STEWARD'S ASSISTANT

a. HOURS OF WORK.

The Steward Assistant's normal day shall consist of eight (8) hours, commencing at 0530 hours and terminating at 1830 hours. Three (3) additional hours shall be offered daily to perform such work as may be necessary outside the normal work schedule. The three (3) additional hours are not to be considered as blanket overtime. The three (3) hours are payable for specific duties performed. Any work to be performed in excess of the three (3) additional hours must be authorized by the Ship's Master.

b. MESS-HALL PREPARATION.

The Steward's Assistant is responsible for having all dining areas prepared for every meal. In a cafeteria style operation, the Steward's Assistant will not be required to set out silverware or tableware. The Steward's Assistant shall report to and work under the direction of the Steward/Baker.

As a matter of daily routine, the Steward's Assistant shall include, but not be limited to the following:

- Place clean table cloths on all tables when necessary.
- Place all condiments on the tables.
- Place butter dish, water pitchers and cold pitchers on all tables.
- Maintain cleanliness of pantries, wash dishes, glasses and silverware.
- Clean and mop messrooms, dispose of garbage from galley and messrooms.

c. MEAL PREPARATION.

The Steward's Assistant shall make the coffee and the cold drinks for all meals at which these beverages are to be served.

d. CLEANLINESS OF MESS-HALLS AND PANTRY.

The Steward's Assistant shall sweep and scrub the decks of all mess-halls and pantries as often as necessary, and in no case less than once a day.

e. CLEANLINESS OF LICENSED OFFICERS' QUARTERS.

The Steward's Assistant shall keep the Licensed Officer's quarters clean as instructed by the Steward/Baker. This shall include, at a minimum, empty garbage, make bed, supply soap/toilet paper if needed, clean toilet and sink.

Licensed Officers' quarters shall include the cabins occupied by such officers and any adjoining offices. Licensed Officers' quarters shall also include any passageways and/or ladder ways designated by the Steward/Baker.

f. CLEANLINESS OF LICENSED OFFICERS' LAUNDRY.

The Steward's Assistant shall keep the Licensed Officers' laundry clean and orderly as he/she is instructed to do so by the Steward/Baker. This task shall include keeping the deck clean and keeping the laundry supplied with soap, detergent, bleach, and similar necessities.

g. CLEANLINESS OF LICENSED OFFICERS' RECREATION ROOM.

The Steward's Assistant shall keep the Licensed Officers' recreation room clean as he/she is instructed to do so by the Steward/Baker.

ARTICLE IX - SHIPPING RULES

As Of: July 1, 2022

Preamble

Every seaman seeking employment through the hiring halls of the Seafarers International Union - Atlantic, Gulf, Lakes and Inland Waters, (hereinafter referred to as "Union"), shall be shipped pursuant to the following Shipping Rules. Nothing contained in these Shipping Rules is in any way intended to create any indemnity obligation on the part of either the Union or the Seafarers Health and Benefits Plan.

Due to new construction, vessel acquisitions, technological change and/or government regulations, these Rules may be suspended or modified for a period of six months to insure that the Unlicensed Personnel possess the experience and necessary skills to provide a high degree of safety and productivity during the course of their employment. This six- month period shall be designated as Organizational Status.

It is agreed that for purposes of construction of these Shipping Rules, wherever the masculine gender is used, it shall include the feminine gender.

1. Seniority

A. Subject to the conditions and restrictions on employment contained in agreements between the Union and contracted Employers and to the Rules set forth herein, seamen shall be shipped out on jobs referred through the Union's hiring halls according to their class of seniority rating.

B. The following shall be the classes of seniority rating:

(1.) Class "A" seniority rating, the highest rating shall be possessed by:

(a) All unlicensed seamen who possessed such rating on July 1, 2012, pursuant to the Shipping Rules then in effect;

(b) All unlicensed seamen who possess Class "B" seniority rating pursuant to these Rules and who have shipped regularly as defined herein for eight (8) consecutive years, provided such seamen have maintained their Class "B" seniority rating without break, and provided further that they either have completed satisfactorily the advanced course of training then offered by the Seafarers Harry Lundeberg School of Seamanship for the Department in which such seamen regularly ship or possess a rating, and be able to ship at that rating, other than Entry Department ratings specified in Rule 3.A.; and

(c) All unlicensed seamen who have been upgraded to Class "A" seniority rating by the Seafarers Appeals Board pursuant to the authority set forth herein.

(d) Any seaman who possessed Class "A" seniority prior to July 1, 2012, and who because of the Rules in effect at that time lost their seniority for failure to ship regularly, may obtain Class "A" seniority provided they ship regularly as defined herein in each of two (2) consecutive calendar years and submit such evidence of shipping regularly to the Seafarers Appeals Board.

(2.) Class "B" seniority rating, the second highest seniority rating, shall be possessed by:

(a) All unlicensed seamen who possessed such rating on July 1, 2012 pursuant to the Shipping Rules then in effect;

(b) All unlicensed seamen who possess Class "C" seniority rating pursuant to these Rules and who have shipped regularly as defined herein for two (2) consecutive years;

(c) Seamen who satisfactorily completed the entry rating trainee program at the Seafarers Harry Lundeberg School of Seamanship and who lost their Class "B" status by failing to meet the eligibility requirements contained in these Rules due to absence of employment opportunities in the industry, shall be reinstated with Class "B" seniority upon attaining three hundred sixty-five (365) days of employment within twenty-four (24) consecutive months from the original date of hire aboard vessels owned or chartered by the U.S. Military and operated by contracted civilian employers pursuant to being successful bidders in accordance with Requests for Proposals (RFP's), and limited solely to the extent that such vessels are so designated for such purposes solely by the SAB by action in writing from time to time.

(d) All unlicensed seamen who satisfactorily complete the entry rating training program conducted at the Seafarers Harry Lundeberg School of Seamanship.

(e) Seaman possessing class "CV" seniority (as defined by SAB Action) upon attaining one hundred and eighty (180) days of employment aboard contracted vessels within twenty-four (24) months.

(f) Seaman possessing class "C-Gov" seniority (Seamen who shipped regularly within the meaning of these rules for five (5) consecutive years within the Government Services Division.) upon attaining one hundred and eighty (180) days of employment aboard contracted vessels within twenty-four (24) months.

(3.) Class "C" seniority rating, the lowest seniority rating, shall be possessed by:

(a) All unlicensed seamen who do not possess either Class "A" or Class "B" seniority ratings;

(b) All seamen who retired from the industry who subsequently decide to return to the industry shall possess Class "C" seniority notwithstanding the level of seniority possessed by such seamen prior to retirement. This provision shall be automatically applied unless waived by the Seafarers Appeals Board when industry conditions so dictate;

(c) Any seaman who possessed Class "B" seniority but failed to ship regularly within the meaning of these Rules.

C. A seaman shall be deemed to have shipped regularly within the meaning of these Rules if he has been employed as an unlicensed seaman no less than ninety (90) days during each calendar year aboard one or more American-flag merchant vessels covered by a Collective Bargaining Agreement between the Union and the owner or operator of such vessels.

D. Employment by, or at the request of, or election to any office or job in the Union shall be the equivalent of covered employment described in the preceding paragraph; and seniority credit under these Rules shall accrue during the period that such employment, office or job is retained.

E. Seniority credit shall be accrued on the basis of total covered employment, without regard to whether such employment was served in the Deck, Engine or Steward Department.

If during the period of employment aboard a contracted vessel, a seaman acquires sufficient seetime to qualify for a higher seniority classification, such as Class "C" to Class "B" or Class "B" to Class "A," he shall be entitled to the applicable employment provisions specified in Rule 2.G.

F. The ninety (90) day period of employment required of a seaman during any year constitutes shipping regularly within the meaning of these Rules, and it shall be reduced proportionately in accord with the amount of time spent by such seaman during that year as a bonafide in- or out-patient in the continuing care of an accredited hospital or doctor. For example, four (4) months in- or out-patient time during a given calendar year reduces the ninety (90) days employment requirement for that year by one-third to sixty (60) days.

G. In the event a seaman possessing less than Class “A” seniority rating fails to ship regularly within the meaning of these Rules during a particular calendar year, he shall lose all accumulated employment credit for that and all preceding years in his then current seniority rating.

H. In the event a seaman’s covered employment has been interrupted by circumstances beyond his control, resulting in his failure to ship regularly within the meaning of these Rules, the Seafarers Appeals Board may, upon application of the affected seaman, grant such total or partial seniority credit for the time lost as the Board may deem necessary in its sole discretion to avoid undue hardship.

I. In the event a seaman’s covered employment is interrupted by service in the Armed Forces of the United States, resulting in his failure to ship regularly within the meaning of these Rules, such returning seaman shall be reinstated with the seniority he would have earned had he or she been continuously employed during the course of their military service, with a cumulative length not to exceed five (5) years, providing he or she registers to ship pursuant to these Rules within one hundred twenty (120) days following their separation from military service.

2. Shipping Procedure

A. Subject to the specific provisions of these Rules, unemployed seamen shall be shipped only if registered as provided herein and in the order of the priorities established in Rule 2.C.(3.) hereof.

B. The following Rules shall govern the registration of unemployed seamen for shipping through Union hiring halls:

(1.) (a) Unemployed seamen shall register only at the port through which they desire to ship. No seaman shall be registered at more than one port at the same time, nor if they are employed aboard any vessel.

(b) No seaman shall be registered for employment who cannot reasonably read, speak, and understand English; such proficiency shall be determined and established by the passing of a required English language exam which shall be administered at the SIU hiring halls.

If required by the Company, seaman shall demonstrate verbal English proficiency by passing a screening test mutually agreed upon by the American Maritime Association and the Seafarers International Union - Atlantic, Gulf, Lakes and Inland Waters, SIUNA, AFL-CIO, the cost of which shall be borne by the Company.

(2.) (a) All seamen possessing U.S. Coast Guard endorsements, verifying certified deck or engine ratings, shall be registered in Group I or Group II of their respective Departments. In the Steward Department, seamen shall be registered in Group I-S, I or II upon presentation of their seniority identification card and providing proof of qualification for such registration. All other seamen who possess Class “A” or Class “B” seniority ratings shall be registered as Entry Ratings-Steward or Entry Ratings-Other, as defined in Rule 3.A., Departments and Groups, and may bid for jobs in the classification in which they are registered. All other seamen who possess Class “C” seniority ratings shall be registered as Entry Ratings, as defined in Rule 3.A., Departments and Groups, and may register for only one Department, to wit, Deck (Ordinary Seaman - Watch, Ordinary Seaman - Deck Maintenance); Engine (Wiper, General Utility Deck/Engine); and Steward (Utility Messmen, Waiters, Messmen, General Steward’s Utility). Upon attaining endorsements from the U. S. Coast Guard of certified ratings, in the Group I or II category, in either Deck or Engine Department as defined in Rule 3., Departments and Groups, or having sailed in the Steward Department for a minimum of six (6) months, application may be made to the Seafarers Appeals Board for consideration of permanent registration in the Deck, Engine or Steward Departments.

(b) The Seafarers Appeals Board at its sole discretion may, upon review of the current Manpower needs, require that Q.M.E.D.’s only be registered in their current classification for a period of one (1) calendar year from the date they received said classification, at which time they must make application for and satisfactorily complete the course designated by the Seafarers Harry Lundeberg School of Seamanship to attain the next highest classification.

(3.) Shipping registration cards shall be non-transferable and shall be issued at Union hiring halls only upon application in person by seamen desiring same. However, resident seamen at the Seafarers International Union Alcoholic Rehabilitation Center, Piney Point, Maryland, who are not registered at a port prior to arrival at the Center may be registered at the port of their choice upon arrival at the Center. Shipping registration cards shall be time and date stamped when issued and shall show the registrant's class of seniority rating, Department and Group.

(4.) (a) Shipping registration cards shall be issued during the regular business hours of the Union's hiring halls. Every seaman desiring to register must possess and submit all documents required by the United States Coast Guard, including but not limited to: a valid STCW endorsement and by applicable law for employment as a merchant seaman aboard U.S.-flag vessels, and, in addition, a valid, current passport or evidence that a United States passport has been applied for within two (2) weeks of the date of registration. At the time of registration each seaman is responsible for producing sufficient evidence to establish his class of seniority rating. For this purpose an appropriate seniority identification card issued by the Union shall be deemed sufficient, although other official evidence of employment, such as legible U. S. Coast Guard discharges, may also be submitted.

(b) Seamen seeking employment aboard LNG vessels, in addition to the documents heretofore specified, must also possess a certificate of satisfactory completion of the LNG program offered by the Seafarers Harry Lundeberg School of Seamanship for the department in which such seamen regularly ship.

(c) Seamen permanently employed aboard LNG vessels also must possess a certificate of completion from the LNG recertification course offered at the Seafarers Harry Lundeberg School of Seamanship. Such certificate must be obtained from the school within two (2) years of the effective date of the new agreement, or within two (2) years of a new employee receiving a permanent assignment in the LNG rotation. Failure, except for good cause, to obtain the certificate will result in forfeiture of the seaman's permanent assignment in the rotation.

(5.) (a) No seaman shall be shipped unless he submits a valid Seafarers Health and Benefits Plan clinic card.

(b.) For those training as an Unlicensed Apprentice in the Union-affiliated Seafarers Harry Lundeberg Seamanship School's Unlicensed Apprentice Training Program, a valid U.S. Coast Guard or Military Sealift Command physical must be obtained prior to assignment.

(c) When an employee submits to a physical examination in order to obtain a clinic card, the employee shall disclose on the examination form and to the examining physician any: (1) known physical or psychological condition that bears upon his physical or mental fitness for employment as a mariner, and (2) all lost time injuries and illnesses, whether employment related or not within the preceding four years. Misleading or false statements on the examination form or the employer's pre-sign on form or a failure to disclose prior injuries or illnesses shall be considered willful misconduct and just cause for discharge and may result in loss of seniority.

(d) (1.) If an employee becomes ill or injured during the course of employment and it is determined by a medical professional that such illness or injury is minor and/or temporary, the employee's status may, at the discretion of the Company, be temporarily converted to a fit for duty with restrictions, provided the employee is able to comply with all safety requirements and responsibilities. Restrictions for a brief period of time could include: light or reassigned duty or confinement to one's cabin. The Company may at any time after an employee is deemed fit for duty with restrictions, determine that such classification is no longer appropriate and repatriate the employee. An employee fit for duty with restrictions will continue to earn full wages and there will be no division of wages.

Notwithstanding the above, the employee can request to be repatriated in lieu of the restriction(s). If a dispute arises under this paragraph, the parties will submit the relevant medical information to the SHBP's Medical Director who will decide, in a timely manner, whether the restriction is reasonable or whether repatriation is required under the circumstances.

(2.) Seaman leaving a vessel unfit for duty must provide a fit for duty status letter from the clinic before registering or reclaiming a registration card.

(3.) Seaman must disclose any currently held USCG waiver.

(4.) No clinic card shall be issued if the seaman is taking or prescribed medications that preclude work on a ship under the provisions of USCG NVIC 04-08.

(e) No seaman shall be shipped to a contracted vessel without having passed the required pre-hire drug test pursuant to U.S. Coast Guard regulation, except those seamen who are granted an exemption in accordance with the regulations in effect at that time.

(f) No seaman shall be shipped to a contracted tanker, tank vessel or barge, as specified in the U.S. Coast Guard regulations, without first providing a Seafarers Health and Benefits Plan Benzene Clearance on their clinic card and a current Seafarers Health and Benefits Plan Benzene Certificate.

(6.) To remain valid, seniority registration cards must be stamped once each month in the port of issuance. The dates and times for such stamping shall be determined by the Port Agent for each port, and each registrant shall be notified of the dates and times for stamping when he receives his shipping registration card. A seaman who fails to have his shipping registration card so stamped during any month shall forfeit the same and shall be required to re-register. In the event circumstances beyond his control prevent a seaman from having his shipping registration card stamped, the Port Agent may stamp such card as if the seaman had been present on the required time and date upon submission by the seaman of adequate evidence of the circumstances preventing his personal appearance.

(7.) Subject to the provisions of these Rules, shipping registration cards shall be valid only for a period of ninety (90) days from the date of issuance. If the ninetieth (90) day falls on a Saturday or Sunday, a national or state holiday or on a day which the Union hiring hall in the port of registration is closed for any reason, shipping registration cards which would otherwise expire on such day shall be deemed valid until the next succeeding business day on which the said hiring hall is open. Shipping registration cards' periods of validity shall also be extended by the number of days during which shipping in the port of registration has been materially reduced by strikes affecting the maritime industry generally or by other similar circumstances.

The ratings specified in Rule 5.A.(13)(a) who have requested reliefs on vessels which because of operational necessity exceed the ninety (90) day registration period, preventing the rating from rejoining his vessel at the expiration of the relief time requested, shall be nevertheless considered in compliance with the period of registration.

C. The following Rules shall govern shipping of registered seamen through Union hiring halls:

(1.) Seamen shall be shipped only through the hiring hall at the port where they have registered for shipping. No seaman shall be shipped on a job outside of the Department or Group in which he is registered except under emergency circumstances to prevent a vessel from sailing shorthanded, or as otherwise provided in these Rules.

(2.) (a) Jobs referred to the Union hiring hall shall be announced and offered to registered seamen at the times and according to the procedures set forth in Rule 4 hereof. At the time each job is so offered, registered seamen desiring such job shall submit their shipping registration cards, U.S. Coast Guard Merchant Mariner's documents, valid Seafarers Health and Benefit Plan clinic card, and any other documents required by law, regulations or the Shipping Rules herein, to the hiring hall dispatcher. Registration cards of seamen at the Seafarers International Union Alcoholic Rehabilitation Center, who have been registered in accordance with Rule 2.B.(3.), and are certified as ready for employment, shall be considered along with the registration cards of seamen who are present in the hiring hall at the time the job is called. The job so offered

shall be awarded to the seamen in the appropriate Department and Group possessing the highest priority, as determined pursuant to Rule 2.C.(3.) hereof.

(b) Seamen employed on rotary and permanent assignments must possess and submit valid merchant mariner credentials, passports, and TWIC cards that remain valid for a minimum period of one hundred and eighty (180) days beyond a seaman's reporting date. For relief assignments these documents must remain valid for one hundred twenty (120) days beyond the seaman's reporting date.

(c) Seaman competing for jobs in the Steward Department must submit the National Restaurant Association's *Serve Safe* Program completion certificate at the job call for verification. Such completion certificate must be valid for the duration of the assignment.

(3.) Within each Department, seamen of higher seniority rating shall have priority for jobs over seamen of lower seniority rating, even if such higher seniority seamen are registered in a different Group from that in which the offered job is classified, and shall supersede the provisions contained in Rule 2, B. (6.). As between seamen of equal seniority ratings within the same Department, priority shall be given to the seaman registered for the Group in which the offered job is classified. In the event seamen of equal priority under this paragraph bid for the same job, the job shall be awarded to the seaman possessing the earliest dated shipping registration card.

For the purpose of this section, the departments shall only be: Deck, Engine and Steward.

Nothing contained in these Rules shall proscribe or prohibit as part of the Seafarers Harry Lundeberg School of Seamanship program the employment of the program's trainees aboard the designated vessels in the manner provided by the program, and such employment shall not be or constitute in any respect a violation or abridgment of the provisions of these Shipping Rules.

(4.) Notwithstanding any other provisions of these Rules, no job shall be awarded to a seaman who is under the influence of alcohol or drugs at the time such job is offered; nor shall any seaman be awarded any job unless he is qualified therefore in accord with law or unless he submits, if necessary, appropriate documents establishing such qualifications.

(5.) The seaman awarded a job under Rule 2.C.(2.) hereof shall immediately surrender his shipping registration card and shall receive two (2) job assignment cards containing his name and the details of the job. When reporting aboard his vessel, the seaman shall present one (1) job assignment card to the head of his department and the other to the Union department delegate.

D. A seaman who quits or is fired from a job during the same day in which he reports for such job shall lose his original shipping registration card if he received compensation for the day's employment. A seaman who quits or is fired from a job during the same day in which he reports for such job and does not receive compensation shall also lose his original shipping registration card unless he notifies the hiring hall dispatcher in sufficient time to fill the job and prevent the ship from sailing shorthanded.

E. A seaman who receives job assignments pursuant to Rule 2.C.(5.) hereof and subsequently rejects or quits the same after forty-eight (48) hours shall forfeit their shipping registration card for the next sixty (60) days and shall only be able to secure a new shipping registration card after that time. The Company for which the seaman receives a job assignment may waive this sixty (60) day forfeiture and allow a seaman to accept a position with their Company during this sixty (60) day period.

F. All seamen registered for shipping, other than those possessing Class "A" seniority rating, who are unavailable to accept or fail or refuse to accept three (3) jobs for which they are qualified during any one (1) period of registration, may forthwith be refused the right to register for employment under these Rules for a period of twelve (12) months. Upon application as provided in these Rules, the Seafarers Appeals Board may shorten or revoke such refusal of registration for good cause shown.

G. (1.) (a) Except where specifically provided for in these Rules or Seafarers Appeals Board action, seamen with Class "A" seniority rating, shipped pursuant to these Rules, excluding permanent ratings or

Seamen employed on a trip tour basis, may retain such jobs for one (1) round trip or two hundred forty (240) days, whichever is longer. At the termination of such round trip or on the first opportunity following the two hundred fortieth (240th) day on the job, such seamen shall sign off their vessels, and the vacant job shall be referred to the Union hiring hall. Such retention may be extended sixty (60) days when mutually agreeable between the Union and the Company.

(b) Such Class “A” seamen after having attained no less than two hundred forty (240) days of employment or one (1) round trip, whichever is longer excluding time off, shall be paid transportation, if applicable, subject to the provisions of Rule 2.I.

(2.) During the period of employment, qualified unlicensed personnel, excluding those employed on a trip tour basis, after having attained no less than one hundred twenty (120) days of employment, may request a relief of no less than forty-five (45) days. This time off shall not exceed sixty (60) days. Transportation expenses, if any, will be borne by the seaman requesting the relief and transportation expenses for the relieving seaman shall be borne by the Company. Such Class “A” seamen shall be entitled to complete the balance of either two hundred forty (240) days employment or the designated trip tour excluding time off.

(3.) In the event the Union is unable to fill a request for a qualified certified rating, the Employer may agree to accept a seaman who does not possess the appropriate certified rating, if permissible by U.S. Coast Guard regulations on a temporary basis, regardless of his seniority classification for one (1) round trip or sixty (60) days, whichever is longer. The appropriate notification shall be specified on the seaman’s dispatch card.

Such reliefs can only be requested by seamen aboard vessels located in Continental U.S. ports, Puerto Rico and Hawaii.

(4.) (a) If a vessel lays up during the period that a relief is provided, the seaman providing the relief shall have the option of completing the relief period when the vessel is reactivated. If the remaining relief time is not accepted by a relief, the seaman who was being relieved must rejoin the vessel.

(b) If a vessel is reactivated within thirty (30) days from the date of lay-up, any seaman having the right to rejoin the vessel as prescribed in Rule 5.A.(2.) shall be allowed to complete the remaining portion of his specified period of employment according to his seniority classification.

(5.) Trip reliefs shall be provided only when a replacement is available. Seamen who leave a vessel without proper relief waive their right to rejoin the vessel pursuant to these rules..

(6.) Every effort will be made by the seamen rejoining the vessel to do so at the same port where the relief was provided.

(7.) Seamen being relieved shall register at a port in the Continental United States, Puerto Rico, Hawaii or Guam within seventy-two (72) hours after being relieved, excluding Saturdays, Sundays and Holidays.

(8.) Seamen who register after being relieved cannot compete for other jobs referred to the hiring hall. If they compete for other jobs, they waive any right to rejoin the vessel on which they were relieved unless doing so at the behest of the Union. Failure to return to the vessel from which they were relieved will result in the forfeiture of said registration card except in those cases beyond the seamen’s control such as sale, lay-up or scrap of the vessel.

During periods of relief, a seaman that forfeits their registration card will not be eligible to compete for the job they were relieved from.

(9.) Seamen shipped for relief trips shall be designated as “Temporary Relief” by the Dispatcher.

(10.) Seamen requesting reliefs must advise the Ship's Master, Ship's Chairman, and departmental delegates of such intent seventy-two (72) hours prior to the vessel's arrival in port. On vessels scheduled to arrive on a weekend, such notice must be provided no later than Thursday noon preceding the vessel's arrival.

(11.) (a) The Union and the contracted Employers shall coordinate the dispatching of trip reliefs to avoid duplication of pay. If not possible, the following procedure shall be implemented.

(b) In American domestic ports, a seaman's pay shall start as of the day in which he reports for work aboard the vessel, unless the seaman he is replacing is being paid for the same day. In such event both shall be paid for the day but contributions for fringes shall be paid to only the departing man.

(c) Seamen accepting trip reliefs shall assume the watch and quarters of the seaman being relieved. At the conclusion of the relief trip, the seaman who was relieved shall return to his original watch and quarters.

(12.) (a) It is the responsibility of the seaman having the right to relief to return to the vessel at the completion of the relief by claiming his position from the hiring hall shipping board no later than five (5) days prior to the vessel's arrival. On vessels arriving on a weekend, the re-ship assignment card must be picked up or delivery of it arranged no later than Friday. If Friday is a recognized holiday in port, the re-ship assignment card must be obtained on the preceding Thursday.

Seamen failing to comply with the re-registration and re-ship procedures shall forfeit their re-ship assignment and shall re-register pursuant to the provisions in Rule 2, Shipping Procedure.

(b) Unlicensed seamen having permanent status aboard government contracted vessels must confirm, not less than fifteen (15) days prior to their scheduled return to their assigned vessel, that they will return to the vessel as required by the Company. Seamen failing to confirm their re-ship assignment as specified herein shall forfeit their job aboard said vessel.

(c.) Seamen who hold permanent status aboard commercial vessels having the right to relief must confirm their intent to re-claim their position by notifying the hiring hall dispatcher at least ten (10) days prior to the vessels arrival. This may be done by phone. After validating a permanent seaman's credentials in accordance with Rule 2 C. (2.) the hiring hall shall ship the seaman and advise the company to arrange transportation from either the seaman's domestic home of record, excluding Guam, or the hiring hall from which he is registered, seaman's choice.

(13.) If a seaman fails to comply with the provisions of Rule 2.G.(12.) above, the job involved shall be shipped in accordance with the provisions of Rule 2, Shipping Procedure.

(14.) All Port Agents shall maintain a detailed record of all vessels and personnel involved in the aforementioned procedures.

(15.) Seamen accepting relief trips will not lose their registration cards if the ninety (90) day period of registration has not expired at the completion of the relief trip.

Shipping registration cards' period of validity for seaman accepting the balance of a relief (if less than thirty (30) days) shall be extended by the number of days employed.

(16.) Shipping of reliefs shall be in accordance with the provisions of Rule 6.A.

(17.) (a) Except as specifically provided for herein or by SAB action, seamen with Class "B" seniority ratings, shipped pursuant to these Rules, may retain such jobs for one (1) round trip or one hundred eighty (180) days, whichever is longer. At the termination of such round trip or on the first opportunity following the one hundred eightieth (180th) day on the job, such seamen shall sign off their vessels and the vacant job shall be referred to the Union hiring hall. Such retention may be extended sixty (60) days when mutually agreed to between the Union and the Company.

(b) Notwithstanding subsection (a), Ordinary Seamen employed aboard cable ships, who have satisfactorily completed the Seafarers Harry Lundeberg School of Seamanship entry training program, shall be permitted to remain aboard a cable ship for a total of two hundred forty (240) days with a sixty (60) day relief period after four (4) months of continuous employment in order to obtain the necessary seetime required by the U.S. Coast Guard to obtain Able Seaman certification.

(18.) Time off and reliefs for seamen employed aboard vessels pursuant to a request for proposal awarded to the Employers, shall be in accordance with the contractual agreement in effect between the Government and the Employer.

H. Seamen with Class "C" seniority rating shipped pursuant to these Rules may retain such jobs for one (1) round trip or sixty (60) days, whichever is longer. At the termination of such round trip or on the first opportunity following the sixtieth (60) day on the job, such seamen shall sign off their vessels, and the vacant job shall be referred to the Union hiring hall.

I. The provisions of Rule 2.G.(1.), 2.G.(18.), and 2.H, shall not apply if they would cause a vessel to sail shorthanded. For purposes of these sections, the phrase "round trip" shall have its usual and customary meaning to seamen, whether such round trip be coastwise, intercoastal or foreign. A foreign voyage is concluded upon termination of the Ship's Articles. On coastwise voyages, if a vessel is scheduled to return to the original port of engagement, the seamen shall not be required to leave such vessel until the vessel reaches the said port. On intercoastal and foreign voyages, if a vessel pays off at a port in the Continental United States, other than in the original port of engagement, and if such vessel is scheduled to depart from port of payoff within ten (10) days after arrival to return to the original port of engagement, seamen shall not be required to leave the vessel until it arrives in the original port of engagement. If the vessel is not scheduled to depart for the original port of engagement within ten (10) days after arrival to return to the original port of engagement, Class "A" men, except as otherwise provided herein, who have reached their two hundred fortieth (240th) day and Class "B" men who have reached their one hundred eightieth (180th) day shall receive contractual transportation.

Class "A" crew members who attain their respective two hundred forty (240) days of employment and Class "B" crew members who attain one hundred eighty (180) days of employment during the course of a routine USA-foreign voyage, shall remain aboard the vessel until the conclusion of the voyage at a Continental United States port.

Crew members aboard vessels on shuttle voyages, not scheduled to return to a Continental United States port, shall have the option of requesting a replacement if they have attained six (6) months employment aboard the vessel and the vessel is at a port where transportation is available and there are no government restrictions prohibiting the boarding or discharging of crew personnel. If the vessel is scheduled to depart for the Continental United States within ten (10) days after arrival at the next port of call, this provision will not apply.

Upon completion of the employment periods prescribed herein, the seamen may register and ship in accordance with their appropriate seniority.

J. Except as specifically provided for in a Collective Bargaining Agreement, or in the Shipping Rules herein, no seaman shipped under these Rules shall accept a promotion or transfer aboard ship unless there is no time or opportunity to dispatch a seaman to fill such vacant job from a Union hiring hall.

3. Departments and Groups

A. Jobs aboard vessels covered by these Rules are classified according to the following schedule of Departments and Groups.

DECK DEPARTMENT

GROUP I-DAY WORKERS

Boatswain	AB/Splicer Joiner
Boatswain's Mate	Deck Maintenance
Carpenter	Watchmen Incidentally Assigned Day Work – (To Be Used for Penalty Rate Purposes)
Carpenter Joiner	

GROUP II-RATED WATCHSTANDERS

Quartermaster	Fire Patrolman
Able Seaman (Green)	Car Deckman
Able Seaman (Blue)	Watchman-Standing Watches
Cable AB	Wheelsman

ENGINE DEPARTMENT

GROUP I

Chief Electrician	QMED Class 1-2-3-4
1 st , 2 nd , 3 rd Ref. Engr.	QMED Conveyorman
2 nd Electrician	QMED/DEMAC
Unlicensed Jr. Engr. (J.E.) – Day Work	QMED/Gateman
Unlicensed Jr. Engr (J.E.) – Watch	QMED/Electrician
J.E. Electrician	QMED J. E. Pumpman
Plumber-Machinist	QMED Pumpman
Electrician/Ref. Maintenance	QMED/J.E. Pumpman
Crane Maintenance Electrician	Chief Pumpman
Chief Storekeeper	Chief J.E. Pumpman
Evap. Maintenance Man	J.E. Pumpman
Marine Electronic Technician	2 nd J.E. Pumpman
Engine Utility Reefer Maintenance	2 nd Pumpman Engine Maintenance
Engine Maintenance	2 nd J.E. Pumpman/Engine Maintenance.
Ship's Welder/Maintenance	Chief Ref. Engineer

GROUP II

Deck Engineer	Watertender
Engine Utility	Fireman/Watertender
Oiler-Diesel	Fireman
Oiler-Steam	Oiler Maintenance/Utility
Engine Utility/FOWT	Deck Engineer Utility
FOWT/Gateman	
FOWT/Conveyorman	
FOWT/DEMAC	

STEWARD DEPARTMENT

GROUP I (S) RATED MEN

Steward	Steward/Baker
Purser/Storekeeper	Second Steward
Medical Department Rep. (MDR)	Nurse
Steward/Cook	Storekeeper

GROUP I-RATED MEN

Chef	Second Cook Baker
Cook and Baker	Butcher
Chief Cook	Chief Cook
Chief Pantryman	Third Steward
Second Purser	Third Purser
Nurses	Second Baker
Assistant Butcher	Chief Storekeeper
Assistant Pantry	Assistant Baker
Night Pantry	Assistant Storekeeper
Second Steward/Storekeeper	

GROUP II

Second Cook	Assistant Cook/Utility
Third Cook	

ENTRY DEPARTMENT-STEWARD

Utility Messman	Messman
Galley Utility	General Steward Utility
Bedroom Steward	Deck Steward
Passenger B.R.	Night Steward/Porter
Steward Assistant	Janitor Utility

ENTRY DEPARTMENT-OTHERS

Ordinary Seaman on Watch	General Utility Deck/Engine
O.S. Watchman	General Utility Deck/Engine Conveyorman
O.S. Deck Maintenance	General Utility Deck/Engine Gateman
Wiper	General Vessel Assistant (GVA)

B. A seaman may not change the Department in which he ships without loss of accrued seniority unless he receives permission from the Seafarers Appeals Board. The Seafarers Appeals Board shall grant such permission only upon proof establishing in the sole judgment of the Board that medical reasons warrant the change.

4. Business Hours and Job Calls

A. Except as otherwise provided herein, all Union hiring halls shall be open Monday through Friday from 8:00 a.m. to 5:00 p.m. The hiring halls shall be closed on July 4, Christmas Day, New Year's Day, Labor Day, and such other Holidays as are determined by the Port Agents. Notice of such additional closings shall be posted on the hiring halls' bulletin boards on the day preceding the Holiday.

B. All jobs shall initially be referred to the Manpower Pool Coordinator in Piney Point, Maryland. The Manpower Pool Coordinator shall then refer the jobs to the port nearest to the vessel's location. When time permits, especially for fly-out jobs, the Company will be given a one day advanced notification of the name, social security number and other pertinent data of the seamen shipped to fill such vacancies.

All jobs referred to the Union hiring halls shall be posted on the shipping board before being announced. Jobs shall be announced at 9:00 a.m., 10:00 a.m., 11:00 a.m., 1:00 p.m., 2:00 p.m. 3:00 p.m. and 4:00 p.m., Monday through Friday. During non-business hours, or in the event of exceptional circumstances, a job may be posted and announced at any time after it is received. Notwithstanding the foregoing, the Port Agent may establish for the Union hiring hall such other regular schedule of daily job calls as may be warranted by the level of shipping or other circumstances affecting such hiring hall. Such other schedule as may be established, however, shall be in writing and posted on the hiring hall bulletin board.

C. Seamen holding Class "C" seniority rating shall not bid for a job offered pursuant to these Rules until the same has appeared on eight (8) job calls without being taken. If the eighth (8th) job call does not produce a qualified seaman possessing either Class "A" or Class "B" seniority rating, the said job shall be awarded to the seaman possessing Class "C" seniority rating entitled to the same under these Rules. This Rule shall not apply if it would cause a vessel to sail shorthanded or late.

D. A seaman who registers to ship pursuant to these Rules within two (2) business days following his discharge as an in-patient from an accredited hospital, and who produces official written evidence of such confinement, shall be issued a shipping registration card dated either thirty (30) days earlier than the actual date of registration if such confinement lasted at least thirty (30) days, or if it lasted less than thirty (30) days, with the date such confinement commenced.

E. (1.) (a) Subject to the arrival and departure of a vessel, except as provided for herein, if a port cannot fill a job with a Class "A" or Class "B" registrant, the job shall be referred back to the Manpower Pool Coordinator, who will then refer the job to other nearby ports. If the job cannot be filled with a qualified Class "A" or Class "B" registrant in other nearby ports, the job shall be referred back to the original port to be sent to all ports. However, if the job is above entry level before it is referred to all ports, it can be filled with a C-Gov. registrant. If a seaman has to be shipped from another port, transportation shall be provided by the Company. Any seaman accepting a job under such circumstances who fails to join and sail with the vessel to which he was dispatched must reimburse the Company for any monies advanced as transportation. Such seaman shall thereafter be denied registration and referral to employment until such time as the seaman reimburses the Company for monies advanced, if any, as transportation.

(b) Subject to the arrival and departure of a vessel if a port is unable to fill the job of permanent Bosun, Chief Steward, Steward/Baker, Steward Cook, QMED Pumpman, Chief Pumpman, Engine Maintenance, QMED/Electrician Relief, QMED Electrician and/or Chief Electrician with a qualified or recertified seaman pursuant to the provisions of these Shipping Rules possessing Class "A" seniority at the first job call, the job shall be referred to Manpower. Manpower shall then refer the job to the ports in the same region where the job was originally posted to be filled by a qualified seaman possessing Class "A" seniority. If the job is not filled at one job call, the job will be referred back to the original port to be dispatched in accordance with the Rules. For the purpose specified herein the regions shall be designated as "Atlantic Coast, Great Lakes, Gulf Coast, and West Coast."

(2.) In the event that personnel are required by a cable ship to assist in the repair of a cable break, all jobs requested by the Employer shall be referred by Manpower to the port nearest to where the cable ship involved is located, for one job call only. All jobs not filled on the initial referral shall then be made available by Manpower to all ports simultaneously and offered to those seamen first responding, subject

to standard shipping procedures involving qualifications, seniority, date of registration, etc. Transportation in such cases shall be provided by the Employer.

F. Notwithstanding any other provisions of Rule 4, if the first call of a vacant job classified Entry Department-Others, Entry Department-Steward, Third Cook or Assistant Cook/Utility does not produce a qualified seaman possessing Class "A" or Class "B" seniority, the job shall be referred back to the Manpower Pool Coordinator, Piney Point, Maryland, where the job shall then be offered to the hiring hall in Piney Point. If after the first call of such job it remains open, it shall be referred back to the Manpower Pool Coordinator to be referred to the port from which it was originally offered, to be offered or referred as the case may be in accordance with Rule 4.E. above.

G. Manpower or the Hall filling the job shall ensure the length of the assignment is clearly listed on the assignment sheet.

H. Onboard Promotions. When a temporary relief position has been posted on the job board for at least five (5) days and has not been filled, the Company may elect to have a lower rating who is onboard the vessel promoted into the temporary relief position. The lower rating who is being promoted must have at least thirty (30) days remaining on their assignment to be eligible for promotion. The duration of the reassignment will be for the greater of:

- (1.) The length of time in the temporary relief job posting; or
- (2.) The time remaining on the lower rating's initial assignment.

The lower rating's position will then be posted to the job board.

5. Preferences and Priorities

A. Notwithstanding any other provisions to the contrary contained in these Rules, the following preferences shall apply:

(1.) (a) A seaman shipped pursuant to these Rules whose vessel lays up less than fifteen (15) days after his original employment date shall receive back the shipping registration card on which he was shipped, provided the said card has not expired in the interim period.

(b) Seamen accepting temporary employment on cable ships and vessels operated by a contracted Employer on behalf of any federal agency for assistance to the military on a limited basis, and whose employment is terminated before attaining thirty (30) days of employment, shall receive back the registration card on which he was shipped, provided the period of registration has not expired.

(2.) (a) If a laid up ship requires a crew to report for duty aboard a vessel within thirty (30) days following lay-up, the crew members at the time of lay-up shall have priority for all such jobs, provided that such crew members are registered at a Union hiring hall not later than 5 p.m. on the third day following the date of lay-up. If the third day following lay-up is a Saturday, Sunday or a recognized Holiday in such port, the period in which registration must be completed shall be extended through the next business day. If a laid up ship requires a crew to report within three (3) days or less following the date of lay-up, the crew members at the time of lay-up may register up to and including the date the ship is recrewed. It is the responsibility of the crew members wishing to reclaim their jobs to maintain contact with the Port Agent where registered since such jobs are available to crew members employed at the time of payoff for a limited period of time, but not to exceed twenty-four (24) hours, if available

(b) Except as provided herein, Class "A" crew members, excluding the designated permanent ratings or trip tour ratings who have been employed two hundred forty (240) days or one (1) round trip, whichever is longer, are not permitted the right to reclaim their jobs under such circumstances.

Class "B" crew members who have been employed one hundred eighty (180) days or one (1) round trip, whichever is longer, are not permitted the right to reclaim their jobs under such circumstances.

Class “C” crew members who have been employed sixty (60) days or one (1) round trip, whichever is longer, are not permitted the right to reclaim their jobs under such circumstances.

(c) The period of priority under this Rule shall be extended by the number of days of lay-up resulting from strikes affecting the maritime industry generally or other similar circumstances.

(d) When vessels are laid up in European, Mediterranean and Middle East ports and are scheduled to continue operating in the same area when the vessel is reactivated, the jobs shall be referred to the port of New York. When vessels are laid up in Far East ports and are scheduled to continue operating in the same areas when the vessel is reactivated, the jobs shall be referred to the port of San Francisco. When vessels are laid up in Central and South American ports and are scheduled to continue operating in the same area when the vessel is reactivated, the jobs shall be referred to the port of New Orleans. If, however, a vessel has not changed its original run prior to its layup, but intends to return to its original run following layup, then the jobs shall be referred to the vessel’s regular payoff port.

If at the time of recrewng, the vessel is scheduled to operate in an area other than heretofore specified, the jobs shall be appropriately referred to New York, New Orleans or San Francisco as determined by the area of scheduled operation.

The Manpower Pool Coordinator shall notify all ports that the vessel is recrewng and from which port.

Time allowed for former crew members to reclaim their jobs shall be subject to the vessel’s departure, but shall not exceed twenty-four (24) hours after posting.

On vessels laying up in foreign ports, crew members desiring to claim their jobs if the vessel recrews within thirty (30) days may register at their home port within three (3) days following the date of lay-up.

Such registration shall remain valid for reshipment at the time the vessel recrews even if the vessel’s scheduled area of operation is changed, requiring that the jobs be referred to a port other than the port designated at the time of lay-up.

On newly constructed vessels, the aforementioned geographical areas shall apply.

(3.) Seamen possessing a certificate of satisfactory completion of the Seafarers Harry Lundeberg School of Seamanship entry rating training program shall have priority for jobs over Class “C” personnel.

(4.) (a) Preference for key ratings shall be given to those seamen who possess certificates of recertification in their respective departments.

(b) Except as specifically provided for in these Rules within each class of seniority rating in the Deck Department, priority for the job of Boatswain shall be given to those seamen possessing a certificate of recertification as Boatswain from the Deck Department Recertification Program, and the seaman is registered in Group I, Deck Department Day Workers.

Notwithstanding Rule 2.J., if the local Hiring Hall cannot provide a Recertified Boatswain to fill a vacancy and a Recertified Boatswain is employed aboard in the Deck Department in a rated capacity he may be promoted and Manpower shall fill the vacancy created by such promotion.

If two or more Recertified Boatswains are employed aboard the vessel, the most senior man may be promoted.

In the event there are no such Recertified Boatswains available, priority shall be given to those seamen who have either actual seetime as Able Seamen of at least thirty-six (36) months, or actual seetime in any capacity in the Deck Department of at least seventy-two (72) months, or actual seetime as Boatswain of at least twelve (12) months, in all cases aboard vessels covered by these Rules.

(c) Within each class of seniority rating in the Deck Department, priority for the job of Quartermaster shall be given to those seamen possessing a certificate of satisfactory completion of the advanced course of training by the Seafarers Harry Lundeberg School of Seamanship for the rating of Quartermaster, in the event such training is being offered.

(5.) (a) Except as specifically provided for in these Rules within each class of seniority rating in the Engine Department, priority for the job of QMED Electrician and/or Chief Electrician shall be given to those seamen having at least twelve (12) months seetime in the capacity of QMED Electrician and/or Chief Electrician on vessels covered by these Rules.

If there are no qualified seamen available to meet these requirements, priority shall be given to qualified seamen possessing any combination of eighteen (18) months seetime in the capacity of Chief Electrician, QMED Electrician and/or Second Electrician on vessels covered by these Rules.

Upon submission of proof to the Seafarers Appeals Board verifying the seetime requirement specified herein, the seetime seniority identification document shall be stamped, "Certified to Sail as QMED Electrician" or "Chief Electrician."

(b) Except as specifically provided in these Rules within each class of seniority, priority for the job of QMED Pumpman and/or Chief Pumpman shall be given to those seamen having at least twelve (12 months) of seetime sailing in the capacity of QMED Pumpman and/or Chief Pumpman on vessels covered by these Rules. If there are no qualified seamen available to meet these requirements, then priority shall be given to those qualified seamen possessing any combination of eighteen (18) months seetime in the capacity of Chief Pumpman, QMED Pumpman and/or 2nd Pumpman on vessels covered by these Rules.

(c) Within each class of seniority rating in the Engine Department, priority for the job of QMED shall be given to those seamen possessing a certificate of satisfactory completion of the advanced course of training by the Seafarers Harry Lundeberg School of Seamanship for the rating of QMED, in the event such training is being offered.

(d) Within each class of seniority rating in the Engine Department, priority for the job of QMED/Electrician Relief shall be given to those seaman possessing a certificate of satisfactory completion of the advanced course of training by the Seafarer's Harry Lundeberg School of Seamanship for the rating of QMED Class I, the Marine Electrical Maintenance, and Refrigerator Container advancement Maintenance Specialty Courses in the event such training is being offered.

In the event no seaman with these qualifications is available priority shall be given to any QMED possessing a certificate of satisfactory completion of the advanced course of training by the Seafarer's Harry Lundeberg School of Seamanship for the Marine Electrical Maintenance, and Refrigerator Container advancement Maintenance Specialty Courses in the event such training is being offered.

In the event no seaman with these qualifications is available the job will be filled pursuant to the procedures provided by these Shipping Rules.

(e) In order to be eligible for permanent employment at the ratings of Chief Electrician, QMED Electrician, QMED/Electrician Relief, Electrician or Engine Maintenance/Electrician Relief, seaman must have successfully completed the specialty courses of Marine Electrical Maintenance and Refrigerator Container Advancement Maintenance offered at the Seafarers Harry Lundeberg School of Seamanship.

(f) Within each class of seniority rating in the Engine Department, priority for the job of QMED Any Rating, QMED Electrician, Chief Electrician, Second Electrician, Chief, 1st, 2nd, and 3rd Reefer Engineer, Engine Utility Reefer Maintenance, Electrician/Reefer Maintenance, and Unlicensed Jr. Engineer for a vessel requiring a Universal Certificate will be given to those seamen possessing a valid Universal Type EPA Refrigeration Technician Certification card. Such card must be shown to the Union Port Agent or his designee at the time a seaman is clearing the hall to ship.

(g) Within each class of seniority, priority for the job of QMED Day Worker on diesel vessels shall be given to those seamen possessing a QMED Class I endorsement from the Seafarers Harry Lundeberg School of Seamanship. If there are no qualified seamen available to meet this requirement, the job will be filled pursuant to the procedures provided by these Shipping Rules.

Within each class of seniority rating in the Engine Department, priority for the job of a QMED Electrician and/or Chief Electrician dispatched to a Waterman Lash vessel shall be given to those seamen having at least twelve (12) months seetime in the capacity of QMED Electrician and/or Chief Electrician on Waterman Lash vessels covered by these Rules.

Within each class of seniority rating in the Engine Department, priority for the job of Engine Maintenance/Electrician Relief shall be given to those seaman possessing a certificate of satisfactory completion of the advanced course of training by the Seafarer's Harry Lundeberg School of Seamanship for the Marine Electrical Maintenance, and Refrigeration Container Advancement Maintenance Specialty Courses in the event such training is being offered.

In the event no seaman with these qualifications is available the job will be filled pursuant to the procedures provided by these Shipping Rules.

(6.) Except as specifically provide for in these Rules within each class of seniority rating in the Steward Department, priority for the jobs of Steward shall be given to the seamen who possess a certificate of recertification in their rating from the Steward Department Recertification Program and that the Steward is registered in Group I-S Steward Department.

Notwithstanding Rule 2. J., if the local Hiring Hall cannot provide a Recertified Steward to fill a vacancy and a Recertified Steward is employed aboard in the Steward Department in a rated capacity he may be promoted and Manpower shall fill the vacancy created by such promotion.

If two or more Recertified Stewards are employed aboard the vessel, the most senior man may be promoted.

If there are no such Recertified Stewards or SHLSS Certified Stewards available, priority for the job as Steward shall be given to those seamen who have actual seetime of at least thirty-six (36) months in the Steward Department in a rating above that of Third Cook, or who have actual seetime of at least twelve (12) months as Steward, in all cases aboard vessels covered by these Rules.

If no one with an advanced certificate is available, then priority for the job of Chief Cook or Cook and Baker shall be given to those seamen who possess a certificate of certification in such ratings from the Seafarers Harry Lundeberg School of Seamanship, in the event such program is being offered and that the seaman is registered in Group I-S, Steward Department.

Seamen who have successfully completed the Recertification Program for Stewards shall be deemed in compliance with this provision, provided they are registered in Group I, Steward Department.

(7.) Within each class of seniority rating in every Department, priority for entry rating jobs shall be given to all seamen who possess Lifeboatman endorsement by the United States Coast Guard. The Seafarers Appeals Board may waive the preceding sentence when, in the sole judgment of the Board, undue hardship will result or extenuating circumstances warrant such waiver.

(8.) In the event an applicant for the Steward Department Recertification Program or the Deck Department Recertification Program for Boatswains is employed in any unlicensed job aboard a vessel covered by these Rules at the time he is called to attend such program, such applicant, after successful completion of the program, shall have the right to rejoin his vessel in the same job upon its first arrival in a port of payoff within the continental limits of the United States.

(9.) All seamen seeking employment aboard LNG vessels must possess a certificate verifying satisfactory completion of the LNG program conducted at the Seafarers Harry Lundeberg School of Seamanship for the department in which the seaman normally ships.

Prior experience aboard LNG vessels will be given consideration in determining the suitability for employment.

Seamen permanently employed aboard LNG vessels must possess a certificate of completion from the LNG Recertification course offered at the Seafarers Harry Lundeberg School of Seamanship. Such certificate must be obtained from the school within two (2) years of the effective date of the new agreement or within two (2) years if a new employee receives a permanent assignment in the LNG rotation. Failure, except for good cause, to obtain the certificate will result in forfeiture of the seaman's assignment in the rotation.

All seamen having permanent status aboard LNG carriers shall not compete for employment aboard any other contracted vessel during their relief period. Failure to comply with this provision will terminate permanent status.

(10.) All Seaman seeking employment aboard contracted tankers, tank vessels and/or barges, as specified within the meaning of the United States Coast Benzene Regulations, must possess a current Benzene clearance on their Seafarers Health and Benefits Plan clinic card and a valid Seafarers Health and Benefits Plan Benzene Certificate.

(11.) All seamen employed aboard all vessels covered by these Rules must be certified to be in compliance with any regulation applicable to U.S. unlicensed seaman as a result of International treaties or U.S. Coast Guard regulations.

(12.) In order to verify compliance with Rule 5.A. (11) all seamen shall, upon reporting to the vessel, submit all appropriate documentation to the Master for the duration of the voyage at which time it will be returned to the seaman.

(13.) **Trip Reliefs, Permanent Ratings**

Anything contained in these Rules to the contrary notwithstanding, the following, shall be applicable:

(a) The following specified ratings enumerated in this subsection (a), possessing Class "A" seniority, upon completing a tour of duty aboard a specified vessel of no less, or as close to, seventy-five (75) days and no more, or as close to, one hundred twenty (120) days, shall be designated as having permanent status for such vessel and shall request a relief of no less, or as close to, forty-five (45) days and no more, or as close to, sixty (60) days depending on the vessels schedule of operations, upon the vessel's arrival at a port in the Continental United States or Puerto Rico or other mutually agreed to port. Subsequent tours aboard the vessel for permanent personnel shall be between seventy-five (75) and one hundred twenty (120) days duration as agreed by the seaman and the company at time of their sign-on for each tour. Transportation expenses for the seaman requesting a relief and the seaman providing a relief shall be borne by the Company.

All requests for reliefs shall be so designated when referred by the Company to the Manpower Pool Coordinator and shall be shipped pursuant to the Rules prescribed herein.

During the period of employment, qualified unlicensed personnel may request an emergency relief for forty-five (45) days as dictated by the vessel's operational necessities. The seaman's period of employment shall not be reduced by the number of days taken for emergency relief. Transportation expenses, if any, for the seaman providing the relief shall be borne by the Company. Trip reliefs shall be provided only if a relief is available. Seamen who leave a vessel without a proper relief shall forfeit their reclaim rights. All seamen returning to their ship after the emergency relief period must notify the hiring hall of their scheduled return. Seamen providing reliefs shall be permitted to remain aboard the vessel when the seaman on time off extends their relief.

Permanent ratings as specified below shall have the right to one emergency relief period in any twelve (12) month period. Seamen shipped as emergency relief shall be designated as “Emergency Reliefs.”

Deck Department	Engine Department	Steward Department
Recertified Boatswain AB/Splicer Joiner	Chief Pumpman Chief J.E. Pumpman J.E. Pumpman 2 nd J.E. Pumpman/Engine Maint. 2nd J.E. Pumpman QMED Class 1 Pumpman QMED/J.E. Pumpman Chief Electrician QMED/Electrician Relief QMED Conveyorman Electrician Crane Maintenance Electrician J.E. Electrician 2 nd Electrician Reefer Engineer QMED/Plumber/Machinist Marine Electronics Technician 2 nd Pumpman/Engine Maintenance Engine Maintenance Engine Maintenance/Electric. Relief Engine Maintenance Conveyorman FOWT/Conveyorman General Utility/Engine Conveyorman	Recertified Steward Recertified Steward/Baker Recertified Steward/Cook

Seamen permanently employed, who do not possess a certificate from the Seafarers Harry Lundeberg School of Seamanship verifying that they have satisfactorily completed the specialty course for their specific rating, shall lose their permanent status if such specialty course is not satisfactorily completed by June 15, 2015 or such ratings may submit verification of employment in their specific capacity to the Director of Vocational Training at the Seafarers Harry Lundeberg School of Seamanship for evaluation. If in the opinion of the Director, prior experience indicates the specialty course is unnecessary, the requirement will be waived and an appropriate certificate issued.

Seamen, who by the aforementioned requirement are unable to return to their vessel at the completion of their allotted two (2) month time off period in order to satisfactorily complete the required upgrading program, shall be considered in compliance by returning to their vessel as soon as possible after having satisfactorily completed the required course. By mutual agreement, the Union and the Employer may modify the seaman’s tour of duty when assigned to a training program which conflicts with the vessel’s operational schedule.

(b) If a vessel lays up, the four (4) month employment period shall include employment time prior to the period of lay-up and after the vessel is reactivated.

(c) If a vessel lays up during the period that a relief is provided, the seaman providing the relief shall have the option of completing the relief period when the vessel is reactivated, providing it is reactivated within thirty (30) days of layup. If the remaining relief period is not accepted by a relief, the seaman who was being relieved must rejoin the vessel in order to maintain his permanent status.

(d) Trip reliefs shall be provided only when a replacement is available. Seamen who leave a vessel without proper relief waive their right to rejoin the vessel pursuant to the trip off provisions.

(e) Every effort will be made by the seaman rejoining the vessel to do so at the same port where the relief was provided.

(f) Permanent ratings being relieved must register at a port in the Continental United States, Hawaii, Guam or Puerto Rico, within forty-eight (48) hours after being relieved, excluding Saturdays, Sundays and Holidays. On vessels remaining outside the Continental United States in excess of six (6) months, as on shuttle vessels, relief shall be provided at a port mutually agreed to by the Union and the Employer. In such cases, the seaman being relieved shall register at his home port.

(g) Seamen who register after being relieved cannot compete for other jobs referred to the hiring hall. If they compete for other jobs, they waive any right to rejoin the vessel on which they were relieved, unless doing so at the behest of the Union. Failure to return to the vessel from which they were relieved will result in the forfeiture of said registration card except in those cases beyond the seaman's control such as sale, lay-up or scrap of the vessel.

(h) Seamen shipped for relief trips shall be designated as "Temporary Relief" by the Dispatcher. Seamen accepting trip reliefs will not lose their registration cards if the ninety (90) day period of registration has not expired at the completion of the relief trip.

(i) Except as specifically provided for in these Shipping Rules, relief trips shall not exceed the time period specifically provided for herein for the relieving seaman.

(j) Seamen requesting reliefs must advise the Ship's Master, Ship's Chairman, and departmental delegate of such intent seventy-two (72) hours prior to the vessel's arrival in port. On vessels scheduled to arrive on a weekend, such notice must be provided no later than Thursday noon preceding the vessel's arrival.

(k) The Union and the Contractual Employers shall coordinate the dispatching of trip reliefs to avoid duplication of pay. If not possible, the following procedure shall be implemented.

In American domestic ports, a seaman's pay shall start as of the day in which he reports for work aboard the vessel, unless the seaman he is replacing is being paid for the same day. In such event, both shall be paid for the day but contributions for fringe benefits shall be paid only to the departing man.

(l) It is the responsibility of the seaman being replaced to maintain contact with the Port Agent at the port registered relative to his return to the vessel. He must return to the vessel at the completion of his relief by reclaiming his job from the hall shipping board, except as provided in Rule 2., G (12) (c.), no later than ten (10) days prior to the vessel's arrival in port. If the relief period ends and the ship is at a port other than at the port where the seaman was relieved, he shall be cleared for reshipment at the port where registered. When such jobs are reclaimed, the Dispatcher shall provide the Port Agent where the vessel is located and the Manpower Office the following information:

Name, rating, social security number, registration card number and seniority classification of the permanent rating.

On vessels arriving on a weekend, jobs must be reclaimed by the permanent rating no later than the Friday preceding the vessel's arrival in port. If Friday is a recognized Holiday in the port where registered, the job must be reclaimed on the preceding Thursday. Seamen failing to comply with the reship procedures shall forfeit their right of reclaim and shall register pursuant to the provisions specified in Rule 2, Shipping Procedure.

(m) If a seaman fails to comply with the provisions of subsection (l) above, the job involved shall be shipped in accordance with the provisions of Rule 2, Shipping Procedure.

(n) A permanent rating leaving a vessel for medical reasons shall be qualified under the Rules to rejoin the same vessel after he has acquired a Fit for Duty Status, provided that he registers for employment within forty-eight (48) hours, excluding Saturdays, Sundays, and Holidays, after receiving his Fit for Duty. Time off pursuant to this provision shall not be less than fifteen (15) days nor exceed one hundred twenty (120) days.

The sixty (60) day relief period provided for in Rule 2.G. (2.) and Rule 5.A. (13.)(a) may be extended for medical reasons according to the above.

(o) Transportation will be paid by the Company to the relief and the seaman being relieved.

(p) All Port Agents shall maintain a detailed record of all vessels and personnel involved in the aforementioned procedures.

(q) If a permanent rating leaves a vessel in accordance with the procedures prescribed above and the vessel lays up while he is being relieved and the period of lay-up exceeds the ninety (90) day registration period, he is still qualified to return to the job when the vessel is reactivated provided he did not compete for other employment during his registration period.

(r) Tanker Employment

(1) All seamen qualified pursuant to Rule 5.A. (11) & (12), employed aboard Tanker Class Vessels above the entry level, excluding such ratings as specified in Rule 5.A. (13) (a), and who possess Class "A" employment seniority shall be permitted to remain aboard a specific vessel for a period not to exceed forty-eight (48) months, subject to the vessel's operational necessity.

(2) During the specific period of employment their tours of duty shall be scheduled at approximately a two-to-one employment ratio with time on of no less, or as close to seventy-five (75) days and no more, or as close to one hundred twenty (120) days of employment between periods of time off of no less, or as close to forty-five (45) days and no more, or as close to sixty (60) days of time off. Work schedules may be modified subject to the vessel's operational necessities, and as mutually agreed to between the Union and the Company. Transportation expenses for the seaman requesting a relief and the seaman providing a relief shall be borne by the Company.

(3) Scheduled time off may be extended by mutual agreement but in no case, except as provided within these Rules in Rule 5.A. (13)(a) and 5.A. (13)(n), shall this extension exceed thirty (30) days.

(4) Seamen possessing Class "B" employment seniority employed above the Entry Level aboard tanker class vessels in the domestic trades upon mutual consent may request a relief of forty-five (45) days upon completion of no less than ninety (90) days employment.

(5) Seamen possessing Class "B" employment seniority employed above the entry level aboard tanker class vessels in the foreign to foreign trade, may request to be repatriated with the payment of transportation upon completion of one hundred twenty (120) days of employment. It is understood that exercise of this option terminates the employment provided by their initial assignment.

(6) The registration provisions applicable to the permanent ratings specified in Rule 5.A. (14.)(a) above shall also be applicable to seamen specified in this subsection (r).

(s) (1) On Tankers employing two (2) pumpmen, tours of duty shall be established to provide as equal employment time as possible for the pumpmen subject to the vessel's operational necessities.

(2) Seamen with Class "A" seniority rating shall be eligible to maintain permanent status as QMED or Chief Pumpman and Second Pumpman.

(3) Seamen with Class “B” seniority rating shall be eligible to maintain trip tour rotations as Second Pumpman Engine Maintenance.

(4) Seamen employed as Second Pumpman Engine Maintenance shall be eligible to relieve the QMED or Chief Pumpman for periods of vacation or emergency reliefs, and a replacement Second Pumpman Engine Maintenance shall be dispatched pursuant to the regular Shipping Rules contained herein.

(5) A seaman with Class “A” seniority employed as the permanent Second Pumpman Engine Maintenance shall have first preference in filling a permanent vacancy in the QMED or Chief Pumpman position for the vessel on which he has been employed.

(6) Seamen providing reliefs shall be permitted to remain aboard the vessel when the seaman on time off extends their relief.

(t) **Freightship Employment**

(1) All seamen above the entry level possessing Class “A” seniority, excluding those designated as permanent ratings in Rule 5.A. (13)(a), employed aboard dry cargo vessels shall be permitted to remain aboard a specific vessel for a period not to exceed twenty-four (24) months.

(2) During the specific period of employment their tours of duty shall be scheduled at approximately a two-to-one employment ratio with time on of no less, or as close to seventy-five (75) days and no more, or as close to one hundred twenty (120) days of employment between periods of time off of no less, or as close to forty-five (45) days and no more, or as close to sixty days (60) of time off. Work schedules may be modified subject to the vessel’s operational necessities, and as mutually agreed to between the Union and the Company. Transportation expenses for the seaman requesting a relief and the seaman providing a relief shall be borne by the Company.

(3) Scheduled time off may be extended by mutual agreement but in no case, except as provided within these Rules in Rule 5.A. (13)(a) and 5.A. (13)(n), shall this extension exceed thirty (30) days.

(4) Seamen possessing Class “B” employment seniority employed above the Entry Level may request a relief of forty-five (45) days upon completion of no less than ninety (90) days of employment. Such relief will only be provided in a domestic port and subject to the vessels operational necessities. Transportation if any shall be borne by the seaman requesting and the seaman providing relief.

(5) Seamen possessing Class “B” employment seniority employed above the entry level aboard vessels in the foreign to foreign trade, may request to be repatriated with the payment of transportation upon completion of one hundred twenty (120) days of employment. It is understood that exercise of this option terminates the employment provided by their initial assignment.

(6) The registration provisions applicable to the permanent ratings specified in Rule 5.A. (13)(a) above shall also be applicable to seamen specified in this subsection (t).

(7) Seamen providing reliefs shall be permitted to remain aboard the vessel when the seaman on time off extends their relief.

(u) (1) On diesel vessels employing a QMED/Electrician and a QMED /Electrician Relief, tours of duty shall be established to provide as equal employment time as possible subject to the vessel’s operational necessities. It is the intent that the QMED/Electrician Relief’s time on board shall coincide as close as is practicable to the QMED/Electrician’s vacation time ashore.

(2) Qualified seaman with A seniority rating shall be eligible to maintain permanent status as QMED Electrician and QMED/Electrician Relief.

(3) Qualified seaman employed as QMED/Electrician Relief shall be eligible to relieve the QMED Electrician for periods of vacation and emergency relief and a replacement QMED/Electrician Relief shall be dispatched pursuant to the Shipping Rules. Time spent in relief of the QMED Electrician shall be counted as time spent on the original assignment. Upon the return of QMED Electrician the QMED/Electrician Relief shall be entitled to complete any additional time remaining on his original assignment.

(4) Seaman with Class A Seniority rating employed as the permanent QMED/Electrician relief shall have first preference in filling a permanent vacancy in the QMED Electrician position for the vessel on which he is employed.

(5) On Diesel vessels with a QMED/Electrician Relief billet, each ship will have the option of ordering for that billet either a QMED or a QMED/Electrician Relief based on the ship's operating needs.

(v) (1) On Steam vessels employing a Chief Electrician and an Engine Maintenance/Electrician Relief tours of duty shall be established to provide as equal employment time as possible subject to the vessel's operational necessities. It is the intent that the Engine Maintenance/Electrician Relief's time on board should coincide as close as is practicable to the Chief Electrician's vacation time ashore.

(2) Qualified seaman with A seniority rating shall be eligible to maintain permanent status as Chief Electrician and Engine Maintenance /Electrician Relief.

(3) Qualified seaman employed as Engine Maintenance/Electrician Relief shall be eligible to relieve the Chief Electrician for periods of vacation and emergency relief and a replacement Engine Maintenance Electrician Relief shall be dispatched pursuant to the Shipping Rules. Time spent in relief of the Chief electrician shall be counted as time spent on the original assignment. Upon the return of the Chief Electrician the Engine Maintenance/ Electrician Relief shall be entitled to complete any additional time remaining on his original assignment.

(4) On Steam vessels with an Engine Maintenance/Electrician Relief billet, each ship will have the option of ordering for that billet either an Engine Maintenance or an Engine Maintenance/Electrician Relief based on the ship's operating needs.

(5) Seaman with Class A seniority rating employed as the permanent Engine Maintenance/Electrician Relief shall have first preference in filling a permanent vacancy in the Chief Electrician position for the vessel on which he is employed.

(w) It will be incumbent upon the Company, when ordering replacements, to notify the Manpower Pool Coordinator when seamen are leaving and rejoining their vessels pursuant to these Rules.

(x) Great Lakes Employment

(1) Within each class of seniority rating in the Engine Department, priority for the job of QMED Any Rating/Conveyorman, QMED/Conveyorman, FOWT/Conveyorman, QMED Any Rating/Gateman, QMED/Gateman and FOWT/Gateman will be given to those seamen possessing a valid Gateman or Conveyorman discharge. Such discharge must be shown to the Union Port Agent or his designee at the time a seaman is clearing the hall to ship.

The Company reserves the right to assign and select permanent Conveyormen without regard to seniority from either its own ranks or from the registration list provided such individuals have "A" or "B" seniority, pursuant to Rule 1 herein.

(2) When the following temporary relief jobs are opened on any Great Lakes vessel, a qualified man from a lower rating may fill the temporary vacancy, subject to other rules contained herein. The Company will have the right to temporarily upgrade a seaman, provided notification is given to the Union, thus any qualified AB Watchman to Wheelsman, only aboard their respective vessels and only for a

temporary position. Also, any qualified Gateman will be allowed to temporarily upgrade to Conveyorman, only aboard his respective vessel and only for a temporary position. There will be no other shipboard promotions.

6. Standby and Port Relief Jobs

A. Priority for standby and port relief jobs shall be determined according to the provisions of Rule 2.C.(3.), except that a seaman who has had standby or port relief jobs during the period of his shipping registration card's validity shall not have priority for such jobs over seamen of the same class of seniority rating who have had a lesser number of standby or port relief jobs during the period of their shipping cards' validity. In determining priorities, standby jobs and port relief jobs are to be considered as separate and distinct, one from the other.

B. After the termination of standby or port relief employment, the seaman involved shall receive back his original shipping registration card, unless the same has expired in the interim period.

C. A seaman on a standby or relief job pursuant to these Rules shall not take a regular job aboard any vessel until his standby or port relief job terminates, he returns to the hiring hall, and he secures such regular job pursuant to the provisions of Rule 2 hereof.

D. A seaman employed pursuant to these Rules on a regular job who requires time off and secures permission shall notify the nearest Union hiring hall, and a relief man shall be dispatched. No relief man shall be furnished for less than four (4) hours or more than three (3) days' work. The seaman shall pay his relief man for the number of hours worked at the overtime rate applicable to the job Monday through Friday. On Saturdays, Sundays and Holidays, he shall pay his relief at the applicable overtime rate. Relief men shall be requested only when required by the head of the department involved aboard the subject vessel.

E. A seaman employed pursuant to these Rules who has been called to attend the Steward or Deck Department Recertification program may be temporarily replaced by a relief man for the duration of the program in accordance with Rule 5.A.(8.). In the event such seaman is not replaced by a relief man but terminates his job instead, the job will be dispatched in accordance with the normal shipping procedures under Rule 2.

F. Rule 6 and all its subsections shall be inapplicable to the provisions of Rule 5.A. (13).

7. Seafarers Appeals Board

A. The Seafarers Appeals Board shall have sole and exclusive authority to administer these Rules and to hear and determine any matter, controversy or appeal arising there under, or relating to the application thereof.

The Seafarers Appeals Board, shall have the power to reduce from time to time, but not the power to increase, the requirements for seniority ratings set forth herein; and if such power is exercised, the Board shall arrange for effective publication of such decision. The Seafarers Appeals Board shall, subject to applicable law, also add newly contracted companies as employers subject to Collective Bargaining Agreements and shall promulgate Shipping Rules, including reasonable disciplinary, administrative and procedural rules and regulations, to govern employment operations of hiring halls and the seniority and referral to jobs of all Unlicensed Personnel under and pursuant to the Collective Bargaining Agreements. Such Shipping Rules may, among other procedures, provide for rotary shipping within classes; shall provide for full seniority credit for employment by, or election to any office or job in, or any employment taken at the behest of the Union (which seniority credit is hereby granted); and may include reasonable, non-discriminatory preferences to be accorded to Unlicensed Personnel, as well as provisions for total seniority credit to be granted in the Board's reasonable discretion, in cases other than those set forth herein where a seaman's shipping employment has been interrupted by circumstances beyond his control and where denial of such seniority credit would work an undue hardship.

B. The Seafarers Appeals Board shall have four (4) members, two (2) appointed by the Union and two (2) appointed by the committee representing the majority of contracted Employers for purposes of

negotiations with the Union, commonly known as the Management Negotiating Committee. Each party shall also appoint two (2) alternates for the members so appointed to serve in the absence of such members.

C. The quorum for any action by the Seafarers Appeals Board shall be at least one (1) member appointed by each party. At any meeting of the Seafarers Appeals Board the members appointed by each party shall collectively cast an equal number of votes regardless of the actual number of members present and voting. Except as otherwise provided herein, decisions of the Seafarers Appeals Board shall be unanimous. In the event of a tie vote, the Board shall elect an impartial person to resolve the deadlocked issue. In the event the Board is unable to agree on such an impartial person, the matter shall be submitted to final and binding arbitration in Camp Springs, Maryland pursuant to the voluntary Labor Arbitration Rules then in effect of the American Arbitration Association.

D. Any person or party subject to or aggrieved by the application of these Rules shall have the right to submit any matter arising under these Rules to the Seafarers Appeals Board for determination. Such submission shall be in writing, shall set forth the facts in sufficient detail to identify the matter at issue, and shall be sent by certified mail, return receipt requested, to the Seafarers Appeals Board, 5201 Capital Gateway Drive, Camp Springs, Maryland 20746. An applicant desiring to be heard in person before the Board shall request the same in his written application. In such event, the applicant shall be notified at least two (2) weeks prior to the Board's next regular meeting of the date and location of such meeting, and the applicant may attend such meeting at his own expense and be heard.

E. All applications to the Seafarers Appeals Board shall be ruled on initially by the Chairman, subject to confirmation or overruling by the Board at its next meeting. Prior to the Board's action, however, the Chairman may initiate such administrative steps as he deems necessary to implement his preliminary determination.

F. The Board shall meet no less than quarterly and shall establish such reasonable procedures, consistent with these Rules, as it deems necessary. Meetings of the Board may be either in person or in writing. Meetings in writing shall be signed by all members of the Board.

8. Discipline

A. Although under no obligation of any sort, the Union or hiring hall will not be required to ship persons who by their behavior in the course of employment aboard contracted vessels, during programs of the Seafarers Harry Lundeberg School of Seamanship, at a contracted medical facility or hiring halls subject to these Shipping Rules, demonstrate that their presence aboard contracted vessels may prevent safe and efficient operation of such vessels or create a danger or threat of liability, injury or harm to such vessels and their crews. Persons not required to be shipped shall include, but not be limited to those guilty of any of the following:

- (1.) Drunkenness or use of alcohol.
- (2.) Use, possession or sale of narcotics or controlled substances.
- (3.) Use or possession of dangerous weapons or substances.
- (4.) Physical assault.
- (5.) Malicious destruction of property.
- (6.) Gross misconduct, including repeated failure to wear prescribed PPE, not having sufficient prescribed medication/maintenance medications for the duration of the voyage, and/or not following established safety procedures.
- (7.) Tampering with smoke detectors
- (8.) Neglect of duties and responsibilities.

(9.) Deliberate interference with the efficient operation of vessels, of the Seafarers Harry Lundeberg School of Seamanship, of contracted clinic facilities, or of hiring halls subject to these Rules. Such conduct will include sexual harassment, destruction of property and other inappropriate harassing or menacing conduct.

(10.) Deliberate failure or refusal to join vessels.

(11.) Any act or practice which creates a menace or nuisance to the health or safety of the seaman or to others, inclusive of tampering with smoke detectors.

(12.) Failure, except for good cause shown, to join any vessel operated by a contracted Employer, or who after joining the vessel, fails to remain aboard for the contractual tour where said assignment is the initial one after the seaman may have had specialized training and/or which involved expense to the contracted Employer directly attributable to the seaman such as transportation, subsistence, lodging, toll calls and the like.

(13.) Except for good cause shown, any consecutive twenty-four (24) month period when a seaman has two (2) incomplete job assignments as indicated on the dispatch card.

(14.) If a seaman has been discharged for cause and received final findings of guilt more than two times under Rule(s) 8 A. 1, 2, 3, 4 or 5, such seamen shall have his shipping rights permanently revoked.

Similarly, if a seaman receives a final finding of guilt one time, under Rule(s) 8 A. 1, 2, 3, 4 or 5, they shall be banned from working with the charging company for a minimum period of two (2) years.

(15.) Seamen found guilty of alcohol, drugs, weapons, physical or verbal assault, harassment or discrimination are required to satisfactorily complete a Company/Union agreed upon SAP/counseling/training prior to dispatch/shipping with any member Company.

B. No seaman shall suffer any temporary or permanent loss of shipping rights under Rule 8.A. hereof, except pursuant to the following procedures:

(1.) The Union, a contracted Employer, or the Seafarers Harry Lundeberg School of Seamanship or hiring hall shall initiate a proceeding under this Rule 8 by filing a written complaint within thirty (30) days of the precipitating incident or separation from the vessel, whichever occurs first, with the Chairman of the Seafarers Appeals Board. The Chairman shall thereupon name a committee of two (2) persons, one (1) representing the Union and (1) representing management, to hear and determine the complaint. The Company is to be notified by the Union, which shall include at least an email to the Company, when a proceeding under this Rule 8 is scheduled. All supporting documentation must be received by the Chairman, in its entirety, no less than seven days prior to proceedings. In the event either party is awaiting documentation or billing items related to the charge at the time of the hearing, this shall be included in the documentation submitted to the Chairman. The participating Committee representatives shall be allowed to participate in person or by teleconference.

(2.) The Hearing Committee shall prepare a written specification of charges and notice of hearing, which shall be sent to the complaining party and to the subject seaman by certified mail, addressed to his last known residence. Such notice shall provide at least two (2) weeks' time for the seaman to prepare his defense and shall give the seaman up to one (1) week before the hearing date to request a change of date or location of such hearing. The hearing committee shall initially locate the hearing at the Union hiring hall closest to the subject seaman's last known residence. Pending the hearing, the seaman may register and ship in accord with these Rules and in his current seniority, except that the charged seaman shall not be permitted to ship to the charging company's vessels until the hearing has been concluded. In addition, pending a hearing, if a charge under these rules has been filed by the Seafarers Harry Lundberg School of Seamanship, the charged party will not be permitted to enter upon or utilize the facilities of the School until a hearing has been conducted. Lastly, pending a hearing, if a charge under these rules has been filed by the Union or hiring hall, the charged party will not be permitted to enter upon or utilize the facilities of any hiring hall affiliated with this Union.

All efforts will be made by the Board for hearings conducted under this section to be completed within forty-five (45) days from the date of filing charges.

(3.) The hearing shall proceed as scheduled, whether or not the accused seaman is present. The hearing committee shall give the charging and charged parties full opportunity to present their evidence either in person or in writing. No formal rules of evidence shall apply, but the committee shall accept all relevant evidence and give the same such weight as the committee alone may deem appropriate. The hearing may be held in person or by telephone. When the hearing is held in person, individuals may participate by telephone.

(4.) The hearing committee shall render and announce its decision on the day of the hearing, as soon as possible after the completion thereof. A decision upholding the complaint shall be unanimous. The committee shall reduce its decision to writing, sign the same, and send copies of the hearing minutes thereof to the Seafarers Appeals Board, to the complaining party, and to the accused seaman by certified mail, return receipt requested.

(5.) The seaman or the complaining party, if they participated in the hearing, may appeal all or any aspect of the hearing committee's decision to the Seafarers Appeals Board. Such appeal shall be in writing and shall set forth the basis for the appeal in sufficient detail to be understood. The seaman shall send his appeal by certified mail, return receipt requested, to the Seafarers Appeals Board, 5201 Capital Gateway Drive, Camp Springs, Maryland 20746, within ten (10) days following the decision, except that the Board may extend the time for filing an appeal for good cause shown.

(6.) The Seafarers Appeals Board shall hear all appeals arising under this Rule 8 at its next regular meeting after receipt thereof, provided the appeal has been received in sufficient time for the Board to give at least five (5) days written notice to the seaman of the time and place of the meeting at which his appeal will be considered.

(7.) The Seafarers Appeals Board's decision on the appeal shall be in writing, and copies shall be sent to the complaining party and the seaman by certified mail, return receipt requested. A copy of the decision shall also be sent to the American Maritime Association for distribution to its members. The Board may modify the original decision. Pending hearing and determination of the appeal, the decision of the hearing committee shall be in full force and effect.

(8.) A final appeal shall be allowed by the involved seaman from the decision of the Board to the Impartial Umpire designated pursuant to Rule 8.C. hereof. Such appeal shall be in writing and shall set forth the basis of the appeal in sufficient detail to be understood. Such appeal shall be sent by certified mail; return receipt requested, to the Seafarers Appeals Board, 5201 Capital Gateway Drive, Camp Springs, Maryland 20746, within ten (10) days following receipt of the Seafarers Appeals Board's decision. The Board shall forward all such appeals to the Impartial Umpire, who shall set the date and time of the appeal in Camp Springs, Maryland, within thirty (30) days following receipt of the appeal and shall notify all parties in writing. The Impartial Umpire may reasonably extend any time limit provided in this paragraph upon good cause shown. The Impartial Umpire shall render his decision in writing and shall cause copies to be mailed to all parties by certified mail, return receipt requested. The decision of the Impartial Umpire shall be final and binding.

The Seafarers Appeals Board shall notify all appropriate parties of the decisions of the Impartial Umpire and of decisions of the designated Hearing Committees not timely appealed as prescribed in Rule 8.B.(5) and 8.B.(8).

The Seafarers Appeals Board and the Impartial Umpire may consider any evidence deemed relevant when rendering decisions as to appropriate penalties to be imposed.

C. The Impartial Umpire provided for in the preceding paragraph shall be a permanent arbitrator appointed by and to serve at the pleasure of the Seafarers Appeals Board. In the event the Board is unable to agree upon an Impartial Umpire, for each appeal arising under Rule 8.B.(8) hereof, the Seafarers Appeals Board shall request the American Arbitration Association to designate an Arbitrator to hear and determine such appeal.

D. Nothing in this Rule 8 shall be construed to prevent the Union from appearing by its properly designated representatives at any stage of the proceeding.

9. Amendments

The Seafarers Appeals Board may amend these Shipping Rules at any time and in any manner consistent with the requirements of applicable law and the operative collective bargaining agreements between the parties.

10. Special or Emergency Provisions

A. During any period of emergency, unlicensed seamen possessing Class “B” or “C” seniority, who are in the Entry Rating Department and who have adequate seetime to make application for endorsement in Group II rating or ratings in the Deck or Engine Department and Group II ratings in the Steward Department, shall not be registered for shipping unless they make application for and expeditiously comply with the requisite rules to secure such Group II endorsement or endorsements in the Deck and Engine Departments and Group II ratings in the Steward Department in accordance with the training programs instituted at the Seafarers Harry Lundeberg School of Seamanship. All such unlicensed seamen in lieu of such registration, and provided they comply with the foregoing shall upon completion of such requirements be deemed then registered as of the date of their appearance in the Group in which they thereafter have been found qualified. All such Unlicensed Personnel presently registered shall also be subject to the foregoing Rule, with the date of registration as presently in effect in the Group in which they thereafter have been found qualified.

Any such unlicensed seamen may apply in writing to the Seafarers Appeals Board in connection with any dispute as to his period of seetime for exemption from this rule set forth above on the grounds of hardship or physical disability and may, if he requests in writing, appear before the Seafarers Appeals Board. The decision of the Seafarers Appeals Board shall be in writing and sent to the person involved and to the Union hiring hall.

During any period of emergency, veterans honorably discharged from the Armed Forces of the United States, who by their service record are qualified to make application for endorsement in Group II rating or ratings in the Deck or Engine Departments or ratings in the Steward Department above Third Cook, may apply for the prescribed training program at the Seafarers Harry Lundeberg School of Seamanship to obtain such rating or ratings. Seaman possessing class “CV” seniority upon attaining one hundred eighty (180) days of employment aboard contracted vessels within twenty-four (24) months.

The Seafarers Appeals Board shall determine the period of any emergency or when this amendment is no longer necessary. In either event, upon such determination, the Seafarers Appeals Board shall then take appropriate action in writing.

B. During any period of emergency as determined by the Seafarers Appeals Board in accordance with Rule 10.A., Rule 2.J. may be suspended with respect to entry ratings only for the period of such emergency or until the suspension of the Rule is no longer necessary as determined by the Seafarers Appeals Board.

C. (1) The Seafarers Appeals Board may, for good cause shown, at its discretion and in accord with its authority under Article I Employment, Section 8, of the Collective Bargaining Agreements between the parties and in accord with the several factors set forth below, upgrade to Class “A” seniority rating such Unlicensed Personnel possessing Class “B” seniority rating whom the Board deems qualified for the same.

The factors to be utilized in determining whether an applicant shall be so upgraded are as follows:

(a) Endorsement from the United States Coast Guard as a Lifeboatman in the United States Merchant Marine.

(b) Possession of a certificate of satisfactory completion of the Seafarers Harry Lundeberg School of Seamanship Entry Rating training program and has a minimum of twelve (12) months of seetime with any of the companies signatory to the collective bargaining agreements; or

Possession of certificate of satisfactory completion of the advanced course of training then being offered by the Seafarers Harry Lundeberg School of Seamanship for the department in which such seaman regularly ships and has a minimum of thirty-six (36) months of seetime with any of the companies signatory to the Collective Bargaining Agreements; or

Possession of “A” or “B” seniority classification under the Shipping Rules in effect between the Union and the P.M.A. and has a minimum of thirty-six (36) months seetime with any of the Companies who are or were members of the Pacific Maritime Association.

(c) Possession of special skills and aptitudes.

(d) Employment record.

(e) Satisfactory completion of training at a maritime institution recognized by the Seafarers Appeals Board as proficient to provide such training.

Factor (b) may be waived by the Seafarers Appeals Board in those cases where undue hardship will result.

(2.) The Seafarers Appeals Board shall upgrade applicants pursuant to this Rule 10.C. for a period of time not to exceed six (6) months, at which time it shall terminate such upgrading and shall publicize such termination in the Union’s hiring halls and in such other places as will give notice thereof thirty (30) days prior thereto. Thereafter, when it deems necessary, the Seafarers Appeals Board may reinstitute such upgrading program for additional periods of time not to exceed six (6) months duration and shall publicize the termination of same as required by the Collective Bargaining Agreement.

D. (1.) Seamen who have retired from the industry shall be permitted to compete for employment aboard contracted vessels designated by the Seafarers Appeals Board, provided they can pass the physical examination.

(2.) They shall be assigned Class “C” employment seniority and shall comply with all existing registration and shipping requirements as specified in Rule 2, Shipping Procedures, unless otherwise specified in the Collective Bargaining Agreement applicable to the vessel on which employed.

E. The Seafarers Appeals Board has the exclusive right to waive any and all provisions of the Rules contained herein in instances where a job vacancy is created by a dismissal and said dismissal is being challenged by the Union as being unjust. In those cases where the challenge is upheld, the Seafarers Appeals Board reserves the right to take whatever steps it deems necessary to provide the affected seaman with re-employment rights.

F. Notwithstanding anything contrary contained in these Rules, the provisions of the Shipping Rules herein shall be interpreted and/or amended as necessary in order to comply with the provisions of the Family Medical Leave Act as amended.



SEAFARERS INTERNATIONAL UNION

Atlantic, Gulf, Lakes and Inland Waters, SIUNA, AFL-CIO